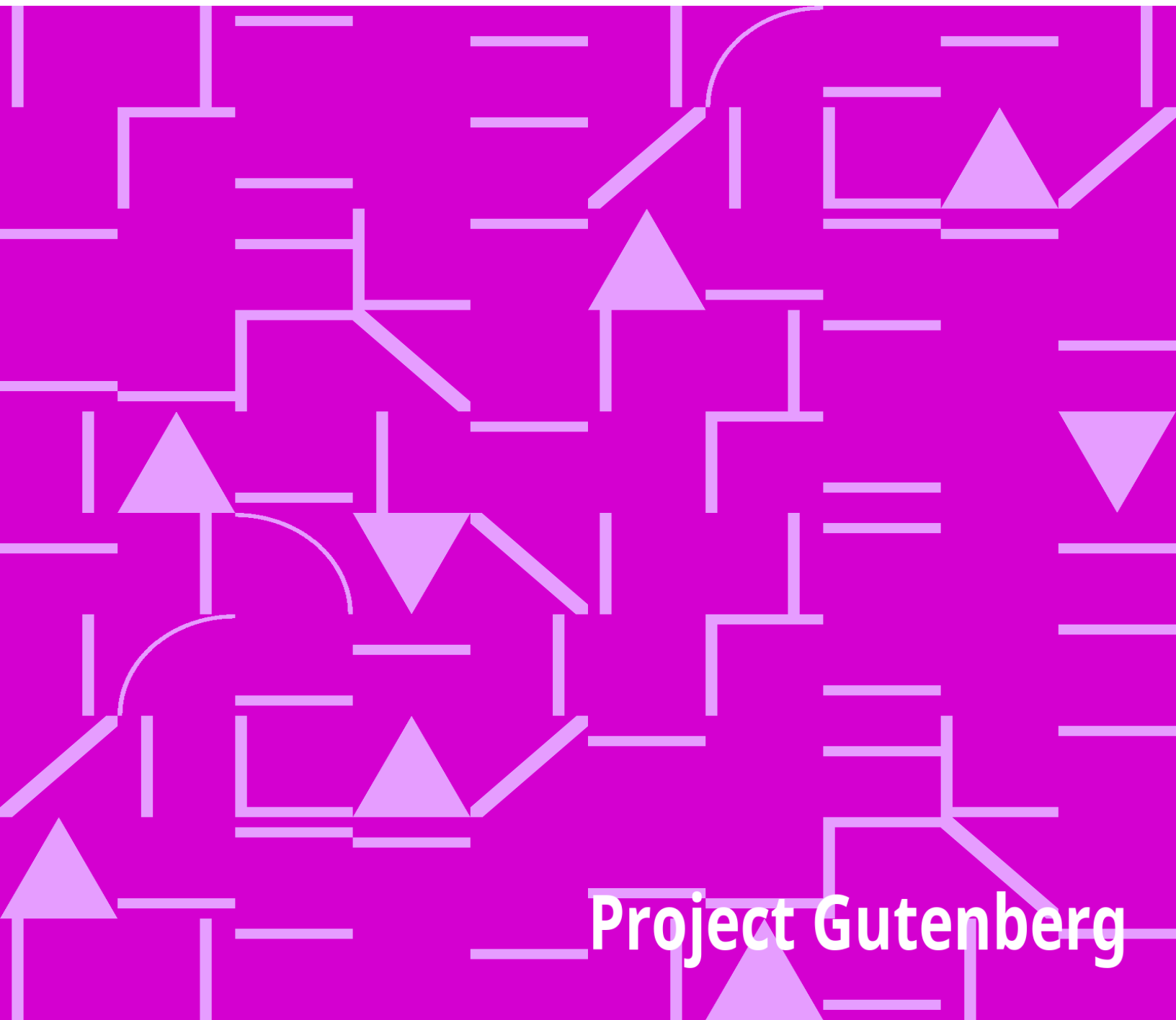


The Church of England cleared from the charge of Schism

T. W. Allies

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***** START OF THE PROJECT GUTENBERG EBOOK THE CHURCH
OF ENGLAND CLEARED FROM THE CHARGE OF SCHISM *****

THE

CHURCH OF ENGLAND

CLEARED FROM

THE CHARGE OF SCHISM,
UPON
TESTIMONIES OF COUNCILS
AND
FATHERS OF THE FIRST SIX CENTURIES.
BY

THOMAS WILLIAM ALLIES, M. A.

RECTOR OF LAUNTON, OXON.

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ADVERTISEMENT.

The writer of the following pages is more and more convinced that the whole question between the Roman Church and ourselves, as well as the Eastern Church, turns upon the Papal Supremacy, as at present claimed, being of divine right or not. *If it be*, then have we nothing else to do, on peril of salvation, but submit ourselves to the authority of Rome: and better it were to do so before we meet the attack, which is close at hand, of an enemy who bears equal hatred to ourselves and to Rome; the predicted Lawless One, the Logos, reason, or private judgment of apostate humanity

rising up against the Divine Logos, incarnate in His Church. *If it be not*, then may we take courage; for the position of the Church of England being tenable, all the evils within her pale, which we are now so deeply feeling, will, by God's blessing, be gradually overcome. As to practical abuses in her, who will venture to say they are so great as in the Roman Church of the tenth century, when the First See was filled successively by the lovers of abandoned women, who made and deposed Popes at their will? Our cause being good, all that we have to deplore of actual evil should lead to more earnest intercession, more continued striving after that love which breathes itself forth in unity, but should not shake the confidence of any obedient heart in our mother's title. When the Donatists made the crimes of individuals an excuse for breaking unity, St. Augustin reminded them, that the crimes of the chaff do not prejudice the wheat, but that both must grow together till the Lord of the harvest send forth his angels to make the separation.

The writer will not conceal that he took up this inquiry for the purpose of satisfying his own mind. Had he found the Councils and Fathers of the first six centuries bearing witness *to* the Roman supremacy, as at present claimed, instead of *against* it, he should have felt bound to obey them. As a Priest of the Church Catholic in England, he desires to hold, and to the best of his ability will teach, all doctrine which the undivided Church always held. He finds by reference to those authorities which could not be deceived, and cannot be adulterated, that while they unanimously held the Roman primacy, and the patriarchal system, of which the Roman pontiff stood at the head, they as unanimously did not hold, nor even contemplate, that supremacy or monarchy which alone Rome will now accept as the price of her communion. They not only do not recognise it, but their words and their actions most manifestly contradict it. This is, in one word, his justification of his mother from the sin of Schism. If true, it is sufficient: if untrue, he knows of no other.

But should any opponent think these pages worthy of a reply, the writer warns him, at the outset, that he must in fairness discard that old disingenuous trick of using testimonies of the Fathers to the primacy of the Roman See in the episcopal and patriarchal system, in order to prove the full papal supremacy, as now claimed, in a system which is nearly come to pure monarchy. By this method, because the Fathers recognise the Bishop

of Rome as successor of St. Peter, they are counted witnesses to that absolute power now claimed by the Roman pontiff, though they recognise other Bishops, in just the same sense, to be successors of the holy Apostles; or though they call every Bishop's see the see of Peter, as the great type and example of the episcopate. What such an one has to establish in order to justify the Roman Church, and to prove that the English and the Eastern are in Schism, is, that Roman doctrine, as stated by Bellarmine, which is really the key-stone of the whole system, that "Bishops succeed not properly to the Apostles," "for they have no part of the true apostolic authority," but that "all ordinary jurisdiction of Bishops descends immediately from the Pope," and that "the Pope has, full and entire, that power which Christ left on the earth for the good of the Church."^[1] Let this be proved on the testimony of the first six centuries, and if it be true, nothing can be more easy than to prove it, as the contradictory of it is attempted to be proved in the following pages, and all controversy will be at an end. We claim that it should be proved, for even De Maistre, who has put forward this theory with the least compromise, declares, "There is nothing new in the Church, and never will she believe save what she has always believed."^[2]

THE CHURCH OF ENGLAND CLEARED FROM THE CHARGE OF SCHISM.

The course of events, for some time past, has been such as to force upon the most faithful sons of the Church of England the consideration of questions which they would rather have left alone, as long ago settled; for the nature of these questions is such, not to speak of their intricacy and painfulness, as almost to compel the student to place himself, as it were, *ab extra* to that community, which he would rather regard with the unreasoning and unhesitating instinct of filial affection. One of these questions, perhaps the first which directly meets and encounters him, is the charge of Schism brought against the Church of England on account of the events of the sixteenth century, and her actual state of separation from the Latin communion, which has been their result. Time was, and that not long since, when it might have been thought a sort of treason for one who ministers at the altars of the Church of England, and receives by her instrumentality the gift of Life, so much as to entertain the thought, whether there was a flaw in the commission of his spiritual mother, a flaw which, reducing her to the condition of a sect, would invalidate his own sonship. And certainly the treatment of such a question must be most painful to any one, who desires to be obedient and dutiful, and therefore to be at peace. How can it be otherwise, when, instead of eating his daily portion of food in his Father's house, he is called upon to search and inquire whether indeed he have found that house at all, and be not rather a fugitive or an outcast from it. Such, however, is the hard necessity which is come upon us. Let no one imagine that it is our *choice* to speak on such subjects. We are in the case of a beleaguered soldier in an enemy's country; he may not think of peace; he must maintain his post or die; his part is not aggression, but defence: the matter at issue is the preservation of all that he holds dear, or extermination. The question of *schism* is a question of salvation.

But over and above the general course of events which forces us to reconsider this question, circumstances have taken place in the past year

which we may boldly pronounce to be without a parallel in the history of the Church in England since she became divided from Catholic communion. Those who have followed with anxious sympathy that great restorative movement which, for twelve years, has agitated her bosom,—those who have felt with an ever increasing conviction, as time went on, and the different parties consolidated and unfolded themselves, that it was at the bottom a contest for the ancient faith delivered to the saints, for dogmatic truth, for a visible Church, in whom, as in a great sacrament, was lodged the presence of the Lord, communicating Himself by a thousand acts of spiritual efficacy, against the monstrous and shapeless latitudinarianism of the day; against the unnumbered and even unsuspected heresies which have infected the whole atmosphere that we breathe; against, in fine, the individual will of fallen man, under cover of which the coming Antichrist is marshalling interests the most opposite, and passions the most contradictory; and further, those not few nor inconsiderable, we believe, who, by God's grace, owe to the teaching of *one man* in particular a debt they never can repay,—the recovery, perchance, of themselves from some form of error which he has taught them to discern, or the building them up in a faith whose fair proportions he first discovered to them,—these will feel with deeper sorrow than we can express the urgency of the occasion to which we allude. For how, indeed, could the question, whether the Church of England is fallen into schism, or be, as from the laver of their regeneration they have been taught to believe, a member of that one sacred Body in which Christ incarnate dwells,—how could this question be so forced upon their minds, as by the fact that her Champion, whom they had hitherto felt to be invincible, who had seemed her heaven-sent defender, with the talisman of victory in his hands, of whom they were even tempted to think

Si Pergama dextra
Defendi possent, etiam hac defensa fuissent,

that he, who fighting her battles, never met with his equal, unsubdued by any foe from without, has surrendered to his own doubts and fears; self-conquered, has laid down her arms, and has gone over to the camp opposed. Henceforth she has ranged against her those powers of genius and that sanctity of life, to which so many of her children looked as to a certain

omen of her Catholicity. They felt that she who bore such children, must needs be the spouse of God. It is no wonder that many others, of no mean name among us, and whom we could ill afford to spare, have had their doubts and inquietudes determined by such a fact as this. For the first time, I repeat, in the history of the Church of England have earnest and zealous children of hers, who desired nothing but their own salvation and the salvation of others, found no rest for the sole of their feet within her communion. Men who set out with the most single-minded purpose of defending her cause, nay, of winning back to her bosom alienated multitudes, of building her up in a beauty and a glory which she has not yet seen, and one, especially, who has been the soul of that great movement to restore her,—these have now, after years of hard fighting spent in her service, quitted her, and proclaim that all who value their salvation must quit her likewise.

These are some of the special circumstances which force upon the most reluctant the question of Schism. It was the privilege of other days to feed in the quiet pastures of truth. We have to seek the path to Heaven through the wilderness of controversy, where too often "the highways are unoccupied, and the travellers walk through byways." But it is a question which cannot be put off or thrust aside. No instructed Christian, who has any true faith or love, can bear the thought that he is out of the one fold of Christ. The question cannot be put off, for it will brood upon him in his daily devotions and labours; a doubt as to the justice of his cause will paralyse all his exertions. It cannot be thrust aside; for the imputation of heresy on another has no tendency to answer the charge of schism against oneself. It must be met openly, honestly, and without shrinking. The charge of Schism touches immediately the Christian's conscience, for this reason, that, if true, it takes away from his prayers, his motives, his actions, his sufferings, that one quality which is acceptable to Almighty God. Here it is most true, that "all, which is not of faith, is sin:" he who does not believe, at least, that he is a member of the one Church, whatever outward acts he may perform, cannot please his Judge. In the words of one who himself gave his goods to feed the poor, and shed his blood for the testimony of Jesus,^[3] "if such men were even killed for confession of the Christian name, not even by their blood is this stain washed out. Inexpiable and heavy is the sin of discord, and is purged by no suffering. He cannot be a martyr who is not in

the Church; he can never attain to the kingdom, who leaves her with whom the kingdom shall be." "A man of such sort may indeed be killed, crowned he cannot be." Therefore the charge of Schism, when once brought before the reflecting mind, cannot be turned aside,—it must be met and answered: if it is not answered, at least to the conviction of the individual, it leaves upon the whole of his obedience the stain of insincerity, which is fatal. In this respect it is more pressing and imperious, more fatal, even than that of heresy. I observe this, because, in the comments I have seen on the painful departures of friends from among us, and in exhortations not to follow them, it has not seemed to be always recognised. When men leave us on the ground that we are in schism, surely all censure of them, and all defence of ourselves, is beside the mark, which does not meet and rebut this particular accusation. Under this no man can rest: it is useless, it is sinful, to ask him to rest, unless you can remove the imputation. To talk of "disappointment, or a morbid desire of distinction, or impatience under deficiencies, want of discipline, or sympathy in spiritual superiors," and such-like causes, as being those which have impelled a man to the most painful sacrifices, and "in the middle of his days to begin life again," is surely both untrue as regards the individual, and futile as to preventing others doing like him, when the ground of schism among others is alleged by himself, and is felt to lie at the bottom. Could we prove that the Church of England is clear both of enunciating heresy in her formularies, and of allowing it within her pale, it would in no respect answer this charge of schism against her, except so far as the *à priori* presumption, that she who is clear of the one would be clear of the other also. But it would remain to be met and answered specifically.

Moreover, I must confess that this is a point on which I, for one, cannot write in the spirit of a controversialist. I must state, to the best of my poor ability, and to the utmost reach of my limited discernment, not only the truth, but the whole truth. I cannot keep back points which tell against us. Gibbon charges Thomassin with telling one half the truth, and Bingham the other half, in their books upon the ancient discipline of the Church. Whether this be true or not, I cannot, in my small degree, do likewise. I have found Bishop Beveridge, in his defence of the 37th Article, quote, in several instances, part of a paragraph from ancient Fathers, because it told for him, and omit the other part, because it told against him. And, in considering the

celibacy of the clergy, it is usual to find Protestant writers enlarging on the fact, that St. Peter was married; and that the Greek Church has always allowed its parish priests to be married; while they keep out of view that St. Peter's marriage preceded his call, and that the Eastern Church never allowed those who were already in holy orders, to marry, but only to keep those wives which they had taken as laymen. Or again, in deference to the circumstances of the English Church, writers conceal the fact, that the whole Church of the East and West, on the authority, as to the first point, of the express Word of God itself, has never allowed a person who married twice, or who married a widow, to be in holy orders at all. I have observed Bingham, when he treats of celibacy, alluding triumphantly to the biography of St. Cyprian, by Pontius, to prove that an ancient saint, martyr, and bishop, of the third century, was a married man; but taking care to leave out the express notice of Pontius, that, from his conversion, he lived in continence. Those who wish to see on the Roman side another sort of unfairness alluded to in the Advertisement may look to the 6th Chapter of the 1st Book of De Maistre, on the Pope, where they will find a host of quotations to prove the Supremacy, which only prove at the outside the Primacy; and by far the greater number of them might be paralleled by like expressions which are addressed to other bishops, but of which fact no mention is made. They are assumed in a sort of triumphant strain to prove the point in question, while, to the student of antiquity, their weakness, or, sometimes, their irrelevancy, only proves the reverse. This sort of disingenuousness is so common on both sides, that it may be said to be the besetting sin of controversialists. If, however, there be any question in which perfect candour is requisite, it is surely this of schism. Would it not be a most miserable success to be able to deceive oneself, or others, as to whether one is or is not within the covenant of salvation? The special pleader in such a case is surely the most unhappy of all men; for he deprives himself of the greatest of blessings. He seems to win his cause, while he most thoroughly loses it; for if a man be indeed out of the ark of Christ's Church, what benefit can one possibly render him equal to that of bringing him within it? I write, then, with the strongest sense of responsibility on this subject, and shall not be deterred from making admissions, if truth require them, which seem to tell on the other side, and which have accordingly been shrunk from, or slurred over, by our defenders in former times.

And this leads to another consideration. The charge of Schism against the Church of England is, that by rejecting the Papal authority in the sixteenth century, she lost the blessing of Catholic communion, and ceased to belong to that One Body to which salvation is promised. Now, in such a matter, the Church of England must be judged by principles which have been, from the first, and are still, recognised by all Christendom. Whatever obedience we may owe, in virtue of our personal subscription, to articles or other formularies, drawn up in the sixteenth century, it is obvious they can decide nothing here. What I mean will be best shown by an example. Suppose a person were to take the 6th Article, and set upon it a meaning, not at all uncommon in these days, viz. that the Church of England therein declares, that Holy Scripture is the sole standard of faith; and that every man must decide for himself, what is, or is not, contained in Holy Scripture; and that he, searching Holy Scripture for the purpose, can find nothing whatever said about the Papal authority;—it is obvious, that such a mode of arguing would be utterly inadequate either to terminate controversy, or, one would think, to quiet any troubled conscience: for whether or no this be the meaning of the 6th Article, the whole Greek and Latin Church would reject with horror such propositions as the first two put together, as being subversive of the very existence of a Church, and of all dogmatic authority. It is a valid argument enough to an individual to say, You have signed such and such documents, and are bound by them: but if he is in doubt whether the documents themselves be tenable, they cannot be taken to prove themselves. The decision of a province of the Church in the sixteenth century cannot be quoted to prove that that decision is right, for it is the very thing called in question. It is the Reformation itself which is put on trial; it cannot appeal to itself as a witness; it must be content to bring its cause before a judge, whose authority all will admit,—and that judge, need we say, must be antiquity, and the consent of the undivided Church. And the Church of England, it must be admitted, has not shrunk from this appeal. Her often-quoted canon enjoins her ministers, in that part of their duty wherein most is left to their private judgment, "to teach nothing which they wish to be held and believed religiously by the people, save what is agreeable to the doctrine of the Old or New Testament, and what the Catholic Fathers and ancient Bishops, have collected out of that very doctrine." Thus she spoke in the year 1571. The Church had then passed through fifteen centuries of a chequered, but superhuman, and most

marvellous existence. Her continuous life implies a continuity of principles, ruling her from the beginning; and any controversy which affects her well-being, as does that concerning the integrity or loss of a great member, must be judged according to those principles. The present position of the Church of England may be merely a provisional one, I firmly believe that such is the fact; but if she is to claim the allegiance of her children as a part of the Catholic Church, it must be proved that such her position is tenable upon the principles which directed that Church when undivided. In short, I propose honestly, though briefly, to meet this imputation of schism by an appeal to the authority of the first six centuries: an authority, which no Roman Catholic can slight or refuse.

Let us go back to the first period at which the universal Church, emerging from the fires of persecution, is found acting as one body. United, indeed, it had ever been from the day of Pentecost, in charity, in doctrine, in sacraments, in communion. The Christian people, scattered throughout the wide precincts of the Roman empire, and speaking its various tongues, was one in heart and spirit—"A peculiar people," like none other: the Bread which they ate, and the Cup which they drank, made them One living Body. But so long as the Church was engaged in a fierce and unrelenting conflict with the Paganism and despotism of the empire, she could hardly exhibit to the world her complete outward organization. So, although in the intervals of persecution, important provincial councils had been held, and though it was felt to be necessary for discipline that local synods should take place twice every year, yet not until the year 325, at the Council of Nicea, does the whole Church meet in representation; the immediate cause of that assemblage being a heresy so malignant as to threaten her existence, and which could be repressed by no less energetic means. That is a strongly marked and important point in her existence, throwing light upon the centuries preceding, and establishing irremovable landmarks for those ensuing, at which we have full means for judging what her constitution and government were. As the decrees of the 318 Fathers established for ever the true doctrine concerning the Eternal Son, so do they offer an imperishable and unambiguous witness concerning the discipline and hierarchy of the Church. What was schism then, is schism now; what was lawful and compatible with Christian Sonship and privileges then, is so now. What then is the view they present us with? We find the Bishops throughout the

whole world recognised, without so much as a doubt, to be the successors of the Apostles, invested with the plenitude of that royal Priesthood which the Son of God had set up on the earth in His own Person, and from that Person had communicated to His chosen disciples, and so possessed of whatever authority was necessary to govern the Church. Thus spoke a fresh and unbroken tradition, so universal and so unquestionable that no other voice was heard beside. Thus the Episcopal power may be safely recognised as of divine appointment: in truth it is scarcely possible to have stronger evidence than we have of this. One of the most learned of those who are opposed to us on the charge of schism, thus sums up the decisions "of all the Fathers and all the Councils of the first ages." "The Bishop represents Christ, and stands in his place on earth. As therefore the Priesthood of Christ embraces all sacerdotal authority and complete power to feed the flock, so that while we may indeed distinguish and define the various powers included in that fullness and perfection, yet it is a great crime to dis sever and rend them in any way from each other, just as we distinguish without dividing the attributes and perfections of the Godhead itself; so the Episcopate in its own nature contains the fullness of the Priesthood, and the perfection of the Pastoral office. For Christ received the perfection of the Priesthood from His Father, when He was sent by Him. Moreover the perfection of the Priesthood, or both the Episcopal powers, (*i.e.* the Sacerdotal and the Pastoral,) He gave at once to His Apostles when he sent them as He himself was sent by the Father. Lastly, that same perfection they transmitted to Bishops, sending them as they themselves were sent by Christ." "Whence Bishops are Fathers by the most noble participation of divine Fatherhood which is on earth; so that here that expression of Paul is true—'From whom every Fatherhood in heaven and earth is named.' For no greater Fatherhood is there on the earth than the Apostolical and the Episcopal." *Thomassin*, Part I. Liv. i. ch. 2.

And, viewed in itself, this power was sovereign and independent in every individual Bishop, who was the spouse of the Church, the successor of the Apostles, and of Peter, the centre of unity; able, moreover, to communicate this authority to others, and to become the source of a long line of spiritual descendants. But was this power in practice exercised in so unmodified a form? Would there not have been not only imminent danger, but almost certainty, that a power unlimited in its nature, committed to so large a body

of men, who might become indefinitely more numerous, yet were each independent centres of authority, instead of tending to unity would produce diversity? Accordingly we find, together with the apostolical authority, admitted to be lodged in the Episcopal body in general, a preponderating influence exercised by certain sees, viz. by Rome in the West, and by Alexandria and Antioch in the East. Under these leading Bishops are a great number of metropolitans; and others, again, like the Bishops of Cyprus, have their own metropolitan, but are not subordinate to either of the three great sees. Next to these, rank the Bishops of Ephesus, Cesarea, and Heraclea, who preside respectively over the provinces of Asia, Cappadocia, and Thrace, and were afterwards called Exarchs. And the source of this preponderating influence is to be traced to the fact that the Apostles laid hold of the principal cities, and founded Churches in them, which became centres of light to their several provinces, and naturally exercised a parental authority over their children. The three great Bishops, though not yet called Patriarchs, or even Archbishops, seem to have exercised all the power of Patriarchs. No general Council would be binding without their presence in person, or by deputy, or their subsequent ratification. Moreover, among these, the Bishop of Rome, as successor of St. Peter, has a decided preeminence. What the extent of that preeminence was, had not yet been defined; but it is very apparent, and acknowledged in the East as well as in the West. It does not seem, indeed, that his authority differed in *kind*, but only in *degree*, from that of his brethren, especially those of Alexandria and Antioch. The Apostolical Canons, more ancient than the Council of Nice, and representing the whole East, say:—"The Bishops of every nation must acknowledge him who is first among them, and account him as their head, and do nothing of consequence without his consent; but each may do those things only which concern his own parish, (*i.e.* diocese,) and the country places which belong to it. But neither let him (who is the first) do anything without the consent of all, for so there will be unanimity, and God will be glorified through the Lord Jesus Christ." Canon 34. The Council of Nicea mentions the sees of Alexandria, Antioch, and Rome in precisely similar terms:—"Let the ancient customs be maintained, which are in Egypt and Libya, and Pentapolis; according to which the Bishop of Alexandria has authority over all those places. For this is also customary to the Bishop of Rome. In like manner in Antioch, and in the other provinces, the privileges are to be preserved to the Churches." Canon 6. That is, as it would seem, let

the Bishop of Alexandria have the power to consecrate Bishops in the three provinces of his Patriarchate, for the Bishop of Rome does the same in his, *i.e.* in the suburbicarian provinces, or in Italy, south of the province of Milan, and in Sicily. This precedence or prerogative of Rome, to whatever extent it reached, was certainly, notwithstanding the famous 28th Canon of Chalcedon, not either claimed or granted merely because Rome was the imperial city. It was explicitly claimed by the Bishop of Rome himself, and as freely conceded by others to him, as in a special sense successor of St. Peter. From the earliest times that the Church comes before us as an organized body, the germ at least of this preeminence is observable. From the very first, the Roman Pontiff seems possessed himself, as from a living tradition which had thoroughly penetrated the local Roman Church, with a consciousness of some peculiar influence he was to exercise on the whole Church. This consciousness does not show itself here and there in the line of Roman Pontiffs, but one and all, whatever their individual characters might be, seem to have imbibed it from the atmosphere which they breathed. St. Victor, and St. Stephen, St. Innocent, St. Leo the Great, and St. Gregory, are quite of one mind here. That they were the successors of St. Peter, who himself sat and ruled and spoke in their person, was as strongly felt, and as consistently declared, by those Pontiffs who preceded the time of Constantine, and who had continually to pay with their blood the price of that high preeminence, as by those who followed the conversion of the empire, when the honour of their post was not accompanied by so much danger. We are speaking now, be it remembered, of the feeling *which possessed them*. The feeling of their brother Bishops concerning them may have been less definite, as was natural: but, at least, even those who most opposed any arbitrary stretch of authority on their part, as St. Cyprian, fully admitted that they sat in the See of Peter, and ordinarily treated them with the greatest deference. This is written so very legibly upon the records of antiquity, that I am persuaded any one, who is even very slightly acquainted with them, cannot with sincerity dispute it. I cannot think Mr. Newman has the least overstated the fact when he says, "Faint they (the ante-Nicene Testimonies to the authority of the Holy See) may be one by one, but at least they are various, and are drawn from many times and countries, and thereby serve to illustrate each other, and form a body of proof. Thus, St. Clement, in the name of the Church of Rome, writes a letter to the Corinthians, when they were without a Bishop. St. Ignatius, of Antioch,

addresses the Roman Church, and it only out of the Churches to which he writes, as 'the Church which has the first seat in the place of the country of the Romans.' St. Polycarp, of Smyrna, betakes himself to the Bishop of Rome on the question of Easter;" (but the Pope, St. Anicetus, and he, not being able to agree as to the rule of keeping Easter, agreed to retain their several customs; a fact which is as much opposed to the present notion of the Roman Supremacy, as any fact can well be.) "The heretic, Marcion, excommunicated in Pontus, betakes himself to Rome. Soter, Bishop of Rome, sends alms, according to the custom of his Church, to the Churches throughout the empire, and, in the words of Eusebius, 'affectionately exhorted those who came to Rome, as a father his children.' The Montanists, from Phrygia, come to Rome to gain the countenance of its Bishop. Praxeas, from Africa, attempts the like, and for a while is successful. St. Victor, Bishop of Rome, threatens to excommunicate the Asian Churches. St. Irenæus speaks of Rome, as 'the greatest Church, the most ancient, the most conspicuous, and founded and established by Peter and Paul,' appeals to its tradition, not in contrast, indeed, but in preference to that of other Churches, and declares that 'in this Church every Church—that is, the faithful from every side, must meet,' or 'agree together, *propter potiolem principalitatem*.' 'O Church, happy in its position,' says Tertullian, 'into which the Apostles poured out, together with their blood, their whole doctrine.' The Presbyters of St. Dionysius, Bishop of Alexandria, complain of his doctrine to St. Dionysius, of Rome; the latter expostulates with him, and he explains. The Emperor Aurelian leaves 'to the Bishops of Italy and of Rome' the decision, whether or not Paul, of Samosata, shall be dispossessed of the see-house at Antioch. St. Cyprian speaks of Rome as 'the See of Peter, and the principal Church, whence the unity of the Priesthood took its rise, ... whose faith has been commended by the Apostles, to whom faithlessness can have no access.' St. Stephen refuses to receive St. Cyprian's deputation, and separates himself from various Churches of the East. Fortunatus and Felix, deposed by St. Cyprian, have recourse to Rome. Basilides, deposed in Spain, betakes himself to Rome, and gains the ear of St. Stephen."^[4]

It must be observed that the *extent* of this authority, in the Chief See, has not been defined; but, whatever it was, it did not interfere with the divine right of the Bishops to govern each in his own diocese. They derived their

authority by transmission from the Apostles, as the Bishop of Rome from St. Peter; the one was as much recognised as the other. They were not his *delegates*, but his *brethren*. Frater and Co-episcopus *they style him*, as he styles them, for hundreds of years after the Council of Nicea; owing him, indeed, and willingly rendering him the greatest deference, but never so much as imagining that their authority was derived from him. This fact, too, lies upon the face of all antiquity, and is almost too notorious to need proof. If, however, any be wanted, it is found in the names which Bishops bore both then, and for a long time afterwards, and in their mode of election and their jurisdiction. For their names: "It must first be confessed," says a very learned Roman Catholic, who, in his humility, shrunk from the Cardinalate offered to him for his services to the papal see, "that the name of Pope, of Apostle, of Apostolic Prelate, of Apostolic See, was still common to all Bishops, even during the three centuries which elapsed from the reign of Clovis to the empire of Charlemagne;" and he adds presently: "These august names are not like those vain and superficial titles with which the pride of men feeds itself; they are the solid marks of a power entirely from Heaven, and of a holiness altogether Divine."^[5] Indeed, the view which every where prevailed was that so admirably expressed by St. Cyprian: "Episcopatus unus est, cujus a singulis in solidum pars tenetur."^[6] "The Episcopate is one; it is a whole in which each enjoys full possession." St. Isidore, of Seville, says: "Since also the other Apostles received a like fellowship of honour and power with Peter, who also were scattered throughout the whole world, and preached the Gospel; whom, at their departure, the Bishops succeeded, who are established throughout the whole world in the seats of the Apostles."^[7] But Pope Symmachus (A.D. 498-514) has expressed the equality and unity of the Episcopate and Apostolate between the Pope and all Bishops, by the highest and most sacred similitude which it is possible to conceive. "For inasmuch as after the likeness of the Trinity, whose power is one and indivisible, the priesthood is one in the hands of various prelates, how suits it that the statutes of the more ancient be broken by their successors?"^[8] We are told by the same author: "Pope Hormisdas (A.D. 514-523) prescribed, and all the Bishops of the east subscribed, after the Patriarch John of Constantinople, a formulary of faith and of Catholic Communion, where, among other remarkable points, this is worthy of particular attention:—that as all Churches make but one Church, so all the thrones of the Apostolate, and all the Sees of the Episcopate,

spread through all the earth, are but one apostolic see, inseparable from the see of Peter." This is the view of St. Augustin, expressed again and again in his writings, especially when he is explaining those remarkable words of our Lord to St. Peter, on which Roman Catholics ground the *scriptural* proof of his Primacy. "For it is evident that Peter, in many places of the Scriptures, represents the Church, (*personam gestet Ecclesiæ*) chiefly in that place where it is said, 'I give unto thee the keys of the kingdom of Heaven. Whatsoever thou shalt bind on earth, shall be bound in Heaven: and whatsoever thou shalt loose on earth shall be loosed in Heaven.' What! did Peter receive those keys, and Paul not receive them? Did Peter receive them, and John and James not receive them, and the rest of the Apostles? Or are not those keys in the Church, where sins are daily remitted? But since in meaning hinted, but not expressed, (*in significatione*), Peter was representing the Church, what was given to him singly, was given to the Church. So, then, Peter bore the figure of the Church: the Church is the body of Christ."^[9] So St. Chrysostom: "But when I speak of Paul, I mean not only him, but also Peter, and James, and John, and all their choir. For as in a lyre there are different strings, but one harmony, so, too, in the choir of the Apostles, there were different persons, but one teaching; since one, too, was the Musician, even the Holy Spirit, who moved their souls. And Paul signifying this, said: 'Whether, therefore, it were they or I, so we preach.'"^[10] How little, on the one hand, the pre-eminence of St. Peter's see derogated from the apostolicity of other Bishops, or, on the other hand, their distinct descent and jurisdiction hindered them from paying due deference to the Chief See, is apparent likewise in these words of St. Jerome: "But, you say, the Church is founded upon Peter; although, in another place, this self-same thing takes place upon all the Apostles, and all receive the keys of the kingdom of Heaven, *and the strength of the Church is consolidated equally upon them*: nevertheless, for this reason, out of the twelve one is selected, that, by the appointment of a head, the occasion of Schism may be taken away."^[11] Thomassin doubts whether at the Council of Nicea, or even at that of Antioch, sixteen years afterwards, the name even of Archbishop was yet in use; the highest title used in those two Councils being that of Metropolitan. St. Epiphanius quotes a letter of Arius to Alexander, of Alexandria, in which he only gives him the quality of Pope and Bishop, but nowhere that of Archbishop.

So much for the equality of the names of Bishops in the fourth century, which recognises the essential equality and unity of their office. The laws in force respecting their consecration and jurisdiction are as decisive. Every Bishop, after being elected by the Clergy and people, and the assembled provincial Bishops, was consecrated by the Metropolitan of his province, except, indeed, in the Patriarchate of Alexandria, where the Primate, as we have seen, and not the Metropolitans under him, consecrated all Bishops. Where a Metropolitan had no immediate superior, in case of a vacancy, the Bishops of his own province consecrated him, as in the case of Carthage. Whatever might be the particular privileges of Patriarchs and Metropolitans, as a general rule, no one Bishop had direct jurisdiction in the diocese of another. The Bishops of the great sees, specially Rome, Alexandria, and Antioch, announced their accession to each other, together with a profession of the orthodox faith. But as for any jurisdiction emanating from Rome to the great Bishops of the east, such a thing was never even imagined. Let us even rest the whole question on this important point, for it is absolutely necessary to the Papal theory; and I do not think any vestige of such a doctrine can be found in the first six centuries. At least, let it be shown; for, to assert it in the face of Canons which imply a system the very reverse of it, is merely begging the whole question. That in cases of difficulty, or disputed succession, or heresy, or schism, the voice of the Bishop of Rome would have great weight, is, indeed, indisputable. When the ship of the Church was in distress, whom should we expect to see at the rudder but St. Peter? Thus St. Jerome, himself baptized at Rome, naturally looks to Rome in this difficulty. Mr. Newman says:^[12] "The divisions at Antioch had thrown the Catholic Church into a remarkable position; there were two Bishops in the see, one in connexion with the East, and the other with Egypt and the West,—with which, then, was Catholic Communion? St. Jerome has no doubt upon the subject. Writing to St. Damasus, he says: 'Since the East tears into pieces the Lord's coat, *and foxes lay waste the vineyard of Christ, so that among broken cisterns, which hold no water, it is difficult to understand where the sealed fountain and the garden inclosed is*, therefore by me is the chair of St. Peter to be consulted, and that faith which is praised by the Apostle's mouth, *thence now seeking food for my soul where of old I received the robe of Christ. Whilst the bad children have wasted their goods, the inheritance of the Fathers is preserved uncorrupt among you alone. There the earth from its fertile*

bosom returns the pure seed of the Lord a hundred fold: here the grain buried in the furrows degenerates into darnell and tares. At present the Sun of Righteousness rises in the West; but in the East that fallen Lucifer hath placed his throne. You are the light of the world: you the salt of the earth: you the vessels of gold and silver: but here the vessels of earth or wood await the iron rod and the eternal flame.' Therefore, though your greatness terrifies me, yet your kindness invites me. From the Priest the sacrifice claims salvation; from the Shepherd the sheep claims protection. Let us speak without offence: I court not the Roman height: I speak with the successor of the Fisherman, and the disciple of the Cross. I, who follow none as my chief but Christ, am associated in communion with thy blessedness; that is, with the See of Peter. On that rock the Church is built I know. Whoso shall eat the Lamb outside that house is profane.... I know not Vitalis (the Apollinarian); Meletius I reject; I am ignorant of Paulinus. Whoso gathereth not with thee, scattereth; that is, he who is not of Christ is of Antichrist."[\[13\]](#)

Considering all the circumstances of the case, no one can wonder at St. Jerome's application. When it is remembered that the Roman See, up to that time, had been free from all suspicion of heresy, and that the Arian controversy was the one in question, and that he himself, of full manhood, had been baptized, and had lived at Rome, the force of his language is hardly surprising. His words certainly prove, what, I suppose, no student of antiquity can doubt, the Primacy of the Roman See: but could there be a greater unfairness than to apply their bare letter to a state of things totally changed? or to consider expressions proving the *primacy* of Rome, as claimed in the fourth century, to prove equally a *supremacy* as claimed in the nineteenth, which is as different from the former as one thing can well be from another. This very St. Meletius, a man of pre-eminent sanctity of life, the ordainer of St. Chrysostom, dies, it would appear, out of communion with Rome, and has ever been accounted a saint in the Western as well as in the Eastern Church.

But to recur to the point of jurisdiction at the time of the Nicene Council. It is beyond question, both from the acts of that Council, and from the Apostolic Canons, which represent the Eastern Church in the second and third centuries, that, whatever the pre-eminence of Rome might consist in, there was no claim whatever to confer jurisdiction on Bishops out of the

Roman Patriarchate, then comprising Italy, south of Milan, and Sicily. Even differences, any where arising, were to be settled in Provincial Councils. "It is necessary to know, that, up to the Council of Nicea, all ecclesiastical affairs had been terminated in the Councils of each Province; and there had been but very few occasions in which it had been necessary to convoke an assembly of several Provinces. The Council of Nicea, even, only speaks of Provincial Councils, and orders that all things should be settled therein."^[14] The testimony and conduct of St. Cyprian will illustrate the Roman Primacy, to which Mr. Newman claims him as a witness. And such he is beyond doubt. In his fifty-fifth letter, which begins, "Cyprian to his brother Cornelius, greeting;" he complains bitterly to that Pope that Felicissimus and his party "dare to set sail, and to carry a letter from schismatical and profane persons to the see of Peter, and to the principal Church, whence the unity of the priesthood took its rise; nor consider that they are the Romans whose faith had been praised by the preaching of the Apostle, to whom faithlessness can have no access." This Mr. Newman considers a pretty strong testimony in his "cumulative argument" for the authority of Rome. It would be as well, however, to go on a little further, and see what was the cause of St. Cyprian's vehement indignation. It was, that Felicissimus ventured *to appeal to Pope Cornelius*, when his cause had already been heard and settled by St. Cyprian, at Carthage. "But what was the cause of their coming and announcing that a Pseudo-Bishop had been made against the Bishops? For, either they are satisfied with what they have done, and persevere in their crime, or, if they are dissatisfied, and give way, they know whither they may return. For, since it has been determined by all of us, and is both equitable and just, that the cause of every one be heard there where the crime has been committed, and *to every shepherd a portion of the flock is allotted, which each one rules and governs, as he is to give an account of his doings to the Lord*, it is certainly behoving that those over whom we preside should not run about, nor break the close harmony of Bishops with their deceitful and fallacious rashness, but should plead their cause where they may find both accusers and witnesses of their crime; *unless to a few desperate and abandoned men the authority of the Bishops seated in Africa seem less*, who have already judged concerning them, and have lately condemned, by the weight of their sentence, their conscience, bound by many snares of crimes. Their cause has been already heard, their sentence already pronounced; nor is it becoming to the judgment of priests to be

reprehended by the levity of a fickle and inconstant mind, when the Lord teaches and says, 'Let your conversation be yea, yea; nay, nay.'" Let any candid person say, whether he who so wrote to one whom he acknowledged as the successor of St. Peter, could have imagined that there was a Divine right in that successor to re-hear not only this, but all other causes; to reverse all previous judgments of his Brethren by his single authority; nay, more, to confer on all those Brethren their jurisdiction "by the grace of the Apostolic See."^[15]

Another letter of St. Cyprian to another Pope, St. Stephen, will set forth both his view of the Primacy, and of the Episcopal relation to it. He wishes St. Stephen to write a letter to the people of Arles, by which their actual Bishop Marcian, who had joined himself to the schismatic Novatian, might be excommunicated, and another substituted for him. This alone shows how great the authority of the Bishop of Rome in such an emergency was. But the tone of his language is worth considering. It is just such incidents as these which are made use of by Roman Catholic controversialists in late times to justify the full extent of Papal power now claimed.^[16] "Cyprian to his brother Stephen, greeting. Faustinus, our colleague at Lyons, dearest brother, hath more than once written to me, signifying what I know has certainly been reported to you also, both by him, and by the rest of our brother-Bishops, in that province, that Marcian of Arles, has joined himself to Novatian, and has departed from the unity of the Catholic Church, and from the agreement of our body and priesthood.... This matter it is our duty to provide against and remedy, most dear brother, we, who considering the Divine clemency, and holding the balance of the Church's government, so exhibit to sinners our vigorous censure as not to deny the medicine of Divine goodness and mercy to the restoration of the fallen and the healing of the wounded. Wherefore it behoves you to write a very explicit letter to our fellow Bishops in the Gauls, that they may not any longer suffer our order (*collegio nostro*) to be insulted by Marcian, obstinate, haughty, the enemy both of piety to God, and of his brethren's salvation.... For, therefore, most dear brother, is the numerous body of priests joined together in mutual concord, and the bond of unity, that *if any one of our order* attempt to make a heresy, and to sever and lay waste the flock of Christ, the rest may fly to the rescue, and, like useful and merciful shepherds, collect the Lord's sheep into a flock.... For, although we are many shepherds, yet we feed one flock;

and we ought to collect and cherish all those sheep which Christ sought with His own blood and passion.... For we must preserve the glorious honour *of our predecessors*, the blessed Martyrs, Cornelius and Lucius," (the last Popes,) "whose memory we indeed honour, but which you much more, most dear brother, who are become their successor, ought to distinguish and preserve by your weight and authority. For they being full of the spirit of God, and made glorious martyrs, determined that reconciliation was to be granted to the lapsed, and set down in their letters, that, after a course of penitence, the advantage of communion and peace was not to be refused them. *Which thing we all have everywhere entirely determined.* For there could not be in us a difference of judgment in whom there is One Spirit." Now, might it not be stated, that St. Cyprian wrote to Pope Stephen, to request him to depose Marcian, Bishop of Arles? But how much is the inference from this fact modified by the language of Cyprian himself? It is just such a letter as an Eastern Primate would have written to the Patriarch of Alexandria, or of Antioch, to request his interference at a dangerous juncture. It bears witness, not to the present Papal, but to the Patriarchal, system. It tallies exactly with the spirit of him who wrote elsewhere, to the lapsed, "Our Lord, whose precepts and warnings we are bound to observe, regulating the honour of the Bishop, and the constitution of his Church, speaks in the Gospel, and says to Peter, 'I say unto thee that thou art Peter,' &c. Thence, according to the change of times and successions, the ordination of Bishops and the constitution of the Church has descended, *so that the Church is established upon the Bishops, and every act of the Church is directed by the same, its governors.* This being established by Divine law,"^[17] &c. It is evident that, if the see of Peter, so often referred to by St. Cyprian, means the local see of Rome, it also means the see of every Bishop who holds that office, whereof Peter is the great type, example, and source.

But it was reserved for a more celebrated controversy, fully to bring out St. Cyprian's view of the relation of the Bishop of Rome to the rest of the Episcopal body: I mean, of course, the controversy whether heretics should be admitted into the Church by rebaptization or by the imposition of hands. I most fully believe, be it observed, that Cyprian acknowledged the Roman Primacy, that he admitted certain high prerogatives to be lodged in the Roman Pontiff, as St. Peter's successor, which did not belong to any other

Bishop. It is this very thing which makes his conduct the more remarkable. He took a very strong view on one side of the controversy in question: and St. Stephen took an equally strong one on the other. St. Stephen, we all know, turned out to be right. That fervent Pontiff, it may be remarked, when St. Cyprian would not give up his view, seemed inclined to treat him much as St. Gregory the Seventh did a refractory Emperor, or St. Innocent the Third, the dastard tyrant John. This may be very satisfactory to the modern defenders of Papal omnipotence, but St. Cyprian's conduct is not so at all. St. Cyprian called a Council of Bishops of the provinces of Carthage and Numidia; they attended to the number of seventy-one, and decided that heretics should be rebaptized. St. Cyprian informs the Pope of the decision of himself and his colleagues. After saying that they had found it necessary to hold a council, he proceeds—^[18]"But I thought I ought to write to you and confer with your gravity and wisdom concerning that especially which most belongs to the authority of the priesthood, and to the unity alike and dignity of the Catholic Church derived from the ordering of a Divine disposition.... This, most dear Brother, we have brought to your knowledge on account both of the honour we share with you, and of our single-hearted affection, believing that what is both religious and true is acceptable to you also according to your true religion and faith. But we know that some are unwilling to give up an opinion they have once imbibed, nor easily change their mind; but, without interruption to the bonds of peace and concord with their colleagues, retain certain peculiarities which have once grown into usage among themselves." (Such is the manner in which St. Cyprian mentions a judgment deliberately expressed by a Pope on a matter of high discipline, which involved a point of faith.) "In which matter we too do violence and give the law to no one, inasmuch as *every Bishop has the free choice of his own will in the administration of the Church, as he will give an account of his acts to the Lord.*" St. Stephen received this decision of the African Council so ill, that he would not even see the Bishops who brought it, nor allow the faithful to offer them common hospitality. So important in his eyes was the matter in dispute. St. Cyprian reports his answer in a letter to his Brother-Bishop Pompeius, in which he says, ^[19]"Although we have fully embraced all that is to be said concerning the baptizing of heretics, in the letters of which we have sent to you copies, most dear Brother, yet, because you desired to be informed what answer our Brother Stephen sent me to our letters, I send you a copy of his rescript, after reading which you

will more and more mark his error, who attempts to assert the cause of heretics against Christians and against the Church of God. For amongst other either proud or impertinent or inconsistent remarks, which he has written rashly and improvidently, &c.... But what blindness of mind is it, what perverseness to refuse to recognise the unity of the faith coming from God the Father and the tradition of Jesus Christ our Lord and God.... But since no heresy at all, nor indeed any schism, can possess outside (the Body) the sanctification of saving baptism, why has the harsh obstinacy of our Brother Stephen burst forth to such a degree?" &c.... "Does he give honour to God, who, the friend of heretics and the enemy of Christians, deems the priests of God, maintaining the truth of Christ and the unity of the Church, worthy of excommunication?" St. Stephen had inflicted this on the African prelates, until they should give up their judgment on the point in question.... "Nor ought the custom, which has crept in *among certain persons*, to hinder truth from prevailing and conquering. For custom without truth is but old error."... "But it is hurried away by presumption and contumacy that a person rather defends his own perverseness and falsity than accedes to the right and truth of another. Which thing the blessed apostle Paul foreseeing, writes to Timothy and warns, that a Bishop must not be quarrelsome, nor contentious, but gentle and teachable. Now he is teachable, who is mild and gentle to learn patiently. For a Bishop ought not only to teach, but also to learn, because he teaches better who daily improves and profits by learning better." Even as we copy this language used concerning a Pope by a great Bishop and Martyr of the third century, who elsewhere writes, ^[20]"That our Lord built His Church upon Peter alone, and though He gave to all the apostles an equal power, yet in order to manifest unity He has by His own authority so placed the source of the same unity as to begin from one;" we feel the contrast to be almost overpowering with the tone in which the first Patriarch of the Latin Church, however good his cause might be, would now venture to address the Supreme Pontiff. Towards the conclusion of this letter he says, instead of admitting that the Pope's judgment terminated the matter—"This now the priests of God ought to do, preserving the Divine precepts, so that if in anything truth has been shaken and tottered, we may return to the fountain-head of the Lord, and to the evangelical and apostolical tradition, and that the rule of our acting may spring thence, whence its order and origin arose."

After receiving the Pope's rescript, and his excommunication, St. Cyprian convoked another Council of the three provinces of Africa, Numidia, and Mauritania, which was held at Carthage on the 1st of Sept. 256. It was attended by eighty-five Bishops, among whom were fifteen Confessors, beside Priests and Deacons, and a great part of the people. St. Cyprian opened it, observing: "It remains for us each to deliver our sentiments on this matter, judging no one, nor removing any one, if he be of a different opinion, from the right of Communion. *For no one of us sets himself up to be a Bishop of Bishops, or by fear of his tyranny compels his colleagues to the necessity of obedience, since every Bishop according to his recognised liberty and power possesses a free choice, and can no more be judged by another than he himself can judge another. But let us all await the judgment of our Lord Jesus Christ, who singly and alone has the power both of setting us up in the government of His Church, and of judging our proceedings.*"^[21] The Bishops delivered their judgments *seriatim*, finishing with St. Cyprian, and unanimously ratified what they had agreed upon before, that heretics should be admitted into the Church by baptism, and not merely by the imposition of hands: and thus an African Council of the third century treated a judgment of the Pope, and his sentence of excommunication until they altered their practice.

But these last words of St. Cyprian are so remarkable in themselves, and have such a bearing on the present Papal claims, that they deserve further notice. Now, lest we should imagine that St. Cyprian was hurried away by the ardour of his defence of a favourite doctrine, and his sense of the Pope's severity, into unjustifiable expressions concerning the rights of Bishops, it so happens that we possess the comment of the greatest of the Fathers on these very words. St. Augustin, writing 140 years after, and fully agreeing with the judgment of Pope Stephen, as had the whole Church finally, quotes the whole passage. "'It remains for us each to deliver our sentiments on this matter, judging no one, nor removing any one, if he be of a different opinion, from the right of communion.'^[22] There he not only permits me without loss of communion further to seek the truth, but even to be of a different judgment. 'For no one of us,' saith he, 'sets himself up to be a Bishop of Bishops, or by fear of his tyranny compels his colleagues to the necessity of obedience.' What can be more gentle? What more humble? Certainly no authority deters us from seeking what is the truth: 'since,' he

says, 'every Bishop according to his recognised liberty and power possesses a free choice, and can no more be judged by another than he himself can judge another:' certainly, I imagine, in those questions which have not yet been thoroughly and completely settled. For he knew how great and mysterious a sacrament the whole Church was then with various reasonings considering, and he left open a freedom of inquiry, that the truth might by search be laid open.... I cannot by any means be induced to believe that Cyprian, a Catholic Bishop, a Catholic Martyr, and the greater he was the more in every respect humbling himself, that he might find grace before God, did, especially in a holy Council of his colleagues, utter with his mouth other than what he carried in his heart, particularly as he adds—'But let us all await the judgment of our Lord Jesus Christ, who singly and alone has the power both of setting us up in the government of His Church, and of judging our proceedings.' Under appeal then to so great a judgment, expecting to hear the truth from his colleagues, should he offer them the first example of falsehood? God avert such a madness from any Christian, how much more from Cyprian. We possess then a free power of inquiry, admitted us by Cyprian's own most gentle and true language."

Who can conclude otherwise than that St. Augustin in the year 400, as St. Cyprian in the year 256, was utterly ignorant of any such power as is now claimed for the See of Rome, under cover of that original Primacy to which both these great saints have borne indubitable witness? For the words of St. Cyprian, attested and approved by St. Augustin, contain the most explicit denial of that power lodged in the see of Rome as distinct from an Œcumenical Council, by which alone, if at all, the Church of England has been declared schismatical and excommunicate.

These are Bishops of the West speaking, but the East also must give its voice. St. Dionysius of Alexandria, and many other Eastern Prelates, among the rest Firmilian, Metropolitan of Cesarea, in Cappadocia, supported St. Cyprian on the question of rebaptization. The latter had been informed of St. Stephen's strong judgment and decided proceedings in the matter, who had threatened to separate the Bishops of the East also from his communion, if they did not comply with his rule. Firmilian wrote a long letter to Cyprian, which contains very remarkable expressions. He alludes in it more than once to the Primacy of St. Peter, and to that of Stephen as descending from him. ^[23]"But what is the error, and how great the blindness

of him (*i.e.* the Pope) who says, remission of sins can be given in the meetings of heretics, nor remains in the foundation of the one Church which was once fixed by Christ upon the rock, may be hence understood, because to Peter alone Christ said, Whatsoever thou shalt bind on earth shall be bound in heaven, and whatsoever thou shalt loose on earth shall be loosed in heaven; and again, in the Gospel, when on the Apostles alone Christ breathed and said, Receive the Holy Ghost: whose sins ye remit they are remitted, and whose ye retain, they are retained. *Therefore the power of remitting sins was given to the Apostles and the Churches which they, being sent by Christ, set up, and to the Bishops who have succeeded them by ordination in their stead....* And here I am justly indignant at this so open and manifest folly of Stephen, because, glorying as he does in the rank of his Episcopate, and maintaining that he holds the succession of Peter, upon whom the foundations of the Church were laid, he introduces many other rocks, and sets up new buildings of many Churches, while he affirms, on his own authority, that Baptism is in them.... Nor does he perceive that the truth of the Christian rock is clouded over by him, and in a manner abolished, who thus betrays and deserts unity.... You Africans can say against Stephen, that, when the truth became known to you, you relinquished an erroneous custom. But we join custom also to truth, and to the custom of the Romans oppose a custom indeed, but that of truth, holding from the beginning this which has been delivered down from Christ, and from the Apostles." He had said before, "One may know that those who are at Rome do not in all things observe what has been delivered down from the beginning, and vainly allege the authority of the Apostles, even by this, that in celebrating Easter, and in many other sacred rites, one may see there is among them certain variations; nor are all things there kept as they are kept at Jerusalem; just as in very many other provinces also, according to the diversity of places and names, there are variations; nor yet on this account have the peace and unity of the Catholic Church ever been departed from. Which now Stephen has dared to do, breaking peace towards you, which his predecessors always kept with you, in reciprocal love and honour; casting, too, shameful reproach (*infamans*) on the blessed Apostles, Peter and Paul, as if they had handed this down, &c." The letter concludes with an apostrophe to Stephen, which only a regard to truth induces us to quote, so painful is its vehemence, though it proves *ex abundanti* the point we are upon: "And Stephen is not ashamed to assert this, that remission of sins can

be given through those who are themselves in all their sins.... But thou art worse than all heretics; for whilst many, acknowledging their error, come to thee thence to receive the true light of the Church, thou assistest the errors of those so coming.... Nor understandest that their souls will be demanded at thy hand, when the day of judgment is come, who to the thirsting hast denied the Church's draught, and hast been the cause of death to those who would live. And moreover thou art indignant! See with what ignorance thou venturdest to censure those who strive for the truth against falsehood. For who had most right to be angry at another; he who supports the enemies of God, or he who argues for the truth of the Church against him who supports God's enemies? except that it is evident that the ignorant are also passionate and wrathful, whilst, through lack of wisdom and discourse, they readily betake themselves to passion, so that it is of none other than thee that Holy Scripture says, 'The passionate man prepares quarrels, and the wrathful man heaps up sins;' for what quarrels and dissensions hast thou caused through the Churches of the whole world! But how great a sin hast thou heaped upon thyself, *when thou didst cut thyself off from so many flocks; for thou hast destroyed thyself. Do not be deceived. Since he is the true schismatic who has made himself an apostate from the communion of the Church's oneness; for whilst thou dost fancy that all can be excommunicated by thee, thou hast excommunicated thyself alone from all....* This salutary advice of the Apostle how diligently hath Stephen fulfilled! preserving humility of feeling and lenity, *in his first rank*, (primo in loco.) For what could be more humble or gentle, than to have disagreed with so many Bishops throughout the whole world, breaking peace with one and the other on various grounds of discord, now with the Eastern, as we are sure you are aware, now with you in the South; episcopal deputies from whom he received with such patience and mildness, that he did not even admit them to an interview; moreover, so mindful of the claims of charity and affection, that he charged the whole brotherhood, that no one should receive them into his house?" &c.

Concerning this remarkable history, Fleury says:^[24] "It is not known what was then the issue of this dispute. It is certain that it still continued under Pope Saint Sixtus, successor of St. Stephen: this is seen by the letters that St. Dionysius of Alexandria wrote him; and it does not appear that St. Cyprian or Firmilian changed their mind." (So that St. Cyprian died under

excommunication from Pope Stephen.) "Still St. Cyprian is counted among the most illustrious martyrs, even in the Roman Church, which names him in the Canon of the Mass, in preference to Pope St. Stephen; and the Greeks, in their Menologium, honour the memory of Firmilian. With reason, since we shall see him preside over the first Council of Antioch, against Paul of Samosata; and the Fathers of the second Council, writing to the Pope, name Firmilian, of happy memory, as they do Dionysius of Alexandria. Why the error of St. Cyprian and St. Firmilian hurt not their sanctity is, that they always preserved on their part the unity of the Church, and charity, and that they maintained in good faith a bad cause, which they believed good, *and upon which there had not yet been a decision received by unanimous consent of the whole Church.* Thus St. Augustin speaks of it, *not counting as a final decision the decree of Pope St. Stephen, though true in its matter, and clothed with all the force that he could give it. No one of the ancients has accused these holy Bishops of obstinacy for not having obeyed this decree.* The decision of Pope St. Stephen respecting the baptism of heretics has prevailed, because it was the most ancient and the most universal, and consequently the best.... At length this question was entirely set at rest by the authority of the universal Council, that is to say, at the latest, at the Council of Nicea." Most fair and just: St. Cyprian and St. Firmilian may have innocently erred in such a matter; but what of the way in which they treated the Pope? Could they be ignorant of the constitution of that Church of which they were Primates, Saints, and one a Martyr? If his decision was final, must they not have known it? If his primacy involved their obedience, must they not have rendered it? But if they were his deputies, as the present Roman claim would have it, who can express their rashness? Had they been right, and the Pope wrong, according to the present tenets of the Latin Church, obedience had been better than sacrifice. In truth, they would have anticipated the noble submission of the Archbishop of Cambrai, and yielded at once to the chair of St. Peter, whatever had been their conviction as to the truth of their views; but the Archbishop of Carthage, the sternest defender of ecclesiastical unity and discipline which even the Church of the Fathers produced, knew not that he had any such duty towards the See of St. Peter.

Nay, and St. Augustin knew it not either. It was no more the belief in his day than in St. Cyprian's. The Donatists alleged against him in the question

of Baptism the authority of Cyprian in this great Council of Carthage. This leads him to make a very important statement—"You are wont to object against us Cyprian's letters, Cyprian's judgment, Cyprian's Council: why do you assume the authority of Cyprian for your schism, and reject his example for the peace of the Church? But who is ignorant that canonical holy Scripture, as well of the Old as of the New Testament, is contained in its own certain limits, and is so preferred to all subsequent letters of Bishops, that no doubt or discussion at all can be held concerning it, as to whether that be true or right, which is acknowledged to be found written in it: but that the letters of Bishops which either have been or are written after the confirmation of the canon, may be reprehended both by the reasoning, peradventure more full of wisdom, of some one in that matter more skilled, and by the weightier authority and more learned judgment of other Bishops, and by Councils, if haply there has been in them any deviation from the truth; and that Councils themselves, holden in particular regions or provinces, yield, beyond all question, to the authority of plenary Councils, which are made out of the whole Christian world: and that former plenary Councils themselves are often corrected by subsequent ones, when by some practical experience what has been hidden is laid open, and what lay concealed is recognised, without any puffing up of sacrilegious pride, without any haughty exhibition of arrogance, without any strife of livid envy, with holy humility, with Catholic peace, with Christian charity."^[25] Here, where, in a *dignus vindice nodus*, we should have expected some mention of the Chief See, and St. Peter's rights, all is referred to the voice of Bishops in Council,—that See, in which, according to Bellarmine, the plenitude of all the power resides which Christ left in His Church, is not even spoken of. He proceeds—"Wherefore holy Cyprian, the more exalted, the more humble," (in a matter for which he was excommunicated by the Pope, and in which, if the present Papal theory be true, his conduct was to the last degree insolent, and unjustifiable,) "who so loved the example of Peter as to say,—'Showing, indeed, an instance to us of concord and patience, that we should not pertinaciously love our own opinion, but should rather count for our own any useful and sound suggestions, which at times are made by our brethren and colleagues, if they be true and lawful:' he sufficiently shows that he would most readily have corrected his judgment, had any one pointed out to him that the Baptism of Christ might be given by those who had gone out (from the Church) in the same manner

that it could not be lost when they went out: on which point we have already said much. Nor should we ourselves venture to make any such assertion, were we not supported by the unanimous authority of the whole Church: to which he too, without doubt, would yield, if the truth of this question had at that period been thoroughly sifted, and declared, and established by a plenary Council. For if he praises and extols Peter for having with patience and harmony suffered correction from a single younger colleague, how much more readily would he himself, with the Council of his province, have yielded to the authority of the whole world, when the truth was laid open? because, indeed, so holy and so peaceful a soul might most readily agree to one person (*i.e.* the Pope), speaking and proving the truth; and this, perhaps, was really the fact, but we know not. For not all which at that time was transacted between Bishops could be committed to posterity and writing, nor do we know all which was so committed. For how could that matter, involved in so many clouds of altercations, be brought to the clear consideration and ratification of a plenary Council, unless first for a long time throughout all the regions of the world it had been thoroughly tried, and made manifest by many discussions and conferences of Bishops on the one side and on the other? But wholesome peace produces this, that when obscure questions have been long under inquiry, and, through the difficulty of ascertaining them, beget various judgments in brotherly discussion, until the pure truth be arrived at, the bond of unity holds, lest in the part cut off the incurable wound of error should remain." He considers Pope Stephen here, even when he was right, as one of many *brethren*, who had a right to be deferentially heard, but no more. As in another place, arguing with these same Donatists, he distinctly considers the case of the judgment of the Roman Pontiff being erroneous. "The Donatists,"^[26] says he, "chose with a double purpose, to plead their cause with Cœcilian before the Churches across the sea; being doubly prepared, that if they could by any skilfulness of false accusation have overcome him, they might to the full satiate their desire: but if they failed in this, might continue in the same perversity, but still as if they would have to allege, that they had suffered in having bad judges: this is what all wrong suitors cry, though they have been overcome by the plainest truths: as if it might not be answered them and most justly retorted,—Let us suppose that these Bishops who judged at Rome," (Pope Melchiades and his Council,) "were not fair judges; there still remained a plenary Council of the universal

Church, where the cause might have been tried even with those very judges, so that had they been convicted of false judgment their decision might be reversed."

Nay, it appears, the cause of the Donatists, after being decided by Pope Melchiades, was reheard, and that, not by a plenary Council, but by other Bishops of the West, deputed by Constantine. "Know,"^[27] says St. Augustin, "that your first ancestors carried the cause of Cœcilianus before the Emperor Constantine. Demand this of us, let us prove it to you, and if we prove it not, do with us what you can. But because Constantine dared not to judge in the cause of a Bishop, he delegated the discussion and terminating of it to Bishops. This took place in the city of Rome under the presidency of Melchiades, Bishop of that Church, with many of his colleagues. They having pronounced Cœcilianus innocent, and condemned Donatus, who had made the schism at Carthage, your party again went to the Emperor, and murmured against the judgment of the Bishops in which they had been beaten. For how can the guilty party praise the judge by whose sentence he has been beaten? Yet a second time the most indulgent Emperor assigned other Bishops as judges, at Arles, in Gaul, and from them your party appealed to the Emperor himself, until he too heard the cause, and pronounced Cœcilianus innocent, and them false accusers." Did he who wrote these words mean to censure Constantine for granting a second hearing after the judgment of Pope Melchiades?

"Basilides," says Mr. Newman, "deposed in Spain, betakes himself to Rome, and gains the ear of St. Stephen." This, however, is only half the case. It comes to the knowledge of St. Cyprian that he has done so. Let us take Fleury's account.^[28] "As Basilides and Martial still endeavoured to force themselves back upon their sees, Felix and Sabinus, their legitimate successors, went to Carthage with letters from the Churches of Leon, Asturia, and Merida, and from another Felix, Bishop of Sarragossa, known in Africa as attached to the faith, and a defender of the truth. These letters were read in a Council of thirty-six Bishops, at the head of whom was St. Cyprian, who answered in the name of all by a letter addressed to the Priest Felix, and to the faithful people of Leon and Asturia, and to the Deacon Lœlius, with the people of Merida." In this letter he says, "Wherefore,^[29] according to Divine tradition, and Apostolic observance, that is to be kept

and observed, which is observed by us also, and generally throughout all the provinces, that in order rightly to celebrate ordinations, the nearest Bishops of the same province should meet together with that people for whom the head is ordained, and the Bishop should be chosen in the presence of the people, which is most fully acquainted with the life of every one, and has observed the conduct of each individual from his conversation. And this we see was observed by you in the ordination of our colleague Sabinus, so that, according to the suffrage of the whole brotherhood, and the judgment of the Bishops, who were either present, or had sent you letters about him, the Episcopate was conferred upon him, and hands laid upon him in the place of Basilides. Nor can it invalidate a rightful ordination, that Basilides, after the detection of his crimes and the laying bare his conscience even by his own confession, going to Rome deceived our colleague Stephen, who was far removed and ignorant of the thing as it was really done, that he might make interest for an unjust restoration to that Episcopate from which he had been rightfully deposed. It comes to this, that the crimes of Basilides have been rather doubled than wiped away, since to his former sins, the crime of deceit and circumvention has been added. *Nor should he be so much blamed, who through negligence was overreached*, as the other execrated, who fraudulently deceived. But if Basilides could overreach men, God he cannot," &c. If the appeal of Basilides to Stephen proves the Roman Primacy, what does the subsequent appeal of the people of Leon, Asturia, and Merida, to Carthage, prove? And if the restoration of Basilides by Stephen, proves that he possessed that power, what does the subsequent pronouncing of that restoration void by Cyprian and his brother Bishops, without even first acquainting Stephen, prove?

In truth, all the acts of St. Cyprian's Episcopate, of which we have given several in illustration, are an indisputable assurance to the candid mind that he treated the Roman Pontiff simply as his brother,—his elder brother, indeed,—holding the first see in Christendom, but, individually, as liable to err as himself. And it is equally clear that St. Augustin, a hundred and forty years later, did not censure him for this. What we have seen, is this. In the matter of Fortunatus and Felicissimus, Cyprian rejects with vehement indignation their appeal to Rome: in the case of Marcian of Arles, he writes as an equal to Pope Stephen, almost enjoining him what to do: in the question of rebaptizing heretics, he disregards St. Stephen's judgment, and

the anathema which accompanies it; and how strong St. Firmilian's language is we need not repeat, who declares that St. Stephen's excommunication only cut off himself: in the case of Basilides, he deposes afresh one whom Stephen had restored.

Such are the illustrations afforded by the preceding century to what we have stated was the unquestioned constitution of the Catholic Church at the time of the Council of Nicea; viz. that while the three great Sees of Rome, Alexandria, and Antioch exercised a powerful but entirely paternal influence on their colleagues, that of Rome having the undoubted primacy, not derived from the gift of Councils, or the rank of the imperial city, but from immemorial tradition as the See of St. Peter; yet, at the same time, the fullness of the priesthood, and with it all power to govern the Church, were acknowledged to reside in the whole Episcopal Body. "The Bishop," says Thomassin, quoting with approbation a Greek writer, as representing the doctrine of the early Fathers, and of the universal Church since, "is the complete image in the Church on earth of Him who in the holy Trinity alone bears the name of Father, as being the first principle without principle, and the fruitful source of the other Persons, and of all the divine perfections.... The Bishop communicates the Priesthood, as He who is without principle in the Godhead, and is therefore called Father."^[30] The Apostolic Canons, and those of the Council of Nicea, are the legislative acts bearing witness to this order of things: the conduct and words of St. Cyprian, St. Firmilian, and St. Augustin, which we have instanced, and an innumerable multitude of other cases, exhibit it in full life and vigour; while, on the other side, there is absolutely nothing to allege.

The history of the Church during the three hundred years following the Nicene Council is but a development of this constitution. The problem was, how to combine in the harmonious action of One organized Body those Apostolical powers which resided in the Bishops generally. The Patriarchal system was the result. As the Church increased in extent, her rulers would increase in number. This multiplication, which would tend so much to augment the centrifugal force, was met by increased energy in the centripetal: the power of the Patriarchs, and specially of the Bishop of Rome, grew. It is impossible, in my present limits, to follow this out, but I propose to give a few specimens, as before, in illustration.

In so vast a system of interlaced and concurrent powers as the Church of Christ presented, differences would continually arise; and in so profound a subject-matter as the Christian revelation, heresies would be continually starting up: to arrange the former, and to expel or subjugate the latter, the Bishops, says Thomassin, having already more than once appealed to the Christian Emperors for the calling of great Councils, saw the danger of suffering the Imperial authority to intervene in ecclesiastical causes, and sought to establish a new jurisprudence on this head.^[31] "The Council of Antioch (A.D. 341), and that of Sardica (A.D. 347), which were held almost at the same time,—the one in the East, the other in the West,—set about this in a very different manner, aiming, however, at the same end. The Council of Antioch ordered that Bishops, Priests, and Deacons, who should have been condemned by a provincial Council, might recur to a larger Council of Bishops; but that if they carried their complaints before the Emperor they could never be reestablished in their dignity." "One must in good faith admit, that this regulation had much conformity with what had been practised in the first ages of obscurity and persecution, for it was in the same way that extraordinary Councils had been held, such as were those of Antioch against Paul of Samosata, Bishop of that great city. It was the Metropolitans and Bishops of the neighbourhood who assembled with those of the Province where the flame of a great dissension had been kindled. The Council of Sardica, urged by the same desire to break through the custom which was introducing itself, of having recourse to the Emperor for judgment of spiritual causes of the Church, bethought itself of another means, which was not less conformable to the practice of the preceding centuries, and which had, beside that, much foundation in the Holy Scriptures. For Jesus Christ, having given the Primacy, and the rank of Head, to St. Peter, above the other Apostles, and having given successors as well to the Apostles, to wit, all the Bishops, as to St. Peter, to wit, the Roman Pontiffs; moreover, having willed that His Church should remain for ever one by the union of all Bishops with their Head, it is manifest, that if the Bishops of a province could not agree in their Provincial Council, and if the Bishops of several provinces had disputes between each other, the most natural way to finish these differences was to introduce the authority of the Head, and of him whom Jesus Christ has established as the centre of unity of His universal Church."

Accordingly, at the Council of Sardica, attended by St. Athanasius, then in exile, and about a hundred Western Bishops, after the secession of the Eastern or Arian portion, Hosius proposed, "If two Bishops of the same province have a disagreement, neither of the two shall take for arbitrator a Bishop of another province: if a Bishop, having been condemned, feels so assured of his right, that he is willing to be judged anew in a Council, *let us honour, if you think it good, the memory of the Apostle St. Peter*: let those who have examined the cause, write to Julius, Bishop of Rome; if he thinks proper to order a fresh trial, let him name judges; if he does not think that there is reason to renew the matter, let what he orders be kept to. The Council approved this proposition. The Bishop Gaudentius added, that, during this appeal, no Bishop should be ordained in place of him who had been deposed, until the Bishop of Rome had judged his cause."^[32]

"To make the preceding Canon clearer, Hosius said, 'When a Bishop, deposed by the Council of the province, shall have appealed and had recourse to the Bishop of Rome, if he judge proper that the matter be examined afresh, he shall write to the Bishops of the neighbouring province to be the judges of it; and if the deposed Bishop persuade the Bishop of Rome to send a priest from his own person, he shall be able to do it, and to send commissioners to judge by his authority, together with the Bishops; but if he believes that the Bishops are sufficient to settle the matter, he will do what his wisdom suggests to him.' The judgment which Pope Julius, together with the Council of Rome, had given in favour of Athanasius and the other persecuted Bishops, seems to have given cause to this Canon, and we have seen that this Pope complained that they had judged St. Athanasius without writing to him about it."

Such is the modest commencement of that power of hearing episcopal causes on appeal, which has been the instrument of obtaining the wonderful authority concentrated by a long series of ages in the see of Rome. However conformable to the practice of preceding centuries, as Thomassin says, this may have been, this power is here certainly *granted* by the Council, *not considered as inherent in the see of Rome*. And this one fact is fatal to the present claim of the supremacy. To use De Maistre's favourite analogy, it is as though the States General or Parliament conferred his royal powers on the Sovereign who convoked them, and whose assent alone made their enactments law. Accordingly, like the whole course of proceedings in these

early Councils, it is incompatible with the notion of the Pope being the monarch in the Church. We may safely say, history offers not a more wonderful contrast in a power bearing the same name, than that here conferred on Pope Julius in 347, and that exercised by Pope Pius the Seventh in 1802. On the bursting out of the French revolution, out of a hundred and thirty-six Bishops more than a hundred and thirty remained faithful to God and the Church: some offered the testimony of their blood; the rest became confessors in all lands for Christ's sake, in poverty, contempt, and banishment. After ten years, the civil governor, who had lately professed himself a Mahometan, proposes to the Pope to re-establish the Church, but on condition of himself nominating to the sees, and those not the ancient sees of the country, but a selection from them, to the number of eighty. Thereupon the Pope requires those eighty Bishops and Confessors who still survived, and whom he acknowledged to be not only blameless, but martyrs for the name of Christ, to resign into his hands their episcopal powers. Of his own single authority he abolishes the ancient sees of the eldest daughter of the Western Church, constitutes that number of new sees which the civil power permits, and treats as schismatics those few Bishops who disobey his requisition. I do not presume to express any blame of Pope Pius; I simply mention a fact. But it seems to me, certainly, that those who would entirely recognise the power and precedence exercised by Pope Julius, are not necessarily schismatics because they refuse to admit a power not merely greater in degree, but different in kind, and to set the High Priesthood of the Church beneath the feet of one, though it be the First of her Pontiffs.

The restrictions under which, according to the Council of Sardica, the Pope could cause a matter to be reheard, are specific. Much larger power is assigned in the fourth General Council, that of Chalcedon, to the see of Constantinople, in the ninth Canon, which says, "If any Bishop or Clergyman has a controversy against the Bishop of the province himself (*i.e.* the Metropolitan), let him have recourse to the Exarch of the diocese, or to the throne of the Imperial city of Constantinople, and plead his cause before him."

But, between these two Councils of Nicea, A.D. 325, and Chalcedon, 451, the whole Patriarchal system of the Church had sprung up, and covered the provinces of the Roman Empire with as it were a finely reticulated net. The

system may be said to be built on two principles, recognised and enforced in the Apostolic Canons, and consistently carried out, from the Bishop of the poorest country town up to the primatial see of Rome. These principles are, "the authority of the Metropolitan over his Bishops in important and extraordinary affairs, and the supreme authority of Bishops in the ordinary government of their particular bishoprics. With this distinction, that the Metropolitan even cannot arrange important and extraordinary affairs but with the counsel of his suffragans, whilst every Bishop conducts all the common and ordinary affairs of his Diocese without being obliged to take the advice of his Metropolitan."^[33] This latter principle, it will be seen, expresses the essential equality and unity of the High Priesthood vested in Bishops by descent from the Apostles, to which St. Cyprian bears such constant witness, so that it may be said to be the one spirit which animates all his government: while the former, leaving this quite inviolate, builds together the whole Church in one vast living structure. For as the Bishops of the province have their Metropolitan, and their spring and autumn Councils under him, so the Metropolitan stands in a like relation to his Exarch, or Patriarch; and of the five great Patriarchs of Rome, Constantinople, Alexandria, Antioch, and Jerusalem, who are found at the Council of Chalcedon to preside over the Church Catholic, that of Rome has the unquestioned primacy, and is seen at the centre, sustaining and animating the whole. "The most important of all the powers of Metropolitans, Exarchs, and Patriarchs, was the election of Bishops, the confirmation and consecration of Bishops elected. For all the other degrees of authority were founded on this one, which rendered the Metropolitan the Father, Master, and Judge of all his suffragans."^[34] "And so that famous Canon of the Council of Nicea, (the 6th,) which seems in appearance only to confirm the ancient right of the three first Metropolitans of the world to ordain the Bishops of all the provinces of their dependence, establishes in effect all the rights and all the powers of the Metropolitans, because it establishes the foundation on which they all rest. 'If any one be made a Bishop contrary to the sentence of his Metropolitan, the great Synod declares that he should not be a Bishop.' Nothing is juster than to found the right of a holy and paternal rule on the right of generation. For by ordination the Bishops engender not children indeed, but Fathers, to the Church." This system continued unimpaired in the whole Church, at least to the time of St. Gregory the Great. It offers, I think, an unanswerable

refutation to what must be considered the strongest argument of the Roman Catholics for the Supremacy, that there could be no unity in the Church without it, as a living organized body; history says, there *was* unity, with five co-ordinate Patriarchs, and an Episcopate twice as numerous as that of the present Latin Communion. In the Latin Church itself, this system was only gradually overshadowed by another system which sprang from the excessive development of one of its parts; in the Greek and Russian Church, it continues down to this day; whatever ecclesiastical constitution we still have ourselves, is a part of this system. And by reference to, and under cover of this, which if not strictly of Divine right, as is the High Priesthood of Bishops, approaches very nearly indeed to it, and was the effluence of the Spirit of God ruling and guiding the Church of the Fathers, we must justify ourselves from the damning blot of schism. We cannot, dare not, do this upon principles such as "the right of private judgment"—"The Bible alone is the religion of Protestants,"—and the like, which lead directly, and by most certain consequence, to dissent, heresy, and anarchy. God forbid that they who profess to be members of the One holy Catholic Church should, urged by any unhappiness of their provisional and strange position, take up Satanic and Antichristian arms. No! if we may not hope for that system under which Augustin and Chrysostom laboured and witnessed, we will have nothing to do with those who destroy dogmatic faith altogether, and break up the visible unity of the Church of Christ into a multitude of atoms. *Quot homines, tot voluntates*. We cannot so relapse into worse than a second heathenism, and with the unity of Pentecost offered us, deliberately choose the confusion of Babel.

But over and above his natural eminence in the Church, which I have attempted to describe, a concurrence of events in the fourth century tended to give a still greater moral weight to the voice of the Bishop of Rome. While the other great sees of the Church were vexed with heresy or schism, his was providentially exempted from both. The same century witnessed Cœcilianus of Carthage, judged and supported by Pope Melchiades, while the Donatist schism all that century long rent Africa in twain; and St. Athanasius, of Alexandria, driven from his see, and persecuted by the whole East, received and justified by Pope Julius; and St. John Chrysostom, too good by far for a corrupt capital and a degenerate court, in life protected, and in death restored, by Pope Innocent. We have seen St. Jerome appeal to

Pope Damasus, to know which of three competitors for the Patriarchal throne of Antioch was the right Bishop. But it is impossible to describe the confusion and violence which the Arian heresy, and the cognate heresies concerning the Person of our Lord, wrought throughout the Church and Empire. In all these the Roman Patriarch was beheld immovable, supporting, with his whole authority, what turned out to be the orthodox view. What Mr. Newman asserts is, moreover, entirely in accordance with the Patriarchal system, as we have attempted to describe it, "that the writers of the fourth and fifth centuries fearlessly assert, or frankly allow, that the prerogatives of Rome were derived from apostolic times, and that because it was the See of St. Peter." I confess that these words set me upon the search, and that I have found such testimonies in abundance; but then they are invariably to the Bishop of Rome *as holding the first see, not as Episcopus Episcoporum: they bear witness to the Patriarchal system, not to the Papal*. For instance, all lovers of truth would be obliged to Mr. Newman to point out, in all the works of St. Augustin, a single passage which is sufficiently distinct and specific to justify the Papal claims, nay, which does not consider the Pope the first Bishop, and *no more*. It is little to say I have searched for such in vain. But in a Western Father, whose extant writings are so voluminous, and whose personal history is almost a history of the Church during the nearly forty years of his episcopate, and who continually gives judgment on all matters concerning the Church's government and constitution, it would seem impossible but that such a testimony should be found, if a thing so wondrous as is the Papal Power then existed. On the contrary, St. Augustin, continually explaining those often cited passages of Scripture, on which mediæval and later Roman writers ground the Papal prerogatives, that is, Thou art Peter, &c., Feed my sheep, &c., says specifically, that Peter represents the Church. One of these passages we have already quoted. Take another. "And I say unto thee, because thou hast said to me; thou hast spoken, now hear; thou hast given a confession, receive a blessing; therefore, and I say unto thee, that thou art Peter; because I am the Rock, thou art Peter; for neither from Peter is the Rock, but from the Rock, Peter; because not from the Christian is Christ, but from Christ the Christian. And upon this Rock I will build my Church; *not upon Peter, which thou art, but upon the Rock which thou hast confessed*. But I will build my Church, *I will build thee, who in this answer representest the Church*."^[35] Again, in a passage which conveys that old view of Cyprian,

that every Bishop's chair is the chair of St. Peter. "For as some things are said which would seem to belong personally to the Apostle Peter, yet cannot be clearly understood unless when they are referred to the Church, which he is admitted, in figure, to have represented, on account of the Primacy which he held among the disciples,—as is,—I will give to thee the keys of the kingdom of Heaven;—and if there be any such like."^[36] Again: "For Peter himself, to whom He entrusted His sheep as to another self, He willed to make one with Himself, that so He might entrust His sheep to him; that he might be the Head, the other bear the figure of the Body, that is, the Church; and that, as man and wife, they might be two in one flesh."^[37] Again: "The Lord Jesus chose out His disciples before His Passion, as ye know, whom He named Apostles. Amongst these, Peter alone almost everywhere was thought worthy (*meruit*) to represent the whole Church. On account of that very representing of the whole Church, which he alone bore, he was thought worthy to hear, I will give to thee the keys of the kingdom of Heaven. *For these keys not one man but the unity of the Church received.* Here, therefore, the eminence of Peter is set forth, because he represented the very universality and unity of the Church, when it was said to him, I give to thee what was given to all. For that you may know that the Church has received the keys of the kingdom of God, hear what in another place the Lord says to all his Apostles: Receive the Holy Ghost. And presently: Whosoever sins ye remit, they are remitted to him; whosoever ye retain, they are retained. This belongs to the keys concerning which it was said, What ye loose on earth, shall be loosed in Heaven; and what ye bind on earth, shall be bound in Heaven. But this He said to Peter. That you may know that Peter then represented the whole Church, hear what is said to him,"^[38] &c. "For deservedly, after His resurrection, the Lord delivered His sheep to Peter himself to feed; *for he was not the only one among the disciples who was thought worthy to feed the Lord's sheep.* But when Christ speaks to one, unity is commended; and to Peter above all, because Peter is the first among the Apostles."^[39] Again: "As in the Apostles, the number itself being twelve, that is, four divisions into three,"—(he seems to mean, that there was a mystical universality betokened in the number four, as a mystical unity in the number three,)—"and all being asked, Peter alone answered, Thou art the Christ, the Son of the living God. And it is said to him, I will give to thee the keys of the kingdom of Heaven, *as if he alone had received the power of binding and loosing; the case really being, that*

he singly said that in the name of all, and received this together with all, as representing unity itself; therefore one in the name of all, because unity is in all."^[40] This, written at so many different times, was evidently the view preferred by this great Father;^[41] and be it observed, that while, on the one hand, there is a total silence as to the local see of Rome, on the other hand, there is in these words a specific denial of the present Roman doctrine, that all spiritual jurisdiction throughout the whole Church is derived from the see of Rome *alone*. That jurisdiction is derived from the see of Rome, and the other Apostolic Sees in conjunction, is the truth of the Patriarchal system; that it is derived from the see of Rome, as distinct from them, and without them, is the exaggeration of the Papal system.

I may remark here, that St. Leo the Great does apply these passages both to St. Peter personally, as distinct from the other Apostles, and to the Roman Pontiffs, as his successors, distinct from all other Bishops. St. Augustin's different application is the more remarkable.

The strongest expressions respecting the power of the Roman see, which I have been able to find in the works of St. Augustin, are contained not in his proper works, but in two letters of Pope St. Innocent, written in answer to the synodical letters of the Council of Milevi,—"*who thought fit likewise to communicate their judgment to the Pope St. Innocent in order to join the Apostolical authority to their own.*"^[42] Their own words are,—"*What we have done, Sir and Brother, we have thought good to intimate to your holy charity, that the authority of the Apostolical See may also be added to what we, in our mediocrity, have ordered, to protect the salvation of many, and also to correct the perversity of some.*"^[43] They were writing concerning a point nearly touching the common faith, *i.e.*, in condemnation of Pelagius. The Pope in his answer, praises them, that—"Guarding, according to the duty of priests, the institutions of the Fathers, ye resolve that those regulations should not be trodden under foot, which they with no human but Divine voice decreed: viz., that whatever was being carried on, although in the most distant and remote provinces, should not be terminated before it was brought to the knowledge of this see: by the full authority of which the just sentence should be confirmed, and that thence all other churches might derive what they should order; whom they should absolve; whom, as being bemired with ineffaceable pollution, the stream, that is worthy only of pure

bodies, should avoid; so that as from their parent source all waters should flow, and through the different regions of the whole world the pure streams of the fountain well forth uncorrupted."^[44] And in like manner to the Bishops of Numidia, at the same Council. "Ye do, therefore, diligently and becomingly consult the secrets of the Apostolical honour, (that honour, I mean, on which beside those things that are without, the care of all the Churches awaits,) as to what judgment is to be passed on doubtful matters, following in sooth the direction of the ancient rule, which you know, as well as I, has ever been observed in the whole world. But this I pass by, for I am sure your prudence is aware of it: for how could you by your actions have confirmed this, save as knowing that throughout all provinces answers are ever emanating as from the Apostolic fountain to inquirers? Especially, so often as a matter of faith is under inquiry, I conceive that all our brethren and fellow-Bishops ought not to refer, save to Peter, that is, the source of their own name and honour, just as your affection hath now referred, for what may benefit all Churches in common, throughout the whole world. For the inventors of evils must necessarily become more cautious, when they see that at the reference of a double synod they have been severed from ecclesiastical communion by our sentence."^[45]

There is certainly an indefiniteness about these expressions, which may be made to embrace anything; but they do not fairly mean more than that supervision of the faith which belonged to the office of the first of the Patriarchs. Moreover, they come from a Pope; in St. Augustin's mouth, they would have much more force. They show us, besides, what a tendency there was in the power of the Patriarch continually to increase, as being the centre of appeal to so many, not only Bishops, but Metropolitans. Nay, at this very time, within less than a century, a rival power had grown up in the East, in the See of Constantinople, which, from a simple bishopric, under the Exarch of Heraclea, threatened to push aside the Patriarchs of Alexandria and Antioch; and, by virtue of the Imperial residence at, or near Constantinople, to exercise as great an influence through the whole East, as Rome did in the West. If this happened where there was no Apostolic See to build upon, but simply the privileges of the royal city, how much more in the case of Rome, which stood alone in the West the single object of common reverence; "since it is well known," says this same Pope Innocent, "that there were no churches founded by any one, either in Italy, the Gauls,

Spain, Africa, Sicily, or in the adjacent islands, unless by those whom the Apostle St. Peter, or his successors, had appointed Bishops."^[46] So that the Pope, on the Patriarchal theory, was the common father of the whole West.

In the latter years of St. Augustin's life, the important question of appeals from African Bishops to Rome was settled. Apiarius, a priest, had been excommunicated by his Bishop, and appealed to the Pope. The Bishops of Africa would not agree to the Pope's claim, that the causes of clergy, condemned by their own Bishop, should be brought before the neighbouring Bishops; nor that Bishops should appeal to Rome. The Pope alleged the Canons of Nicea, (not, be it observed, an inherent power in his see to judge Bishops;) the Bishops of Africa said they could not find those Canons in the copies which they had. They agreed, however, to be thus treated, provisionally, for a short time, till they were better informed of the decrees of Nicea. It turned out that, by the Canons of Nicea, the Pope meant those of Sardica, to which the African Bishops refused obedience. The end of this was, that Pope St. Cœlestine restored Apiarius to communion, and sent him back to Africa, with Faustinus, his Legate. "At his arrival, the Bishops of Africa assembled a Council, in which Aurelius, of Carthage, and Valentine, Primate of Numidia, presided. Thirteen more are named, but the name of St. Augustin does not appear among them. This Council having examined the affair of Apiarius, found him charged with so many crimes, that it was impossible for Faustinus to defend him, though he acted the part rather of an advocate than of a judge, and violated all right in the opposition he maintained against the whole Council, under pretence of supporting the privileges of the Church of Rome. For he wanted Apiarius to be received to the communion of the Bishops of Africa, because the Pope had restored him to it, believing that he had appealed, though he could not prove even the fact of his appeal. After a debate of three days, Apiarius at last, stung with remorse, and moved by God, confessed, on a sudden, all the crimes of which he had been accused, which were so infamous and incredible as to draw groans from the whole Council; after which he was for ever deprived of all ecclesiastical administration.

"The Bishops wrote a synodical letter to Pope Cœlestine, in which they conjure him, for the future, not to receive to his communion those who have been excommunicated by them; since this was a point ruled by the Nicene Council. For, they added, if this be forbidden with respect to the minor

Clergy, or Laymen, how much more did the Council intend its observance in respect to Bishops? Those, therefore, who are interdicted from communion in their own provinces, ought not to be restored by your Holiness too hastily, and in opposition to the rules; and you ought to reject the Priests, and other Clergy, who are so rash as to have recourse to you. For no ordinance of our fathers has deprived the Church of Africa of this authority, and the decrees of the Nicene Council have subjected the Bishops themselves to their respective Metropolitans. *They have ordained with great wisdom and justice, that all matters should be terminated in the places when they arise; and did not think that the grace of the Holy Ghost would be wanting in any province to bestow on its Bishops the knowledge and strength necessary for their decisions; especially, since whosoever thinks himself wronged, may appeal to the Council of his province, or even to a General Council, unless it be imagined that God can inspire a single individual with justice, and refuse it to an innumerable multitude of assembled Bishops. And how shall we be able to rely on a sentence passed beyond the sea, since it will not be possible to send thither the necessary witnesses, whether from the weakness of sex, or of advanced age, or any other impediment? For that your Holiness should send any one on your part we can find ordained by no Council.*"

"With regard to what you have sent us by our brother, Faustinus, as being contained in the Nicene Council, we find nothing of the kind in the more authentic copies of that Council, which we have received from our brother, the Bishop of Alexandria, and the venerable Atticus, of Constantinople, and which we formerly sent to Boniface, your predecessor, of happy memory. For the rest, whoever desires you to delegate any of your clergy to execute your orders, we beseech you not to comply, lest it seem that we are introducing the pride of secular dominion into the Church of Christ, which ought to exhibit to all men an example of simplicity and humility. For as to our brother Faustinus, since the wretched Apiarius is cut off from the Church, we depend confidently on your goodness, that, without violating brotherly charity, Africa shall be no longer forced to endure him. Such is the letter of the Council of Africa to Pope St. Cœlestine."^[47]

I confess it was not without astonishment that I first read this passage of history; so exactly had the African Bishops, in 426, when the greatest father of the Church was one of them, anticipated and pleaded the cause of the

English Church, in 1534. It is precisely the same claim made in both instances, viz. that these two laws should be observed, on which the stability of the government of the whole Church Catholic rests; as Thomassin remarks:—first, that the action of the Bishop in his own diocese, in matters proper to that diocese, should not be interfered with; secondly, that the action of the Metropolitan with his Suffragans, in matters belonging to his province, should be left equally free. Who ever accused the African Bishops, and St. Augustin, of schism, for maintaining a right which had come down to them from all antiquity, was possessed and acted on all over the Church, was specifically enacted at the greatest Ecumenical Council, and recognised in every provincial Council held up to that time? This was all that the Church of England claimed; she based her claim on the unvarying practice of the whole Church during, at least, the first six centuries. We repeat, it is not a case of doubt, of conflicting testimony, in words elsewhere quoted, "of Popes against Popes, Councils against Councils, some Fathers against others, the same Fathers against themselves; a consent of Fathers of one age against a consent of Fathers of another age, the Church of one age against the Church of another age."^[48] It is the Church of the Martyrs, the Church of the Fathers, of Athanasius, Basil, Gregory, and Chrysostom, Ambrose, Jerome, Augustin, and Gregory the Great, bearing one unbiassed indisputable witness, attested in a hundred Councils, denied in none, for the Patriarchal system, and against a power assumed by one Bishop, though the greatest, most venerable, and most illustrious in his own see, to interfere, dispense with, suspend, or abrogate, the authority of the Bishop in his Diocese, and of the Metropolitan in his Council; to exercise singly, by himself, powers which belong only to an Ecumenical Council, and to annul the enactments of at least the first four Ecumenical Councils. Had an advocate been instructed to draw out the abstract case of the English Church, he could not have described it more exactly than the African Bishops in stating their own. True, indeed, it is, that the African Bishops were maintaining a right which not only had never been interrupted, but was universal; while the English Bishops resumed a power which had been surrendered, not only by them, but by all the west of Europe, for many hundred years. Accordingly, the African Bishops did not suffer even a temporary suspension of communion with Rome, for having both condemned afresh Apicarius, whom the Pope had restored, and explicitly refused permission to the Pope to interfere in the ordinary

government of their dioceses; while the English Church has ever since been accused of schism by the rest of the Latin communion. This decision of the African Bishops, in the year 426, is a proof that the Canon of the Council of Sardica, conferring, in certain cases, the power of ordering a cause to be reheard on the Pope, and the most favourable to his authority of any Canon of an ancient Council, was yet not received even throughout all the West.

In the year 402, St. Augustin wrote a letter to the Catholics, commonly called his treatise "on the Unity of the Church." The bearing of this book on the controversy respecting schism between ourselves and the Roman Catholics is very remarkable. The Saint refers triumphantly to most express passages from the Law, the Prophets, the Psalms, our Lord's own teaching, and that of His Apostles, bearing witness to the catholicity of the Church, an "*Ecclesia toto terrarum orbe diffusa*." He challenges his adversaries, the Donatists, to produce a single passage, which either restricted the Church to the confines of Africa, or declared that it would perish from the rest of the world, and be restored out of Africa. His test seems decisive against the Donatists, and against all those who in after times have restricted the Church to one province, or have declared the Roman Church to be so corrupt that it is not a part of the true Church. For if it be not, then the promises of Christ have failed. But while it annihilates the position of the Donatists, and of the Puritan or Evangelical faction in these present times, it leaves unassailed that of Andrewes and Ken. St. Augustin every where appeals to the Church spread throughout the whole world, as being, by virtue of that fact, the one communion in which alone there was salvation, and this upon the testimony of the Holy Scriptures only. "To salvation itself, and eternal life, no one arrives, save he who has Christ for his head. But no one can have Christ for his head, except he be in His Body, which is the Church, which like the Head itself we ought to recognise in the Holy Canonical Scriptures, nor to seek after it in the various reports, opinions, doings, sayings, and sights of men."^[49] But in the whole book there is not one word about the Roman see, or the necessity of communion with it, save as it forms part of the one universal Church. It is not named by itself any more than Alexandria, or Antioch. Any one will see the force of this fact who has but looked into the writings of late Roman Catholic authors. He will see how unwearied they are in setting forth the necessity of the action of the Roman see; how they consider it, and rightly, the centre of their

system; how they are ever crying, "Without the sovereign pontiff there is no true Christianity."—*De Maistre*. The contrast in St. Augustin is the more remarkable. The creed of the Council of Trent says, "I acknowledge one holy, catholic, and apostolic Roman Church, the mother and mistress of all Churches: and I promise and vow true obedience to the Roman Pontiff, successor of the blessed Peter, Prince of the Apostles, and Vicar of Jesus Christ." This is distinct and unambiguous: just as much so is St. Augustin's "orbis terrarum." "For this the whole world says to them (the Donatists,) an argument most briefly stated, but most powerful by its truth. The case is, the African Bishops had a contest between themselves; if they could not arrange between themselves the dissension which had arisen, so that the wrong side should either be reduced to concord, or deprived, and they who had the good cause remain in the communion of the whole world through the bond of unity, there was certainly this resource left, that the Bishops beyond the sea, where the largest part of the Catholic Church is spread, should judge concerning the dissensions of their African colleagues,"^[50] &c. No doubt the Bishop of Rome was one, and the most eminent of these Bishops beyond the sea; but St. Augustin refers the decision of the Donatist controversy not to him specially, but to the Bishops generally. This is the very principle, for which the Eastern Church for a thousand years, and the English Church for three hundred, have contended against the Church of Rome. I know not whether what St. Augustin says or what he does not say is strongest against the present Roman claim; but I think his *silence* in his book "De Unitate Ecclesiæ" absolutely convincing to any candid mind. Let us hold for an infallible truth his dogma, "Securus judicat orbis terrarum;" but the Latin communion is not the "orbis terrarum." In truth, the papal supremacy at once cut the Church in half; the West, where the Pope's was the only apostolical see, unanimously held with him; the East, with its four patriarchs, as unanimously refused his claim, as a new thing which they had never received. Even De Maistre observes, (Liv. 4. ch. 4,) "It is very essential to observe that never was there a question about dogmas between us at the beginning of the great and fatal division."

Again, St. Augustin has five sermons on the day of the Apostles Peter and Paul; he enlarges, as we might expect, on their labours and martyrdom; on the wonderful change of life which grace produced in them, the one thrice denying, and then thrice loving; the other, a blasphemer and persecutor, and

then in labours more abundant than all. He speaks of their being joined in their death, the first apostle and the last, in the service and witness of Him, who is the First and the Last; of their bodies, with those of other martyrs, lying at Rome. But not one allusion is there in all these to the Roman Pontiff; not a word as to his being the heir of a power not committed to the other Apostles. On the contrary, on the very occasion of St. Peter's festival, he does say, "What was commended to Peter,—what was enjoined to Peter, not Peter alone, but also the other Apostles heard, held, preserved, and most of all the partner of his death and of his day, the Apostle Paul. They heard that, and transmitted it for our hearing: we feed you, we are fed together with you." "Therefore hath the Lord commended his sheep to us, because he commended them to Peter."^[51] Thus Peter's commission is viewed not as excluding, but including that of all the rest; not as distinguished from, but typical of, theirs. Yet at this very time Roman Catholics would have us believe that the successor of Peter communicated to all Bishops their power to feed the Lord's flock; and that such a wonderful power and commission is passed *sub silentio* by the Fathers.

The very same principles which the Great Voice of the Western Church proclaims in Africa, St. Vincent of Lerins repeats from Gaul. Take the summary of his famous Commonitorium by Alban Butler. "He layeth down this rule, or fundamental principle, in which he found, by a diligent inquiry, all Catholic pastors and the ancient Fathers to agree, that such doctrine is truly catholic as hath been believed in all places, at all times, and by all the faithful. By this test of universality, antiquity, and consent, he saith all controverted points in belief must be tried. He sheweth, that whilst Novatian, Photinus, Sabellius, Donatus, Arius, Eunomius, Jovinian, Pelagius, Cœlestius, and Nestorius expound the Divine oracles different ways, to avoid the perplexity of errors we must interpret the Holy Scriptures by the tradition of the Catholic Church, as the clue to conduct us in the truth. For this tradition, derived from the Apostles, manifesteth the true meaning of the Holy Scripture, and all novelty in faith is a certain mark of heresy; and in religion nothing is more to be dreaded than itching ears after new teachers. He saith, 'They who have made bold with one article of faith, will proceed on to others; and what will be the consequence of this reforming of religion, but only that these refiners will never have done, till they have reformed it quite away?' He elegantly expatiates on the Divine

charge given to the Church, to maintain inviolable the sacred depositum of faith. He takes notice that heretics quote the Sacred Writings at every word, and that in the works of Paulus Samosatenus, Priscillian, Eunomius, Jovinian, and other like pests of Christendom, almost every page is painted and laid on thick with Scripture texts, which Tertullian also remarks. But in this, saith St. Vincent, heretics are like those poisoners or quacks, who put off their destructive potions under inscriptions of good drugs, and under the title of infallible cures. They imitate the father of lies, who quoted Scripture against the Son of God, when he tempted Him. The Saint adds, that if a doubt arise in interpreting the meaning of the Scriptures in any point of faith, we must summon in the holy Fathers, who have lived and died in the faith and communion of the Catholic Church, and by this test we shall prove the false doctrine to be novel. For that only must we look upon as indubitably certain and unalterable, which all, or the major part of these Fathers have delivered, like the harmonious consent of a general council. But if any one among them, be he ever so holy, ever so learned, holds any thing besides, or in opposition to the rest, that is to be placed in the rank of singular and private opinions, and never to be looked upon as the public, general, authoritative doctrine of the Church. After a point has been decided in a general council, the definition is irrefragable. These general principles, by which all heresies are easily confounded, St. Vincent explains with equal elegance and perspicuity." "The same rules are laid down by Tertullian in his book of Prescriptions, by St. Irenæus, and other Fathers."—*Lives of the Saints*, May. 24.

But not a word is there here of the authority of the See of Rome deciding of itself what is, and what is not, error; or of its Communion of itself being a touchstone of what is, and what is not, the Catholic Church. These are necessary parts of the Papal Supremacy; instead of which St. Vincent holds universal consent.

Now let us hear Bossuet speaking of St. Vincent's rule. "These things then are understood not by this or by that Doctor, but by all Catholics with one voice, that the authority of the Church Catholic agreeing is most certain, irrefragable, and perspicuous. Christians must rest on that agreement, as a most firm and divine foundation; from whom nothing else is required but that in the Apostles' Creed, that believing in the Holy Spirit they also believe the holy Catholic Church; and claim for her the most certain

authority and judgment of the Holy Spirit, by which they are led captive to obedience. Which entirely proves that this indefectible power both lies and is believed to lie in consent itself; and this clear and manifest voice dwells altogether in the agreement of the Churches; in which we see clearly, on the testimony of the same Vincent of Lerins, that not a part of the Church, but universality itself, is heard: For we follow," saith he, "the whole in this way, if we confess that to be the one true faith which the whole Church throughout the world confesses." And a little after, "What doth the Catholic Christian, if any part hath cut itself off from the communion of the universal faith? What surely, but prefer the soundness of the whole body to that pestilent and corrupted member?"^[52]

"Thence floweth unto General Councils that certain and invincible authority which we recognise in them. For it is on no other principle that Unity and Consent have force in Councils, or in the assembled Church, than because they have equal force in the Church spread through the whole world. For the Council itself hath force, because it represents the whole Church; nor is the Church assembled in order that Unity and Consent may have force, but it is therefore assembled, that the Unity which in itself has force in the Church, everywhere spread abroad, may be more clearly demonstrated in the same Church assembled, by Bishops, the Doctors of the Churches, as being the proper witnesses thereunto.

"Hence, therefore, is perceived a double method of recognising Catholic truth; the first, from the consent of the Church everywhere spread abroad; the second, from the consent of the Church united in Ecumenical or General Councils; both which methods I must set forth in detail, to show more clearly that this infallible and irresistible authority resides in the whole body of the Church."

He then proceeds to show that the type or form of all Ecumenical Councils was taken from the first Council held at Jerusalem by the Apostles. He notes these particulars: First, there was a great dissension, the cause of it: then, that the chief Church, in which Peter sat, was then at Jerusalem; whence it became a maxim, that Councils should not be regularly held without Peter and his Successors and the First Church in which he sits. Thirdly, it was as universal as could be. Fourthly, all were assembled together. Fifthly, the question was stated, next deliberated on, lastly decided

by common sentence; which all became rules for future Councils. Sixthly, the discussion is thus stated in the Acts, "when there had been much disputing." Seventhly, the deliberation is opened by Peter, whence it became a custom that the President of the Council should first give sentence. Eighthly, Paul and Barnabas give their testimony, in confirmation of Peter's sentence; and James expressly begins with Peter's words—"Simon hath declared," whence the custom that the rest give their voice at the instance of the President. "They do not, however, so proceed as if they were altogether bound by the authority of the first sentence, but themselves give judgment; and James says, 'I give sentence.' Then he proposes what additions seemed good to the principal question, and gives sentence also concerning them." Tenthly, "The decree was then drawn up in the common name, and adding the authority of the Holy Spirit, 'It seemed good unto us being assembled with one accord,' and 'It seemed good to the Holy Ghost and to us;' there then lies the force, 'to the Holy Ghost and to us:' not, what seemed good to Peter precisely, but, to us; and led by the Spirit, not Peter alone, but the unity itself of the holy Council. Whence, too, Christ said that concerning the Spirit whom he was about to send: 'But when He, the Spirit of truth, is come, He shall teach you all truth:' you, saith He, the Pastors of the Churches, and the Masters of the rest. Hence, the Spirit is always added to the Church and the holy congregation. 'I believe in the Holy Ghost, the holy Church, the Catholic Church:' and with reason therefore, and carefully was the maxim which we have mentioned laid down of old by our Doctors: 'The strength of Councils resides not in the Roman Pontiff alone, but chiefly in the Holy Spirit and in the Catholic Church.'

"Eleventhly: when the matter had been judged by common sentence, nothing was afterwards reconsidered, nor any new dissension left to any one; but the decree was carried to the Churches, and the people are taught to keep the decrees which were decreed, in the Greek 'judged,' by the Apostles and Elders which were at Jerusalem.

"This we Catholics urge with common consent against heretics who decline the commands and authority of Councils: which would have no force, unless together with the authority we also prove the form, and place the force itself of the decree, not in Peter alone, but in Unity, and in the Consent of the Apostles and the Pastors of the Church."[\[53\]](#)

In another place he says, 'In ecclesiastical acts we do indeed find that the Catholic Church is affirmed by Chief Pontiffs and Councils to be represented by Ecumenical Synods, which contain all its virtue and power, which we are wont to mean by the word "represent." But this we do not read of the Roman Pontiff, as affirmed either by the Pontiffs themselves, or by Ecumenical Councils, or any where in Ecclesiastical Acts.'^[54]

I have been unable to find any testimony of St. Chrysostom to the transmission of St. Peter's primacy over the whole Church to the Bishop of Rome. He has, however, a passage about Rome which is worth transcribing; for sometimes, as we have just seen, as much is proved by what is *not* said, as by what *is* said. Speaking then of St. Paul, he writes:—"Rather if we listen to him here, we shall surely see him there; if not standing near him, yet we shall see him surely shining near to the King's throne, where the Cherubim ascribe glory, where the Seraphim spread their wings. There with Peter shall we behold Paul—him that is the leader and director of the choir of the saints,—and shall enjoy his true love. For if, being here, he so loved men, that having the choice "to depart and be with Christ," he chose to be here, much more there will he show warmer affection. Rome likewise for this do I love, although having reason otherwise to praise her, both for her size, and her antiquity, and her beauty, and her multitude, and her power, and her wealth, and her victories in war. But passing by all these things, for this I count her blessed; because, when alive, he (Paul) wrote to them, and loved them so much, and went and conversed with them, and there finished his life. Wherefore the city is on that account more remarkable than for all other things together, and like a great and strong body, it has two shining eyes, the bodies of these saints. Not so bright is the heaven when the sun sends forth his beams, as is the city of the Romans sending forth everywhere over the world these two lights. Thence shall Paul, thence shall Peter, be caught up. Think, and tremble, what a sight shall Rome behold, when Paul suddenly riseth from that resting-place with Peter, and is carried up to meet the Lord. What a rose doth Rome offer to Christ! with what two garlands is that city crowned! with what golden fetters is she girdled; what fountains does she possess! Therefore do I admire that city; not for the multitude of its gold, nor for its columns, nor for its other splendours, but for these the pillars of the Church."^[55] Had St. Chrysostom felt like a Roman Catholic could he have stopped there? Loving Rome for possessing

the blessed and priceless bodies of the two Apostles, could he have failed to mention the sovereignty of the universal Church, which together with his body Peter had left enshrined at Rome? Would it not have seemed to him by far the greatest marvel at Rome, as it has to a late eloquent partisan, that Providence has placed "in the middle of the world, to be there the chief of a religion without its like, and of a society spread everywhere, a man without defence, an old man who will be the more threatened, the more the increase of the Church in the world shall augment the jealousy of princes, and the hatred of his enemies."^[56] "This vicar of God, this supreme pontiff of the Catholic Church, this Father of kings and of nations, this successor of the fisherman Peter, he lives, he raises among men his brow, charged with a triple crown, and the sacred weight of eighteen centuries; the ambassadors of nations are at his court: he sends forth his ministers to every creature, and even to places which have not yet a name. When from the windows of his palace he gazes abroad, his sight discovers the most illustrious horizon in the world, the earth trodden by the Romans, the city they had built with the spoils of the universe, the centre of things under their two principal forms, matter and spirit: where all nations have passed; all glories have come: all cultivated imaginations have at least made a pilgrimage from far: Rome, the tomb of Martyrs and Apostles, the home of all recollections. And when the Pontiff stretches forth his arms to bless it, together with the world which is inseparable from it, he can bear a witness to himself which no sovereign shall ever bear, that he has neither built nor conquered, nor received his city, but that he is its inmost and enduring life, that he is in it like the blood in the heart of man, and that right can go no further than this, a continuous generation which would make the parricide a suicide." Such feelings as these are what any Churchman must habitually entertain, who looks on the Roman Pontiff as at once the governing power and the life of the Church. Could, then, St. Chrysostom have beheld in Rome the Church's heart, whence her life-blood courses over the whole body, and have seen no reason to love her for that? or have stated that she was more remarkable for possessing even the bodies of the blessed Apostles than for all other things together? What Roman Catholic would so speak now? The power of the Roman Pontiff in the Latin Communion is actually such, that Lacordaire's words respecting the city of Rome apply to the whole Church; to destroy that power would be to destroy the Church herself; the parricide would be a suicide. But how can this dogma be imposed upon us as necessary to

salvation, if St. Augustin, St. Chrysostom, and the Church of their day knew it not? or let it be shown us, how any men who did know it, could either have written as they write, or have been silent as they are silent.

We may sum up St. Augustin's view of the relation of the Roman Pontiff to his brother Bishops in his own beautiful words to Pope Boniface: "To sit on our watch-towers and guard the flock belongs in common to all of us who have episcopal functions, although the hill on which you stand is more conspicuous than the rest."^[57] My object in these remarks throughout has been to show, that a denial of either of these truths is a violation of the Church's divine constitution. The Papacy has greatly obscured the essential equality of Bishops; its opponents have avenged themselves by explaining away the unquestionable Primacy of St. Peter, and its important action on the whole Church.

What this Primacy was, and how it was exercised at a most important crisis of the Church, I will now endeavour to show. Five years after the decision of the African Bishops about appeals, the third Ecumenical Council assembled at Ephesus,—and here, as in other cases, I prefer that another should speak, and he the most illustrious Prelate of France in modern times.^[58] "In the third general Council of Ephesus, and in those which follow, our whole argument will appear in clearer light, its Acts being in our hands; and there existing very many judgments of Roman Pontiffs *on matters of faith*, set forth with the whole authority of their see, which were afterwards reconsidered in general Councils, and only approved after examination, than which nothing can be more opposed to the opinion of infallibility. And as to the Council of Ephesus, the thing is clear. The innovation of Nestorius, Bishop of Constantinople, is known; how, by denying to the Virgin Mary the title of 'Mother of God,' he divided into two the person of Christ. Pope St. Cœlestine, watchful, according to his office, over the affairs of the Church, had charged the blessed Cyril, Bishop of Alexandria, to send him a certain report of the doctrine of Nestorius, already in bad repute. Cyril declares this in his letter to Nestorius; and so he writes to Cœlestine all the doctrines of Nestorius, and sets forth his own: he sends him two letters from himself to Nestorius, who likewise, by his own letters and explanations, endeavoured to draw Cœlestine to his side. Thus the holy Pontiff, having been most fully informed by letters from both sides, is thus inquired of by Cyril. 'We have not confidently abstained from communion with him

(Nestorius) before informing you of this; condescend, therefore, to unfold your judgment, that we may clearly know whether we ought to communicate with him who cherishes such erroneous doctrine." And he adds, that his judgment should be written to the other Bishops also, "that all with one mind may hold firm in one sentence." Here is the Apostolic See manifestly consulted by so great a man, presiding over the second, or at least the third, Patriarchal See, and its judgment awaited; and nothing remained but that Cœlestine, being duly consulted, should perform his Apostolic office. But how he did this, the acts themselves will speak out.

"And first, he approves of Cyril's letters and doctrine; for he writes to him thus: 'We perceive that you hold and maintain all that we hold and maintain:' and to Nestorius, 'We have approved, and do approve, the faith of the Prelate of the Church of Alexandria:' and he threatens him with extremities, 'If you preach not that which Cyril preaches.' Nothing could be said more marked. Nor does he only approve Cyril's doctrine, but disapproves, too, the perverse dogma of Nestorius: 'We have seen,' he says, 'your letters containing open blasphemy;' and that distinctly, because he was unwilling to call the Blessed Virgin 'Mother of God:' and he decrees that he should be deprived of the episcopate and communion, unless, within ten days from the date of the announcing of the sentence, he openly rejects this faithless innovation, which endeavours to separate what Scripture joineth together, that is, the Person of Christ. Here is the doctrine of Nestorius expressly disapproved, and a sentence of the Roman Pontiff on a matter of faith most clearly pronounced under threat of deposition and excommunication: then, that nothing be wanting, the holy Pope commits his authority to Cyril to carry into execution that sentence, 'associating,' he saith to Cyril, 'the authority of our See, and using our person, place, and power:' so to Nestorius himself; so to the Clergy of Constantinople; so to John of Antioch, then the Bishop of the third or fourth Patriarchal See; so to Juvenal, Bishop of the Holy City, whom the Council of Nice had ordered to be especially honoured: so he writes to the other Bishops also, that the sentence given may be duly and in order made known to all. Cyril proceeds to execute his office, and performs all that he had been commanded. He promulgates and executes the decrees of Cœlestine; declares to Nestorius, that after the *ten* days prescribed and set forth by Cœlestine, he would have no portion, intercourse, or place with the Priesthood. Nothing evidently is

wanting to the Apostolical authority being most fully exercised; but whether the sentence put forward with such authority, after a great dissension had arisen and mention been made of an Ecumenical Council, was held to be final, the succeeding acts will demonstrate.

"We have often said—we shall often say—that it is the constitution of the Church only in extraordinary cases and dissensions to recur, of necessity, to an Ecumenical Council. But in the usual order even the most important questions on the faith, when they arise, are terminated by the consent of the Church being added to the decree of the Roman Pontiff. This is clearly manifest from the cause of Nestorius. We confess plainly that the sentence of Cœlestine would have been sufficient, as Cyril hoped, to repress the new heresy, had not great commotions arisen, and the matter seemed of such a nature as to be referred to an Ecumenical Council. But Nestorius, Bishop of the royal city, possessed such influence, had deceived men's minds with such an appearance of piety, had gained so many Bishops, and enjoyed such favour with the younger Theodosius and the great men, that he could easily throw everything into commotion; and thus there was need of an Ecumenical Council, the question being most important, and the person of the highest dignity; because many Bishops, amongst these almost all of the East, that is, of the province of Antioch, and the Patriarch John himself, were ill disposed to Cyril, and seemed to favour Nestorius; because men's feelings were divided, and the whole empire of the East seemed to fluctuate between Cyril and Nestorius. Such was the need of an Ecumenical Council.

"To this must be added the prayers of the pious and orthodox; here were most pious monks, who had suffered much from Nestorius for the orthodox faith, and the expression, 'Mother of God,' supplicating the Emperor 'for a sacred and Ecumenical Council to assemble, by the presence of which he should unite the most holy Church, bring back the people to one, and restore to their place the Priests who preached the pure faith, before that impious doctrine (of Nestorius) crept wider.' And again, 'We have asked you to call together an Ecumenical Council, which can most fully consolidate and restore the tottering.' Here, after the judgment of the Roman Pontiff, a firm and complete settling of the tottering state of things is sought for by the pious in an Ecumenical Council.

"The Emperor, moved by these and other reasons, wrote to Cyril,—'It is our will that the holy doctrine be discussed and examined in a sacred Synod, and that be ratified which appeareth agreeable to the right faith, whether the wrong party be pardoned by the Fathers or no.'

"Here we see three things: first, after the judgment of St. Cœlestine, another is still required, that of the Council; secondly, that these two things would rest with the Fathers, to judge of doctrine and of persons; thirdly, that the judgment of the Council would be decisive and final."

"He adds, 'those who everywhere preside over the priesthood, and through whom we ourselves are and shall be professing the truth, must be judges of this matter; on whose faith we rest.' See in whose judgment is the final and irreversible authority.

"Both the Emperor affirmed, and the Bishops confessed, that this was done according to the Ecclesiastical Canons. And so all, and Cœlestine himself, prepared themselves for the Council. Cyril does no more, though named by Cœlestine to execute the pontifical decree. Nestorius remained in his original rank; the sentence of the universal Council is awaited; and the Emperor had expressly decreed, 'that before the assembling and common sentence of the most holy Council, no change should be made in any matter at all, on any private authority.' Rightly, and in order; for this was demanded by the majesty of an universal Council. Wherefore, both Cyril obeyed and the Bishops rested. And it was established, that although the sentence of the Roman Pontiff on matters of faith, and on persons judged for violation of the faith, had been passed and promulged, all was suspended, while the authority of the universal Council was awaited. This we have seen acted on by the Emperor, acquiesced in by the Bishops and the Pope himself. The succeeding acts will declare that it was approved in the Ecumenical Council itself.

"Having gone over what preceded the Council, we review the acts of the Council itself, and begin with the first course of proceeding. After, therefore, the Bishops and Nestorius himself were come to Ephesus, the universal Council began, Cyril being president, and representing Cœlestine, as being appointed by the Pontiff himself to execute his sentence. In the first course of proceeding this was done. First, the above-mentioned letter

of the Emperor was read, that an Ecumenical Council should be held, and all proceedings in the mean time be suspended: this letter, I say, was read, and placed on the acts, and it was approved by the Fathers, that all the decrees of Cœlestine in the matter of Nestorius had been suspended until the holy Council should give its sentence. You will ask if it was the will of the Council merely that the Emperor should be allowed to prohibit, in the interim, effect being given to the sentence of the Apostolic See. Not so, according to the acts; but rather, by the intervention of a General Council's authority, (the convocation of which, according to the discipline of those times, was left to the Emperor,) the Council itself understood that all proceedings were of course suspended, and depended on the sentence of the Council. Wherefore, though the decree of the Pontiff had been promulged and notified, and the ten days had long been past, Nestorius was held by the Council itself to be a Bishop, and called by the name of Most Religious Bishop, and by that name, too, thrice cited and summoned to take his seat with the other Bishops in the holy Council; for this expression, to take his seat, is distinctly written; and it is added, in order to answer to what was charged against him. For it was their full purpose that he should recognise, in whatever way, the Ecumenical Council, as he would then afterwards be, beyond doubt, answerable to it; but he refused to come, and chose to have his doors besieged with an armed force, that no one might approach him.

"Thereupon, as the Emperor commanded, and the Canons required, the rule of faith was set forth, and the Nicene Creed read, as the standard to which all should be referred, and then the letters of Cyril and Nestorius were examined in order. The letter of Cyril was first brought before the judgment of the Council. That letter, I mean, concerning the faith, to Nestorius, so expressly approved by Pope Cœlestine, of which he had declared to Cyril, 'We see that you hold and maintain all that we hold and maintain;' which, by the decree against Nestorius, published to all churches, he had approved, and, wished to be considered as a canonical monition against Nestorius: that letter, I repeat, was examined, at the proposition of Cyril himself, in these words: 'I am persuaded that I have in nothing departed from the orthodox faith, or the Nicene Creed; wherefore I beseech your Holiness to set forth openly whether I have written this correctly, blamelessly, and in accordance with that holy Council.'

"And are there those who say that questions concerning the faith, once judged by the Roman Pontiff on his Apostolical authority, are examined in general Councils, in order to understand their contents, but not to decide on their substance, as being still a matter of question? Let them hear Cyril, the President of the Council; let them attend to what he proposes for the inquiry of the Council: and though he were conscious of no error in himself, yet, not to trust himself, he asked for the sentence of the Council in these words: 'whether he had written correctly and blamelessly, or not.' This Cyril, the chief of the Council, proposes for their consideration. Who ever even heard it whispered, that after a final and irreversible judgment of the Church on a matter of faith, any such inquiry or question was made? It was never so done, for that would be to doubt about the faith itself, when declared and discussed. But this was done after the judgment of Pope Cœlestine: neither Cyril, nor any one else, thought of any other course: that, therefore, was not a final and irreversible judgment.

"In answer to this question, the Fathers in order give their judgment,—'that the Nicene Creed, and the letter of Cyril in all things agree and harmonise.' Here is inquiry and examination, and then judgment. The acts speak for themselves: we say not here a word.

"Next that letter of Nestorius was produced, which Cœlestine had pronounced blasphemous and impious. It is read: then at the instance of Cyril it is examined, 'whether this, too, be agreeable to the faith set forth by the holy Council of the Nicene Fathers, or not.' It is precisely the same form according to which Cyril's letter was examined. The Fathers, in order, give judgment that it disagreed from the Nicene Creed, and was, therefore, censurable. The letter of Nestorius is disapproved in the same manner, by the same rule, by which that of Cyril was approved. Here, twice in the same proceeding of the Council of Ephesus, a judgment of the Roman Pontiff concerning the Catholic Faith, uttered and published, is re-considered. What he had approved and what he had disapproved, is equally examined, and, only after examination, confirmed.

"These were the first proceedings of the Council of Ephesus in the matter of faith. We proceed to review what concerns the person of Nestorius, in the same proceeding. First, the letter of Cœlestine to Cyril is read and placed on the Acts; that, I mean, in which he gave sentence concerning Nestorius: on

which sentence, as the Fathers were shortly, after full consideration, to pass their judgment, for the present it was only to be placed among the Acts. In the letter of Cœlestine there was no special doctrine: it only contained an approval of Cyril's doctrine and letter, and a disapproval of those of Nestorius; concerning which letters of Cyril and Nestorius, the judgment of the Holy Council was already past, so that it would be superfluous to add anything to them.

"But for the same reason, the other letter of Cyril being read,—that, I mean, which executed the sentence of Cœlestine,—nothing special was done concerning that letter, but it was only ordered to be placed on the Acts.

"After these preliminaries, judgment was to be pronounced on the person of Nestorius. Inquiry was made, whether what Cœlestine had written to Nestorius, and what Cyril had done in execution, had been notified to Nestorius; it was certified that it had been notified, and that he had remained still in his opinion: and that the days had elapsed, both which were first fixed by St. Cœlestine, and, afterwards by the Emperor, convoking the Council. Next, for accumulation of proof, testimonies of the Fathers are compared with the explanations of Nestorius: the huge discrepancy shows Nestorius to be an innovator and heretic. A decree is made in these words. The holy Council declares,—'Since the most impious Nestorius has neither been willing to obey our procedures, nor to admit the Bishops deputed by us, we have, necessarily, proceeded to the examination of what he has impiously taught: finding, therefore, partly from his own letters, partly from his discourses, that he holds and preaches impiety,—compelled by the holy Canons, and by the letters of our most holy Father, our fellow-minister, Cœlestine, Bishop of the Roman Church,—we have come to this sentence: "Our Lord Jesus Christ, by this most holy Council, declareth Nestorius to be deprived of his dignity.'" You see the Canons joined with the letters of Cœlestine in terms, indeed, of high honour, which tend to set forth the majesty of the Apostolic see. You see the Council carry out what Cœlestine decreed, and thus compelled it comes to a painful judgment, but that a new one, and put forth in its own terms in the name of Christ; and after, by legitimate inquiry, it was evident that all had been done rightly and in order.

"Finally, the sentence pronounced by the Council, is written to the most impious Nestorius: 'The holy Council to Nestorius, another Judas: know thou hast been deposed by the holy Council. So he, who before the inquiry of the holy Council was called the most religious Bishop, after this inquiry, is presently set forth as most impious, as another Judas, and as deposed by an irrevocable sentence, from his episcopal seat.

"Thus a most weighty matter is completed by the most weighty agreement; that same which we have asserted gives validity to everything in the Church: and the order of the judgment is plain in itself. That is, sentence is put forth by Cœlestine; it is suspended by the Convocation of a General Council; it is heard and examined; it is corroborated by a new and irrevocable judgment, united with the authority of the whole Church. This the Fathers declare in their report to the Emperor: 'We have removed Nestorius from his see, and canonically deprived him; highly extolling Cœlestine, Bishop of Great Rome, who before our sentence had condemned the heretical doctrines of Nestorius, and had anticipated us in giving judgment against him.' This is that unity, this that agreement, which gives invincible and irresistible force to ecclesiastical judgments.

"So every thing is in harmony, and our judgment is supported. For in that the holy Council approves and executes the judgment of the Apostolical see, on a matter of faith and on a person, it does, indeed, recognise the legitimate power and primacy of the said see. In that it does not approve of its judgment, until after legitimate hearing and renewed inquiry, it instructs us that the Roman Pontiff is, indeed, superior to all Bishops, but is inferior only to a General Council, even in matters of faith. Which was to be proved.

"In the mean time, the Bishops Arcadius and Projectus, and the Presbyter Philip, had been chosen by Cœlestine to be present at the Council of Ephesus, with a special commission from the Apostolic see, and the whole Council of the West. So they come from Rome to Ephesus, and appear at the holy Council, and here the second procedure commences.

"Wolf, of Louvain, amongst other records of antiquity, has put forth the charge of Cœlestine to his Legates, and his instructions, as Cœlestine himself calls them. In these he charged them, to defend the dignity of the

Apostolic see; 'not to mix themselves with the dissensions of the Bishops, whose judges they should be,' in conjunction, that is, with the Council: 'to confer on proceedings with Cyril, as being faithful.' We shall now review what they did, in compliance with these orders: and by this we shall easily show that our cause is confirmed.

"First, they bring forward the letter of St. Cœlestine to the Council, in which the charge committed to his Legates is thus expressed:—'We have directed our holy brethren to be present at the proceedings, and to execute what we have ordained.' Hence, it is evident, that the Council of Ephesus was employed in executing the Apostolical judgment. But of what sort this execution is, whether it be, as they will have it, mere obedience, or by a legitimate hearing of the Council itself, and then by a certain and infallible judgment, the ensuing proceedings will show.

"After reading the letter of Cœlestine, the Legates, in pursuance, say to the Bishops;—'According to the rule of our common faith, command to be completely and finally settled what Cœlestine hath had the goodness before to lay down and now to remind you of.' This is the advantage of a Council; after whose sentence there is no new discussion, or new judgment, but merely execution. And this the Legates request to be commanded by the Council, in which they recognise that supreme authority.

"Firmus, Bishop of Cæsarea, in Cappadocia, answers for the Council;—'The Apostolical and holy See of the Bishop Cœlestine hath prescribed the sentence and rule for the present matter.' The Greek words are, hath first set forth the sentence and rule, or type, which expression is afterwards rendered, form. We will not quarrel about words; let us hear the same Firmus accurately explaining what the thing is:—'We,' says he, 'have charged to be executed this form respecting Nestorius, alleging against him the Canonical and Apostolic judgment;' that is, in the first procedure, in which, after examination and deliberation, we have seen the decree of Cœlestine confirmed. Thus a general Council executes the sentence of the First See, by legitimate hearing and inquiry, and not as a simple functionary; but after giving a canonical and apostolical judgment. Let the Pope's decree, as is due to the authority of so great a See, be the form, the rule; which same, after convocation of a Council, only receives full authority from the common judgment.

"It behoved, also, that the Legates, sent to the Council on a special mission, should understand whether the proceedings against Nestorius had been pursued according to the requisition of the Canons, and due respect to the Apostolic See. This we have already often said; wherefore, with reason, they require the acts to be communicated, 'that we too,' say they, 'may confirm them.' The proceedings themselves will declare what that confirmation means.

"After that, at the request of the Legates, the acts against Nestorius were given them, they thus report about them at the third procedure:—'We have found all things judged canonically, and according to the Church's discipline.' Therefore judgments of the Apostolic see are canonically, and, according to the Church's discipline, re-considered, after deliberation, in a General Council, and judgment passed upon them.

"After the Legates had approved the acts against Nestorius communicated to them, they request that all which had been read and done at Ephesus from the beginning, should be read afresh in public Session, 'in order,' they say, 'that obeying the form of the most holy Pope Cœlestine, who hath committed this care to us, we may be enabled to confirm the judgment also of your Holiness.' After these all had been read afresh, and the Legates agreed to them, Cyril proposes to the holy Council, 'That the Legates, by their signature, as was customary, should make plain and manifest their canonical agreement with the Council.' To this question of Cyril the Council thus answers, and decrees that the Legates, by their subscription, confirm the acts; by which place, this confirmation, spoken of by the Council, is clearly nothing else but to make their assent plain and manifest, as Cyril proposed. This true and genuine sense of confirmation we have often brought forward, and shall often again; and now congratulate ourselves that it is so clearly set before us by the holy Council of Ephesus.

"But of what importance it was that the decrees of Ephesus should be confirmed by the authority of the Legates of the Apostolic see, as says Projectus, one of the Legates, is seen from hence; because, although Cyril, having been named the executor of the Pope's sentence, had executed it in the Council, yet he had not been expressly delegated to the Council, of which Cœlestine had yet no thought, when he entrusted Cyril to represent him. But Arcadius, Projectus and Philip, being expressly sent by Cœlestine

to the Council, confirmed the acts of the Council, in virtue of their special commission, and put forth in clear view by all manner and testimony the consent of all Churches with the chief Church, that of Rome.

"Add to this, that the Legates, sent by special commission to the Council of Ephesus, bore the sentence, not only of the Apostolic see, but also of the whole West, whence the Presbyter Philip, one of the Legates, after all had been read afresh, and approved by common consent, thus sums up; 'It is then established according to the decree of all Churches, for the Priests of the Church, (Eastern and Western,) either by themselves, or by their Legates, to take part in this consent of the Priesthood, which was pronounced against Nestorius.'

"Hence it is clear how the decrees of the Churches themselves mutually confirm each other; for all those things have force of confirmation, which declare the consent and unity of all Churches, inasmuch as the strength of ecclesiastical decrees itself consists in unity and mutual agreement. So that, in putting forth an exposition of the faith, the East and the West, and the Apostolic see and Synodical assemblies, mutually confirm each other; whence, too, we read that acclamation to Cœlestine, in the Council of Ephesus:—'To Cœlestine, guardian of the faith, (to Cœlestine agreeing with the Council,) one Cœlestine, one Cyril one faith of the Council,' (one faith of the whole world.)

"These acclamations, then, of Catholic unity being heard, Philip, the Legate, thus answers:—'We return thanks to your holy and venerable Council, because, by your holy voices, as holy members, you have joined yourselves to a holy head; for your blessedness is not ignorant that the blessed Peter is the head of the whole faith, or even of the Apostles.' This, therefore, is the supreme authority—the supreme power—that the members be joined with each other, and to the Roman Pontiff, as their head. Because the force of an ecclesiastical judgment is made invincible by consent.

"Finally, Cœlestine himself, after the conclusion of the whole matter, sends a letter to the holy Council of Ephesus, which he thus begins; 'At length we must rejoice at the conclusion of evils.' The learned reader understands where he recognises the *conclusion*; that is, after the condemnation of Nestorius by the infallible authority of an Ecumenical Council, viz. of the

whole Catholic Church. He proceeds: 'We see, that you, with us, have executed this matter so faithfully transacted.' All decree, and all execute, that is, by giving a common judgment. Whence Cœlestine adds, 'We have been informed of a just deposition, and a still juster exaltation:' the deposition of Nestorius, begun, indeed, by the Roman see, but brought to a conclusion by the sentence of the Council; to a full and complete settlement, as we have seen above: the exaltation of Maximianus, immediately after the Ephesine decrees substituted in place of Nestorius: this is the conclusion of the question. Even Cœlestine himself recognises this conclusion to lie not in his own examination and judgment, but in that of an Ecumenical Council.

"And this was done in that Council in which it is admitted that the authority of the Apostolic See was most clearly set forth, not only by words, but by deeds, of any since the birth of Christ. At least the Holy Council gives credence to Philip uttering these true and magnificent encomiums, 'concerning the dignity of the Apostolic See, and Peter the head and pillar of the Faith, and foundation of the Catholic Church, and by Christ's authority administering the keys, who to this very time lives ever, and exercises judgment in his successors.' This he says, after having seen all the acts of the Council itself, which we have mentioned, so that we may indeed understand, that all these privileges of Peter and the Apostolic See entirely agree with the decrees of the Council, and the judgment entered into afresh, and deliberation upon matter of faith held after the Apostolic See."

The letter of Pope Cœlestine, received with all honour as that of the first Bishop in the world, recognises likewise the authority of his brethren. It began thus: "The assembly of Priests is the visible display of the presence of the Holy Ghost. He who cannot lie has said, 'Where two or three are gathered together in my name, there am I in the midst of them:' much more will He be present in so large a crowd of holy men; for the Council is indeed holy in a peculiar sense,—it claims veneration as the representative of that most holy Synod of Apostles which we read of. Their Master, whom they were commanded to preach, never forsakes them. It was He who taught them, it was He who instructed them, what they should teach others; and He has assured the world, that in the person of His Apostles they hear him. This charge of teaching has descended equally upon all Bishops. We are all engaged in it by an hereditary right; all we, who having come in their

stead, preach the name of our Lord to all the countries of the world, according to what was said to them, 'Go ye and teach all nations.' You are to observe, my brethren, that the order we have received is a general order, and that He intended that we should all execute it, when he charged them with it as a duty devolving equally upon all. We ought all to enter into the labours of those whom we have all succeeded in dignity."

"Thus Pope Cœlestine acknowledged that it was Christ Himself who established Bishops in the persons of His Apostles, as the teachers of His Church: He places Himself in their rank, and declares that they ought all to concur in the preservation of the sacred deposit of Apostolical doctrine."^[59]

The importance of this testimony will be felt by those who remember that Bellarmine specifically denies that the government of the Church resides in Bishops generally; and that in this he is at least borne out by the last three centuries of Roman practice.

Bossuet proceeds to remark as follows:—"From this doctrine of St. Cœlestine we draw many conclusions: first, this,—that Bishops in the Apostles were appointed teachers by Christ Himself, not at all by Peter, or Peter's successors. Nor does a Pontiff, seated in so eminent a place, think it unworthy to mix himself with the rest of the Bishops. 'We all,' he says, 'in the stead of the Apostles preach the name of the Lord: we all have succeeded them in honour.' Whence it is the more evident that authority to teach was transmitted from Christ, as well to Cœlestine himself, as to the rest of the Bishops. Hence that the deposit of sacred doctrine is committed to all, the defence of which lies with all; and so the faith is to be settled by common care and consent; nor will the protection of Christ, the true Master, be wanting to the masters of Churches. This Cœlestine lays down equally respecting himself and all Bishops, successors of the Apostles. Then what agrees with it: that as the Apostles, assembled on the question concerning legal rites, put forth their sentence as being at once that of the Holy Spirit and their own, so too shall it be in other most important controversies; and the Council of the Apostles will live again in the Councils of Bishops. Which indeed shows us, that authority and the settlement of the question lies not in the sentence of Peter alone, or of Peter's successors, but in the agreement of all.

"Nor, therefore, does Cœlestine infringe on his own privilege in reckoning himself with the other successors of the Apostles; for as the other Bishops were made successors to the other Apostles, so he, being made by Christ successor to Peter their chief, everywhere takes precedence of all by authority of Peter, as we read set forth and acted on in the same Council.

"Thus in the third holy General Council, and in those first ages, we both prove against heretics, that the power of the Apostolical See everywhere takes precedence and leads all, and, what is of the most importance, in the name of Peter, and so as instituted by Christ. Not less do we show to Catholics, that the final and infallible force of an ecclesiastical judgment is seated there, where to the authority of Peter, that is, of the Pope, is added the authority and agreement of Bishops also, who are throughout the whole world in the stead of Apostles; which alone the Church of France demands,"^[60]—and, we may add, the Church of England.

Again; compare the spirit of St. Cœlestine's words with the spirit that dictated the following to De Maistre, whom we might leave alone, if he were not the exponent of a theory now in the greatest vogue in the Roman Church;—a theory, indeed, which those must accept, who leave us, without any chance of modification; for it is not Bossuet's most Catholic doctrine, but Bellarmine's, which is acted on and taught now. "I do not affect to cast the least doubt upon the infallibility of a general Council. I merely say, that it only holds this high privilege from its head, to whom the promises have been made. We know well that the gates of hell shall not prevail against the Church. But why? On account of Peter, on whom she is founded. Take away this foundation, how would she be infallible, since she exists no longer? Unless I am deceived, in order to be something, one must first exist."^[61]

Again: "We see that for two centuries and a half religion has done very well without them (General Councils), and I do not think that any one thinks of them, in spite of the extraordinary needs of the Church, for which the Pope will provide much better than a General Council, if only people knew how to avail themselves of his power."^[62]

It must not be forgotten that this same Council of Ephesus, which allows none but heretics to refuse to the blessed Virgin the title and the honour of 'Mother of God,' confirms by its eighth Canon the Episcopal and Patriarchal

system, and bears the strongest testimony against the Roman. It runs thus: "The most beloved of God and our fellow-bishop Rheginus, and Zeno and Evagrius, the most religious Bishops of the Province of Cyprus, have declared unto us an innovation which has been introduced contrary to the laws of the Church, and the Canons of the holy Fathers, and which affects the liberty of all. Wherefore since evils which affect the community require more attention, inasmuch as they cause greater hurt; and especially since the Bishop of Antioch has not so much as followed an ancient custom in performing ordinations in Cyprus, as those most religious persons who have come to the holy Synod have informed us, by writing and by word of mouth; we declare that they who preside over the holy Churches which are in Cyprus, shall preserve, without gainsaying or opposition, their right of performing by themselves the ordinations of the most religious Bishops, according to the Canons of the holy Fathers and the ancient custom. The same rule shall be observed in all the other Dioceses, and in the Provinces everywhere, so that none of the most religious Bishops shall invade any other Province, which has not heretofore from the beginning been under the hands of himself or his predecessors. But if any one has so invaded a Province and brought it by force under himself, he shall restore it, that the Canons of the Fathers may not be transgressed, nor the pride of secular dominion be privily introduced under the appearance of a sacred office, nor we lose by little the freedom which our Lord Jesus Christ, the deliverer of all men, has given us by His own blood. The Holy and Ecumenical Synod has therefore decreed, that the rights which have heretofore, and from the beginning, belonged to each province, shall be preserved to it pure and without restraint, according to the custom which has prevailed of old, each metropolitan having permission to take a copy of the things now transacted for his own security. But if any one shall introduce any regulation contrary to what has been now defined, the whole Holy and Ecumenical synod has decreed that it shall be of no effect."^[63]

It must be allowed that De Maistre has very good reasons for disliking General Councils.

Nine years after this Council, St. Leo the Great became Pope, whose long and able Pontificate will afford us the best means of judging what the legitimate power of the Roman See was, and how it tended to the preservation and unity of the whole Church. He lived at an important crisis,

when the barbarous tribes of the North were about to burst over the Empire and the Church; the system of which, had it not been consolidated by himself, his immediate predecessors and successors, might have been dissolved and broken up into fragments.

I will first show, by a few quotations, that St. Leo had no slight sense of his own duty and dignity among his brother Bishops. We will then see how his actions, and the way in which they were received by others, supported his words.

In a sermon on the anniversary of his consecration, after noticing with pleasure the number of Bishops present, he continues, "Nor, as I trust, is the most blessed Apostle Peter, in his kind condescendence and faithful love, absent from this assembly, nor does he disregard your devotion, reverence for whom has drawn you together. And so he at once rejoices at your affection, and welcomes the observance of the Lord's Institution in those who share his honour; approving that most orderly charity of the whole Church, which in Peter's see receives Peter, and slackens not in love to so great a shepherd, even in the person of so unworthy an heir." On a like occasion,—"*Although, then, beloved, our partaking in that gift be a great subject for common joy, yet it were a better and more excellent course of rejoicing, if ye rest not in the consideration of our humility: more profitable and more worthy by far it is to raise the mind's eye unto the contemplation of the most blessed Apostle Peter's glory, and to celebrate this day chiefly in the honour of him who was watered with streams so copious from the very Fountain of all graces, that while nothing has passed to others without his participation, yet he received many special privileges of his own. The Word made flesh already dwelt in us, and Christ had given up Himself whole to restore the race of man. Wisdom had left nothing unordered; power left nothing difficult. Elements were obeying, spirits ministering, angels serving; it was impossible that Mystery could fail of its effect in which the Unity and the Trinity of the Godhead Itself was at once working. And yet out of the whole world, Peter alone is chosen to preside over the calling of all the Gentiles, and over all the Apostles, and the collected Fathers of the Church: so that though there be among the people of God many priests and many shepherds, yet Peter rules all by personal commission (propriè), whom Christ also rules by sovereign power. Beloved, it is a great and wonderful participation of His own power which the Divine*

condescendence gave to this man: and if He willed that other rulers should enjoy ought together with him, yet never did He give, save through him, what He denied not to others. In fine, the Lord asks all the Apostles what men think of Him; and they answer in common so long as they set forth the doubtfulness of human ignorance. But when what the Disciples think is required, he who is first in Apostolic dignity is first also in confession of the Lord. And when he had said, 'Thou art Christ, the Son of the living God,' Jesus answered him, 'Blessed art thou, Simon Bar-Jona, because flesh and blood hath not revealed it to thee, but My Father, which is in heaven:' that is, Thou art blessed, because My Father hath taught thee; nor opinion which is of the earth deceived thee, but heavenly inspiration instructed thee; and not flesh and blood hath shown Me to thee, but He, whose only-begotten Son I am. And I, saith He, say unto thee, that is, as My Father hath manifested to thee My Godhead, so I, too, make known to thee thine own pre-eminence. For thou art Peter; that is, whilst I am the immutable Rock, I, the cornerstone, who make both one, I, the foundation beside which no one can lay another; *yet thou also art a rock, because by My virtue thou art established, so that whatever is Mine by sovereign power, is to thee by participation common with Me.* And upon this rock I will build My Church, and the gates of hell shall not prevail against it: on this strength, saith He, I will build an eternal temple, and My Church, which in its height shall reach the heaven, shall rise upon the firmness of this faith. This confession the gates of hell shall not restrain, nor the chains of death fetter; for that voice is the voice of life. And as it raises those who confess it unto heavenly places, so it plunges those who deny it into hell. Wherefore it is said to most blessed Peter, 'I will give to thee the keys of the kingdom of heaven; and whatsoever thou shalt bind on earth, shall be bound in heaven, and whatsoever thou shalt loose on earth shall be loosed in heaven.' The privilege of this power did indeed pass to the other Apostles, and the order of this decree reached to all the rulers of the Church, but not without purpose what is intended for all is put into the hands of one. For therefore is this entrusted to Peter singly, because all the rulers of the Church are invested with the figure of Peter. The privilege, therefore, of Peter remaineth, wheresoever judgment is passed according to his equity. Nor can severity or indulgence be excessive, where nothing is bound, nothing loosed, save what blessed Peter either bindeth or looseth. But at the approach of His passion, which would disturb the firmness of His disciples,

the Lord saith, 'Simon, Simon, behold Satan hath desired to have you, that he may sift you as wheat; but I have prayed for thee, that thy faith fail not, and when thou art converted, strengthen thy brethren, that ye enter not into temptation.' The danger from the temptation of fear was common to all the Apostles, and they equally needed the help of Divine protection, since the devil desired to dismay, to make a wreck of all: and yet the Lord takes care of Peter in particular, and asks specially for the faith of Peter, as if the state of the rest would be more certain, if the mind of their Chief were not overcome. *So then in Peter the strength of all is protected, and the help of Divine grace is so ordered, that the stability, which through Christ is given to Peter, through Peter is conveyed to the Apostles.*

"Since, therefore, beloved, we see such a protection divinely granted to us, reasonably and justly do we rejoice in the merits and dignity of our Chief, rendering thanks to the Eternal King, our Redeemer, the Lord Jesus Christ, for having given so great a power to him whom He made chief of the whole Church, that if anything, even in our time, by us be rightly done and rightly ordered, it is to be ascribed to his working, to his guidance, unto whom it was said,—'And thou, when thou art converted, strengthen thy brethren;' and to whom the Lord, after His resurrection, in answer to the triple profession of eternal love, thrice said with mystical intent, 'Feed My sheep.' And this, beyond a doubt, the pious shepherd doth even now, and fulfils the charge of his Lord; strengthening us with his exhortations, and not ceasing to pray for us, that we may be overcome by no temptation. But if, as we must believe, he everywhere discharges this affectionate guardianship to all the people of God, how much more will he condescend to grant his help unto us his children, among whom on the sacred couch of his blessed repose he resteth in the same flesh in which he ruled. To him, therefore, let us ascribe this anniversary day of us his servant, and this festival, by whose advocacy we have been thought worthy to share his seat itself, the grace of our Lord Jesus Christ helping us in all things, Who liveth and reigneth with God the Father and the Holy Spirit for ever and ever." I have before me similar passages in abundance; but these are enough to show how far the teaching of St. Leo, as to his own office, agreed with, how far went beyond, that of St. Augustin. The combination of the Patriarch's, and still more of the universal Primate's, power with that of the Bishop, is a nice point. If this be pushed too far, it issues in a monarchy; if the other alone be allowed, it

converts the one kingdom of Jesus Christ into an unlimited number of petty republics. On the one hand there is danger pregnant to the high priesthood of the Church; on the other hand, to the sacrament of unity. The one-sided development of St. Leo's teaching has produced the Papacy, in which the Bishops, who represent the Apostles, are no longer the brethren, co-ordinate in authority, but the delegates, of St. Peter's successor: but the one-sided development of St. Cyprian's teaching has rent into pieces the seamless robe of Christ. Yet this need not be so: in the bright days of the Church of Christ it was not so. Surely the first six centuries of her existence are not a dream; and that beautiful image of St. Augustin not an imagination, but what he saw before his eyes: "to sit on our watch-towers, and guard the flock, belongs in common to all of us who have episcopal functions, although the hill on which you stand is more conspicuous than the rest."

A Pontiff so deeply and religiously impressed with the prerogatives of St. Peter's successor was likely to be energetic in discharging his duties. In truth we behold St. Leo set on a watch-tower, and directing his gaze over the whole Church: over his own West more especially, but over the East too, if need be. He can judge Alexandria, Antioch, and Constantinople, as well as Eugubium, and is as ready too. Wherever Canons are broken, ancient custom disregarded, encroachments attempted, where Bishops are neglectful, or Metropolitans tyrannical, where heresy is imputed to Patriarchs, in short, wherever a stone in the whole sacred building is being loosened, or threatens to fall, there is he at hand to repair and restore, to warn, to protect, or to punish. But still they are brethren, they are equals, they are fellow-apostles, with whom he has to act, over whom he presides. If Peter was reproved by Paul, and yet the glorious Apostles laboured, witnessed, fought together, and together rest in Roman earth, then may the successors of the Twelve remonstrate with, nay, reprove and resist the successor of the Chief of the Twelve. If he is vicar of Christ, so are they. We have already seen examples of this, we shall find others, without schism.

It had become the custom of the Roman Pontiffs, at least as early as St. Damasus, (366—384,) and St. Siricius, (384—398,) to charge some one prelate, in each province where their influence extended, to represent the Roman Church; to report any infractions of discipline, or innovations on the faith; to announce the election and consecration of Bishops. Thus Anastasius of Thessalonica presided over the ten Metropolitans of Illyricum

in Pope Leo's name. The Primate of Arles represented him in southern Gaul; and others in Spain; and so on. It is even said that all the Primacies of western Europe were in their origin derivations thus made from the Primacy of St. Peter. An authority, which was exercised on the whole for the good of all, seems to have been generally submitted to by the Bishops of the different provinces: doubtless every Bishop felt his hands strengthened in his particular diocese, and had an additional security against any infraction of his rights by his brethren, when he was able to throw himself back on the unbiassed and impartial authority of the Bishop of Rome. An authority, however, which in its commencement professed to be the especial guardian of the Canons, and to protect and maintain all in their proper place, was very liable to abuse, and had an inherent tendency to increase, and to absorb the power of the local Bishops and Metropolitans in the indefinite pretensions of the Patriarch. We have seen the resistance offered to the Pope in the case of the wretched Apiarius by the African Church, and now the Church of Gaul furnishes a defender of the rights of Metropolitans against Pope Leo in one of the holiest and most apostolical of its ancient Bishops.

St. Hilary of Arles, of noble birth, of splendid ability, having in the world the highest prospects, was converted to God by the prayers of St. Honoratus. Thereupon he sold his large possessions, and bestowed them on the poor, and retired to the desert of Lerins. His friend, St. Honoratus, was shortly after made Bishop of Arles, but he could not persuade St. Hilary to remain there with him. Within three years he died, and St. Hilary, who was attending him in his sickness, hastened, as soon as all was over, to return to his monastery. But it was in vain: he was pursued, brought back by force, and ordained, in spite of himself, Metropolitan of the first See in Gaul, at the age of twenty-nine years. At forty-eight he died, worn out with the severe labours and ascetic life he had imposed on himself. The nineteen years of his episcopate were devoted to the most incessant exertions as Bishop and Metropolitan. Unwearied in energy, unbounded in charity, gifted with extraordinary eloquence, a severe defender of discipline, yet winning others to follow where he was ready to go before himself, he becomes the soul of the three or four provinces over which the See of Arles then presided. He is connected in some degree with ourselves, as having probably held one of the chief places in that great council of the Gauls in the year 429, which sent St. Germanus and St. Lupus into Britain to resist

the Pelagians. He belonged to the same monastery as St. Vincent of Lerins, and at the same time. It is certain, also, that he was a great friend of St. Germanus, and often conferred with him. On one of these occasions great complaints were brought to the two saints against Celidonius, Bishop of Besançon, for having formerly married a widow, and for having condemned persons to death. St. Hilary judged Celidonius in a provincial council, which declared that, having been husband of a widow, he could not keep his bishopric, and that he ought voluntarily to quit a dignity which the rules of Scripture permitted him not to hold. He was accordingly deposed.

"Celidonius,^[64] finding himself deposed, had recourse to Rome, where he complained that he had been unjustly condemned. It seems that St. Leo, without further examination, at once admitted him to his communion, in which he may have followed what Zosimus and Cœlestinus did in respect of the miserable Apiarius, priest of Africa. But I know not what Canon or what rule of the Church justifies such a proceeding. St. Hilary learnt this at the severest time of winter. Nevertheless, all the discomforts and dangers of this season gave way to the ardour of his zeal and faith. He undertook to pass the Alps, and to go on foot to Rome; and this he accomplished, without having even a horse either to ride or to carry baggage. Being come to Rome, he first visited the relics of the Apostles and Martyrs. Next he waited on St. Leo; and having paid him the greatest respect, he besought him very humbly to please to order what respected the state of the Churches according to immemorial practice. Persons were seen attending at Rome on the holy altar who had been juridically and justly deposed in Gaul: he was obliged to address to him his complaints of this; and, if they were found correct, besought the Pope at least to stop by a secret order this violation of the Canons. If not, he would not trouble him further, not being come to Rome to bring an action, and make accusations, but to pay to him his respects, to declare to him the state of things, and to beseech him to maintain the rules of discipline. There is reason to believe that St. Hilary maintained that St. Leo had no right at all to take cognizance of this cause as judge, meaning, doubtless, that the Church of France was in the same condition as that of Africa, and had the same power to terminate causes which arose there, without an appeal elsewhere being allowed. St. Leo even sufficiently assures us that this was St. Hilary's view; and he takes occasion from it to accuse him of unwillingness to be subject to St. Peter, and to

recognise the Primacy of the Roman Church: which would prove that all the holy Bishops of Africa did not recognise it, and give heretics a great advantage. St. Leo, on the other hand, maintained not only that the Churches of the Gauls had often consulted that of Rome in various difficulties—which had nothing to do with the matter in question—but, also, that they had often appealed to the Holy See, which had either altered or confirmed judgments pronounced by them. If we may be allowed to regard the depositions of St. Leo and St. Hilary as the claims of different parties, and to examine the matter to the bottom, according to the light which history sheds on it, we may say that we do not find that the Gallican Church had hitherto admitted, up to that time, any appeal to the Holy See; and that Zosimus, having wished to claim the right of judging Proculus, Bishop of Marseilles, Proculus always maintained himself, in spite of all the efforts of this Pope. Meanwhile, as St. Leo, sufficiently jealous of the greatness of his See, found himself opposed by St. Hilary in a point of this importance, it is not surprising that he was susceptible of the bad impression given him of the conduct of this great saint, as we shall see hereafter. 'I dare not examine,' says the historian of St. Hilary, 'the judgment and the conduct of two men so great, especially now that God has called them to the possession of His glory. I confine myself to saying, that Hilary singly opposed this great number of adversaries; that he was not shaken by their menaces; that he laid the truth before those who would listen to it; that he prevailed over those who would dispute with him; that he yielded not to the powerful; in short, that he preferred running the risk of losing his life to admitting to his communion him whom he had deposed together with so many great Bishops.'

"Had St. Leo only required to have the affair reheard in the Gauls, agreeably to the Canons of Sardica, the only ones which the Church had hitherto made in favour of appeals to the Pope, St. Hilary would, perhaps, have consented; that is, if he were better acquainted with this Council than they were in Africa. But it is not apparent that such a rehearing was mentioned. And as to suffering the matter to be judged at Rome, St. Hilary, besides the other reasons which he might have, considered, doubtless, with St. Cyprian, that the proofs of the facts on which judgment must be made cannot be transported thither. So the Gallican Church has always maintained itself in the right, that appeals made to Rome be referred back to

the spot. Though St. Hilary had protested that he was not come to engage in any dispute, nevertheless he did not refuse to take part in a conference, in which St. Leo heard him, together with Celidonius. Several Bishops were there. Notes were made of all that was said. St. Leo says that St. Hilary had nothing reasonable to answer; his passion carried him away to say things that a layman would not have dared to utter, and that the Bishops could not listen to. He adds that this haughty pride touched him to the quick, and that, nevertheless, he had used no other remedy than patience, not wishing to sharpen and increase the wounds which this insolent language caused in the soul of him who held it: that moreover, having received him at first as his brother, he only thought of soothing rather than vexing and paining him; and that indeed he did this to himself sufficiently by the confusion into which the weakness of his answers threw him. It is clear that St. Hilary would not answer on the main point of Celidonius's affair, because he maintained that St. Leo could not be judge of it. And we must not be surprised that the Romans found much insolence in the inflexible firmness with which he maintained it. Doubtless it was this pretended insolence which caused him even to be put under guard, which may surprise us in the case of a Bishop, and in an affair purely ecclesiastical. Among the insolent and rash expressions of which St. Leo in general complains, he remarks, in particular, that St. Hilary had often demanded to be condemned, if he had condemned Celidonius contrary to the rules of the Canons. He wished, then, that we should judge others by the rule which fully justifies St. Hilary. The saint, seeing that his reasons were not listened to, would not wait St. Leo's sentence. He preferred withdrawing secretly, while this affair was still being examined. So he escaped from his guards, and though it was still winter, left Rome, and returned to Arles, perhaps in February (445): so that when they sought for him to speak further on this matter, it was found that he was gone. St. Leo failed not to proceed, reversed the judgment delivered against Celidonius, declared him absolved and acquitted of the accusation of having married a widow, and restored him to his rank of Bishop, which he had already done at first, without having examined the affair."

There were other accusations made against St. Hilary, into which we need not enter. St. Leo wrote a very severe letter about him to the Bishops of Gaul: he accused him "of raising himself against St. Peter, and being unwilling to recognise his Primacy, as if all those who believe that a

successor of St. Peter passes the bounds of the Canons were enemies of the Primacy of the Holy See. That would be to arm against the Popes in favour of heretics a great number of Fathers, of Saints, and of Councils."^[65] The result was that he took away from St. Hilary his rights of Metropolitan, and conferred them on the Bishop of Vienne, who had claims upon them. But this measure was so disliked by the suffragans of Arles, that he restored the See of Arles to most of its privileges under Ravennius, the successor of St. Hilary. However, this matter had even more important consequences. We will let the Roman Catholic historian, as before, describe them. "St. Leo apparently feared that the Bishops of the Gauls would not be sufficiently submissive to what he had ordered. And though he had made it a charge against St. Hilary that he had employed an armed force in affairs of the Church, for all that he recurred himself to the imperial power against him. He represented him to the Emperor Valentinian the Third as one who rebelled both against the authority of the Apostolic See, and the majesty of the Empire, and obtained of this prince, who was then at Rome, a celebrated rescript, addressed to the Patrician Aetius, general of the armies of the Empire, by which, under pretext of maintaining the peace of the Church, he forbids undertaking any thing whatever without the authority of the Apostolic See, or resisting its orders, which, says he, had always been observed inviolably up to Hilarius. He orders all Bishops to hold as law all that the authority of the Pope establishes, and all magistrates to compel by force to appear before the tribunal of the Bishop of Rome all persons cited thither, if they refused to go. It may be seen by what happened about this time to Atticus, Metropolitan of Nicopolis, in Epirus, how scandalous this employment of force was, and how opposed, according to St. Leo himself, to the gentleness of the Church. Valentinian adds, that the sentence given by St. Leo against St. Hilary, had no need of any one to be executed in the Gauls, since the authority of so great a Pontiff has a right to give any order to the Churches. He goes so far as to make it a charge against St. Hilary, to have deposed and ordained Bishops without consulting the Pope. He even names him a criminal of State on the score of his being charged with having employed the force of arms to establish Bishops, and to place them on a throne where they had only to preach peace. This law is dated the 6th of June, 445, and it is this which fixes the time of all this history. It is undoubtedly very proper, as says Baronius, to show that the Emperors have greatly contributed to establish the greatness and authority of the Popes.

This is not the place to make other reflections upon it; but we cannot forbear saying that, in the mind of those who have any love for the liberty of the Church, and any knowledge of its discipline, this law will always as little honour him whom it praises as it will injure him whom it condemns. Pope Hilary quotes this law, and avails himself of the authority it attributes to the decisions of Rome."^[66] It would be presumptuous to add a word to the judgment of one who has made the first centuries of the Church his especial study. St. Hilary, on his return to Arles, made many attempts to reconcile the Pope to him, but all were fruitless, as he would not give up the point in dispute. "It seems," says Tillemont, "that he continued resolved to do nothing in prejudice of the rights he believed to belong to his Church, but that seeing the two great powers of Church and State united against him, he remained quiet and silent, occupied only in the work of his salvation, and that of his people." During the four years he survived, he redoubled his austerities and good works: he died in the odour of sanctity; and after his death, "St. Leo, though still persuaded that he was a presumptuous spirit, calls him 'of holy memory.' Yet, we have neither proof nor probability that he had restored him to his communion, from which he had cut him off."^[67] His name occurs in the Roman Martyrology.

Thus an encroachment, which had failed in Africa, succeeded through a conjuncture of circumstances, especially the intervention of the civil power, in Gaul. Of course it was made the stepping-stone to further advances. This one specimen may give us a notion how the lawful power of the Patriarch and the recognised pre-eminence of the one Apostolic See of the West had a continual tendency to develop, and won, by degrees, unlimited control over the original and acknowledged rights of the Bishops and Metropolitans. Still, even in the hands of St. Leo, this was merely an extraordinary interference. Ravennius, the successor of this very St. Hilary, was elected and consecrated by the Bishops of his province, who then announced it to Pope Leo, and received a congratulatory answer.^[68] He says himself to the Bishops of the province of Vienne, "It is not for ourselves that we defend the ordinations of your provinces, which perhaps Hilarius may, according to his wont, falsely state to you, to render disaffected the mind of your Holiness; but it is for you we claim them through our solicitude." And again: "Decreeing this, that if any one of our brethren in any province die,

he who is known to be the Metropolitan of that province, should claim to himself the ordination of the Priest."^[69]

So long as the election and consecration of Bishops and Metropolitans were thus free and canonical, the greatness of the central See could never depress and extinguish the essential equality of the Episcopate. Let it be remembered that St. Leo, with all his power and influence, consecrated no other Bishops than those of Southern Italy, Sicily, and Sardinia, which were the bounds of his proper patriarchate; there his authority was direct and immediate; but in Africa, the Gauls, Spain, Illyricum, and the West generally, it was only properly exercised in matters beyond the range of the Bishops and Metropolitans. We suppose it is impossible to define a power which was to correct and restore in emergencies. The Bishops of the province of Aries afterwards besought Pope Leo to restore the primacy to Arles, and render, A.D. 450, this undoubted testimony to the Primacy of the Roman Church, and to the connexion between the rights of the Metropolitan and the Patriarch:—

"By the Priest of this Church (Arles) it is certain that our predecessors, as well as ourselves, have been consecrated to the High Priesthood by the gift of the Lord; in which, following antiquity, the predecessors of your Holiness confirmed by their published letters this which old custom had handed down concerning the privileges of the Church of Arles, (as the records of the Apostolical See doubtless prove;) believing it to be full of reason and justice, that as through the most blessed Peter, Prince of the Apostles, the holy Roman Church holds primacy over all the Churches of the whole world, so also within the Gauls the Church of Arles, which had been thought worthy to receive for its Priest St. Trophimus, sent by the Apostles, should claim the right of ordaining to the High Priesthood."^[70]

The view on which St. Leo acted in these proceedings against St. Hilary is very plainly set forth in certain of his letters. Thus, "To our most beloved Brethren, all the Bishops throughout the province of Vienne, Leo Bishop of Rome.... The Lord hath willed that the mystery of this gift (of announcing the Gospel) should belong to the office of all the Apostles, on the condition of its being chiefly seated in the most blessed Peter, first of all the Apostles; and from him, as it were from the head, it is His pleasure that His gifts should flow into the whole body, that whoever dares to recede from the

rock of Peter may know that he has no part in the divine mystery. For him hath He assumed into the participation of His indivisible unity, and willed that he should be named what He himself is, saying, 'Thou art Peter, and upon this rock I will build my Church:' that the rearing of the eternal temple by the wonderful gift of the grace of God might consist in the solidity of Peter, strengthening with this firmness His Church, that neither the rashness of man might attempt it, nor the gates of hell prevail against it."^[71] So to his vicar the Bishop of Thessalonica, whom he was erecting into an Exarch over the ten Metropolitans of Eastern Illyricum: "As my predecessors to your predecessors, so have I, following the example of those gone before, committed to your affection my charge of government; that you imitating our gentleness might relieve the care *which we in virtue of our headship* (principaliter), *by Divine institution, owe to all Churches*, and might, in some degree, discharge our personal visitation to provinces far distant from us; since you can readily ascertain, by near and convenient inspection, what in every matter you might either by your own zeal arrange, or reserve to our judgment." "For we have entrusted your affection to represent us on this condition, that you are called to a part of our solicitude, but not to the fulness of our power.... But if in a matter which you believe fit to be considered and decided on with your brethren," (the Bishops of the province,) "their sentence differs from yours, let every thing be referred to us on the authority of the Acts, that all doubtfulness may be removed, and we may decree what pleaseth God. For to this we direct all our solicitude and care, that the unity of mutual agreement and the maintenance of discipline be broken by no dissension, nor neglected by any slothfulness.... For the compactness of our unity cannot remain firm, unless the bond of charity bind us into an inseparable whole; because, 'as we have many members in one body, and all members have not the same office, so we, being many, are one body in Christ, and every one members one of another.' For it is the joining together which makes one soundness, and one beauty in the whole body: and this joining together, as it requires unanimity in the whole body, so especially demands concord among Priests. For though these have a like dignity, yet have they not an equal jurisdiction; (*quibus cum dignitas sit communis, non est tamen ordo generalis*;) since even amongst the most blessed Apostles, as there was a likeness of honour, so was there a certain distinction of power; and the election of all being equal, pre-eminence over the rest was given to one. From which type (*forma*) the

distinction between Bishops also has arisen, and it was provided by an important arrangement that all should not claim to themselves power over all, but that in every province there should be one, whose sentence should be considered the first among his brethren; and others again seated in the greater cities should undertake a larger care, through whom the direction of the Universal Church should converge to the one See of Peter, and nothing anywhere disagree from its head."^[72]

I think it fair to admit that the germ of something very like the present papal system, without, however, such a wonderful concentration and absorption of all power, is discernible in these words. I shall give further on, Bossuet's interpretation of their most remarkable expression. But it is also certain that such is not the view of the Church's government set before us by St. Cyprian, St. Augustin, St. Vincent of Lerins, and the Fathers generally, nor the one supported by the acts of the ancient Church. There is a very distinct tone in the teaching and acts of St. Leo, and the other Popes generally, from that of the contemporary Bishops and Fathers who had not succeeded to St. Peter's own see. It consists in dwelling on the Primacy so strongly, as quite to throw out of view the apostolic powers of other Bishops; whereas these latter dwell upon the apostolic powers of the episcopate generally; and, while they admit St. Peter's Primacy and that of the Roman see, place the government of the Church in the harmonious agreement of all. St. Leo's view, rigorously carried out, as it has been by the later Roman Church, substitutes St. Peter singly, for St. Peter and his brethren; and this usurpation, I repeat, we have to admit afresh, or else be accounted heretics and schismatics.

Now, as to the government of which St. Leo had the ideal before him, I must first remark that it was *new*. He says himself to the Bishop of Thessalonica: "The government of Churches in Illyricum, which we commit in our stead to your affection, following the example of Siricius of blessed memory, who to your predecessor Anysius of holy memory *then first committed with a certain charge* the supporting of the Churches of that province, which he desired to be maintained in discipline."^[73] That is, it was scarcely sixty years since Pope Siricius had selected the Bishop of the Metropolis to keep a watch over the maintenance of the canons. And now Pope Leo was already requiring the Metropolitans to consecrate no Bishop without first consulting the Bishop of Thessalonica as his vicar.

Secondly, this proceeding on the part of the Popes was not submitted to generally, even throughout the West. The "Codex Ecclesiæ Africanæ" is full of prohibitions against even appealing to "Bishops beyond the sea," *i.e.* the Pope. In St. Augustin's time, as we have seen, they positively forbade the Pope's interference with their internal government, and only submitted to it after they had been enfeebled by the irruption of the Vandals.

Thirdly, this power was set up very much indeed by help of the imperial authority. The process, in fact, of centralizing in the Church, ran completely parallel with that in the State. The law of Valentinian, above mentioned, is a strong proof of this. Of course the object of the emperors was to control the action of the Church through one Bishop made the chief. But it is somewhat remarkable that that Church which maintains a standing protest against the interference of the State with spiritual matters, (a protest for which she is worthy of all respect and admiration,) should owe to the support of the State, in different periods of her history, very much more of her power than any other Church. It may be that God rewards the fearless maintenance of spiritual rights by the grant of that very temporal power which threatens them with destruction.

Now as we have had St. Jerome in a noted place appealing to Rome, and acknowledging her primacy, let us take another passage of his which, I think, implicitly denies St. Leo's view. Arguing then against the pride of the Roman deacons, in which city, as they were only seven in number, the office was in higher estimation than even the priesthood, which was numerous, he observes, "Nor is the Church of the Roman city to be considered one, and that of the whole world another. Both the Gauls, and the Britains, and Africa, and Persia, and the East, and India, and all barbarous nations, adore one Christ, observe one rule of truth. If you require authority, *the world is greater than the city*. Wherever a bishop is, be it at Rome, or Eugubium, or Constantinople, or Rhegium, or Alexandria, or Tanæ, he is of the same rank, the same priesthood. The power of riches, and the humility of poverty, make a bishop neither higher nor lower. But all are successors of the Apostles. But you say, how is it that at Rome a priest is ordained upon the testimony of a deacon? Why allege to me *the custom of a single city*? Why defend against the laws of the Church a fewness of number, which is the source of their pride?"^[74] The very force of St. Leo's view lies in the exact contradictory of St. Jerome's words: *viz. the city is*

greater than the world, and this alone justifies and bears out the present claim of the Roman see, and its attitude both to those within, and to those without, its pale.

But fourthly, had this government, as imaged out by St. Leo, been submitted to not only in Gaul, Spain, Africa, and Illyricum, but throughout the West generally, all this would still be nothing for its catholicity, and therefore its binding effect, unless it had been allowed by the East. Now we have the strongest proof that it never was so allowed. This interference, and much more, the centralization pointed at, as it never would have been tolerated, so neither was it attempted, in the patriarchates of the East. There was far less danger of the patriarchal power becoming excessive, when it was possessed by five, who were a check to each other. St. Leo's influence and authority in the West were balanced by the exercise of like influence and authority in the East, originally by the sees of Alexandria and Antioch, and at this and later times still more by that of Constantinople. And though throughout the East the Bishop of Rome was reckoned the first of these in rank, yet the Easterns were governed entirely by their own Patriarchs. So far from there being any authority delegated by Rome to the Eastern Patriarchs, there was no appeal from them to Rome, that is to say, in a matter belonging to their particular government; for as to the general faith of the Church, in any peculiar emergency or violation of the usual order of procedure, there was an appeal, if not lawful, at least exercised, to any of the Patriarchs. Thus Theodoret of Cyrus, unjustly deposed by Dioscorus of Alexandria in the Latrocinium of Ephesus, flies "to the Apostolic throne" of St. Leo; "for in all things it is becoming that you should have the primacy. For your throne is adorned with many advantages. It has the sepulchres of our common Fathers and teachers of the truth, Peter and Paul. These have made your throne exceedingly illustrious. This is the height of your blessings."^[75] Though a suppliant, he addresses him only as first Bishop of the Church, not as monarch. It is a virtual denial of the present Papal authority, because a silence, where it would have been put forward, had it been known. So the heretic Eutyches, before the council of his own Patriarch, "when his deposition was read, appealed to the holy synod of the most holy Bishop of Rome, and Alexandria, and Jerusalem, and Thessalonica."^[76] Thus St. Isidore of Spain, in the sixth century, says: "The order of Bishops is fourfold; that is, Patriarchs, Archbishops, Metropolitans,

and Bishops. In Greek a Patriarch is called the first of the Fathers, because he holds the first, that is, the Apostolic place, and therefore, because he holds the highest rank, he has such an appellation, as the Roman, the Antiochene, and the Alexandrine."^[77] Accordingly Gieseler says, "At the end of this period," (A.D. 451,) the four Patriarchs of the East "were held in their patriarchates for ecclesiastical centres, to which the other Bishops had to attach themselves for maintenance of ecclesiastical unity; and in conjunction with their patriarchal synod they formed the highest tribunal of appeal in all ecclesiastical matters of the patriarchate; whilst, on the other hand, they were treated as the highest representatives of the Church, who, through mutual communication with each other, were to maintain the unity of the universal Church, and without whose concurrence no decrees concerning the whole Church could be made."^[78]

But no more certain proof of the independence of the Eastern Church can be given than the Synodical Epistle of the Council of Constantinople to the Pope and the Western Bishops. This was a Synod of purely Eastern Bishops, held in 381, which afterwards, by the consent of the Western Church, became Ecumenical. This Council "arranged, without any reference to the West, the affairs of the Oriental Church, and was even quite openly on the side of the party of Meletius, rejected by the Westerns; just so the interference attempted by the Italian Bishops in the matter of Maximus, the counter-Bishop of Constantinople, remained quite disregarded."^[79] They write thus: "To our most honoured Lords and pious brethren and fellow-ministers, Damasus," of Rome, "Ambrosius," of Milan, "Britton, Valerianus, Ascholius, Anemius, Basilius, and the other holy Bishops assembled in the great city of Rome, the holy Synod of orthodox Bishops assembled in the great city of Constantinople greeting in the Lord."^[80] Then after informing them what they had decreed concerning the highest matters of the faith, they go on—"But as to the management of particular matters in the Churches, both an ancient fundamental principle, (θεσμὸς,) as ye know, hath prevailed, and the rule of the holy Fathers at Nicea, that in each province those of the province," *i.e.* the Bishops, "and if they be willing, their neighbours also, should make the elections according as they judge meet. In accordance with which know ye both that the rest of the Churches are administered by us, and that Priests of the most distinguished Churches have been appointed. Whence in the, so to say, newly-founded Church of

Constantinople, which by the mercy of God we have snatched as it were out of the jaws of the lion, from subjection to the blasphemy of the heretics, we have elected Bishop the most reverend and pious Nectarius, in an Ecumenical^[81] Council, with common agreement, in the sight both of the most religious emperor Theodosius, and with the consent of all the Clergy and the whole city. And those," the Bishops, "both of the province and of the diocese^[82] of the East, being canonically assembled, the whole accordant Church as with one voice honouring the man, have elected the most reverend and religious Bishop Flavian to the most ancient and truly apostolical Church of Antioch in Syria, where first the venerable name of Christian became known: which legitimate election the whole Synod hath received." (And this notwithstanding the Bishop Paulinus, who was received by Rome and the West, had survived St. Meletius, and was then alive. So that they would not, even when such an opportunity occurred, accept the Bishop in communion with Rome—a fact on the one side, which I suppose may weigh against those words of St. Jerome on the other, "I know not Vitalis; Meletius I reject; I am ignorant of Paulinus." [Quoted, p. 26](#). It seems that though the test of communion with Rome satisfied St. Jerome, it did not satisfy an Ecumenical Council.) "But of the Church in Jerusalem, *the mother of all Churches*, we declare that the most reverend and religious Cyril is Bishop, both as long since canonically elected by those of his province, and as having struggled much against the Arians in different places. Whom, as being lawfully and canonically established by us, we invite your piety also to congratulate, through spiritual love, and the fear of the Lord, which represses all human affection, and accounts the edification of the Churches more precious than sympathy with, or favour of, individuals. For thus, by agreement in the word of faith, and by the establishment of Christian love in us, we shall cease to say what the Apostle has condemned—I am of Paul, and I of Apollos, and I of Cephas. For all being shown to be Christ's, who in us is not divided, by the help of God we shall keep the body of the Church unrent, and shall stand with confidence before the tribunal of the Lord."

Here is the whole East, in the year 381, long before the schism, announcing to the Bishops of Rome, Milan, Aquilea, and the West, the election of its Patriarchs, and exercising as an ancient incontestable right that liberty of self-government, according to the canons, for continuing to do which very

thing, and for nothing else, the Latin Church accounts both the Greek and English Church schismatic. Now the Eastern Church, as its own rituals to this day declare, always acknowledged St. Peter's primacy, and that his primacy was inherited by the Bishop of Rome; but it is apparent at once that it never received, nay most strongly abhorred, that system of centralization of all power in Rome, which St. Leo seems to have had before his eyes. Its most holy and illustrious Fathers never submitted to this domination. St. Basil had already complained of the Western pride, (δυτική ὀφρὺς.)^[83] St. Gregory of Nazianzum is that very Archbishop by whose voluntary cession and advice Nectarius is elected. St. Gregory of Nyssa, and Peter, brothers of St. Basil, are in this council, and so St. Cyril of Jerusalem. And yet Bellarmine will have it that Bishops who so wrote and so acted received their jurisdiction from Rome; and what is far more important, if they did not, the present Papal theory falls to the ground.

When Gieseler speaks of "the principle of the mutual independence of the Western and Eastern Church being firmly held in the East generally,"^[84] of course it must be understood that there can be no independence, strictly so called, in the Church and Body of Christ. Independence annihilates membership and coherence. Accordingly, I am fully prepared to admit that the Primacy of the Roman See, even among the Patriarchs, was a real thing; not a mere title of honour. The power of the First See was really exerted in difficult conjunctures to keep the whole body together. I am quite aware that the Bishop of Rome could do, what the Bishop of Alexandria, or of Antioch, or of Constantinople, or of Jerusalem, could not do. Even merely as standing at the head of the whole West he counterbalanced all the four. But I accept *bona fide* what Socrates and Sozomen tell us. I believe they had before them neither the Papal Empire of St. Gregory the Seventh, nor the maxims of the Reformation. They are unbiassed witnesses. Sozomen then tells us, that when St. Athanasius, unjustly deposed, fled to Rome for justice, together with Paul of Constantinople, Marcellus of Ancyra, and Asclepas of Gaza, "the Bishop of the Romans, having inquired into the accusations against each, when he found them all agreeing with the doctrine of the Nicene Synod, admitted them to communion as agreeing with him. *And inasmuch as the care of all belonged to him on account of the rank of his See, he restored to each his Church.* And he wrote to the Bishops throughout the East, &c., which they took very ill;"^[85] so ill, indeed, that they afterwards pronounced a sentence of deposition against the Pope himself. Again, Pope Julius "wrote to them, accusing them of secretly undermining the doctrine of the Nicene Synod, and that, contrary to the laws of the Church, they had not called him to their Council. *For that it was an hierarchical law to declare null what was done against the sentence of the Bishop of the Romans.*"^[86] That is, in matters concerning the state of the whole Church, as was this cause of Athanasius. So Socrates says, in reference to the same matter, that Pope Julius asserted to the Bishops of the East, that "they were breaking the Canons in not having called him to their Council, *the ecclesiastical Canon ordering that the Churches should not make Canons contrary to the sentence of the Bishop of Rome.*"^[87] These passages mark the prerogative of the First See: yet are they quite compatible with the general self-government of the Eastern Church. No doubt, when the Patriarchs of the East were at variance, all would look for

support to him who was both the first of their number, and stood alone with the whole West to back him.

And thus again in St. Leo's time a very extraordinary emergency arose, which still further raised the credit of the Roman Patriarch. Dioscorus of Alexandria, supporting the heretic Eutyches, had, by help of the Emperor, deposed and murdered St. Flavian of Constantinople: Juvenal of Jerusalem was greatly involved in this transaction. Dioscorus had then consecrated Anatolius to be the successor of St. Flavian, and Anatolius had consecrated Maximus to Antioch, instead of Domnus, who, too, had been irregularly deposed after St. Flavian. Now, had Dioscorus been otherwise blameless, his consecrating Anatolius, of his own authority, to Constantinople, and Anatolius then consecrating Maximus to Antioch, without the participation of Rome, was an infringement of the just rights of the Primacy; as a Patriarch could not be deposed without the concurrence of the First See. Thus the whole East was in confusion. A heretic had been absolved; one Patriarch murdered, two deposed; and of the other two, one was chief agent, and the other not clear, in these transactions. No wonder that at the Council of Chalcedon, the Bishop of Rome appeared at the head of the West, both to vindicate his own violated rights, for Dioscorus had even deposed him, and as the restorer of true doctrine, and the deliverer of the Church.

But I must now quote, at considerable length, the argument of Bossuet, and his statement as to where the sovereign power in the Church resides. We have already seen what he has said respecting the Council of Ephesus; and his observations on that of Chalcedon and the four succeeding Councils are equally important. His argument, which was intended for the justification of the Gallican Church, really reaches to that of the Greek and English Church also; and it is of the very utmost value, as it rests upon authorities which are sacrosanct in the eyes of every Catholic—the proceedings and decrees of Ecumenical Councils. Let it only be remembered, that I quote no German rationalist, no one who denies either the doctrine or hierarchy of the Church; but a Catholic prelate, the most strenuous defender of the faith, and one who, in the great assembly of his brethren, cried out, "If I forget thee, Church of Rome, may I forget myself; may my tongue dry, and remain motionless in my mouth, if thou art not always the first in my remembrance, if I place thee not at the beginning of all my songs of joy."^[88]

The question then at issue is, whether the Bishop of Rome be the first of the Patriarchs, and first Bishop of the whole world, the head of the Apostolic college, and holding among them the place which Peter held, all which I freely acknowledge, as the testimony of antiquity; or whether he be, further, not only this, but the source of all jurisdiction, uniting in his single person all those powers which belonged to Peter and the Apostles collectively: an idea which, however extravagant, is actually maintained at present in the Church of Rome, is moreover absolutely necessary to justify its acts, and to condemn the position of the Greek and English Church. Bossuet, who fought for the Gallican liberties, fought for the Anglican likewise.

"Let^[89] us now review the Acts of the General Council of Chalcedon. The previous facts were these. The two natures of Christ were confounded by Eutyches, an Archimandrite and Abbot of Constantinople, an old man no less obstinate than out of his senses. He then was condemned by his own Bishop, St. Flavian of Constantinople, and appealed to all the Patriarchs, but chiefly to the Roman Pontiff. Leo writes to Flavian, and 'orders everything to be laid before him.' Flavian answers and requests of Leo 'that, making his own the common cause and the discipline of the holy Churches, he should, at the same time, decree that the condemnation of Eutyches was regularly passed, and by his own words should strengthen the faith of the Emperor.' He added, 'For the cause only needs your support and definition; and you should, by your own determination, bring it to peace.' This means, it is plain and clear, it has yet few followers, and those obscure, and of no great name. He ends, 'For so the heresy which has arisen will be most easily destroyed, by the cooperation of God, through your letters; and the Council, of which there are rumours, be given up, that the holy Churches be not disturbed.' This, too, is in accordance with discipline, for heresies to be immediately suppressed, first by the Bishop's care, then by that of the Apostolic See: nor is it forthwith necessary that an universal Council be assembled, and the peace of all Churches troubled.

"After the proceedings had been sent to Leo, he writes to Flavian, most fully and clearly setting forth the mystery of the Lord's incarnation, as he says himself, and as all Churches bear witness; at the same time he praises the acts of Flavian, and condemns Eutyches, yet with the grant of indulgence, should he make amends. This is that noble and divine letter

which was afterwards so warmly celebrated through the whole Church, and which I wish to be understood so often as I name simply Leo's letter.

"And here the question might have been terminated, but for those incidents which induced the Emperor Theodosius the younger to call the Synod of Ephesus. He was the same who had appointed the First Council of Ephesus, under Cœlestine and Cyril.

"Of this Synod St. Leo writes to Theodosius, at first, 'that the matter was so evident, that for reasonable causes the calling of a Synod should be abstained from.' And Flavian likewise seemed to have been against this. But after the Emperor, with good intentions, had convoked the Synod, Leo gives his consent, and sends the letter to the Synod, in which he praises the Emperor for being willing to hold an assembly of Bishops, 'that by a fuller judgment all error may be done away with.' He mentions that he had sent Legates, who, says he, 'in my stead shall be present at the sacred assembly of your Brotherhood, and determine, by a joint sentence with you, what shall please the Lord.'

"Here are three points: first, that in questions of faith it is not always necessary for an Ecumenical Council to be assembled. Secondly, that Leo, great Pontiff as he was, did not decline a judgment, if the cause required it, after the matter had been judged by himself. Thirdly, that, if a Synod were held, it behoved that all error should be done away with by a fuller judgment, and the question be terminated by the Apostolic See, by a joint sentence with the Bishops, in which he acknowledges that full force of consent, so often mentioned by me.

"But after Dioscorus, Bishop of Alexandria, the protector of Eutyches, had done every thing with violence and crime, and not a Council, but an assembly of robbers downright, had been held at Ephesus, then, when the Episcopal order had been divided, and the whole Church thrown into confusion, under the name of the Second Ecumenical Council of Ephesus, Leo himself admits that a new general Council must be held, which should either remove or mitigate all offences, so that there should no longer be either any doubt as to faith, or division in charity. Therefore he perceived that schisms, and such a fluctuation of minds respecting the faith itself, could not be sufficiently removed by his own judgment. And the Pontiff, no

less wise and good than resolute, demanded a fuller, firmer, greater judgment, by the authority of a General Council, by which, that is, all doubt might be removed.

"But the Emperor Theodosius would not hear of a new Council, so long as he thought that due order had been preserved at Ephesus. 'For the matter was settled at Ephesus by the deposition of those who deserved it; and a decision having been once passed, nothing else can be determined after it.' Here the difference between the judgments of Roman Pontiffs and of General Councils is very evident; the judgment of the Roman Pontiff being reconsidered in a Council, whereas after a Council, so long as it is held a lawful one, nothing can be reconsidered, nothing heard.

"But as Theodosius shortly afterwards died, the Emperor Marcian, upon understanding that the Ephesine assembly had used violence, and acted otherwise against the Canons, and was therefore refused the name and authority of an Ecumenical Council by most Bishops, but chiefly by the Roman Pontiff, could not deny the calling of a new Council to Leo's request. So the Council of Chalcedon took place, and all admitted that there were certain dissensions on matter of faith so grave, that they can only be settled by the authority of an Ecumenical Council.

"All know that more than six hundred Bishops assembled at Chalcedon. The Bishops Paschasinus and Lucentius presided over the holy Council in Leo's stead. Magistrates were assigned by the Emperor to direct the proceedings, and restrain disorder; but to leave the question of faith and all ecclesiastical matters to the power and judgment of the Council.

"But in this Council two things make for us: first, the deposition of Dioscorus; secondly, the sentence of the Council respecting the approval of Leo's letter.

"With Dioscorus they thus proceeded: when, upon being cited, he refused to present himself to judgment, and his crimes were notorious to all, Paschasinus, Legate of the Apostolic See, asks the Fathers,—'We desire to know what your Holiness determines:' the holy Synod replied, 'What the Canons order.' The Bishop Lucentius said, 'Certain proceedings took place in the holy Council of Ephesus by our most blessed Father Cyril; look into their form, and assign what form you determine on.' The Bishop

Paschasinus said, 'Does your piety command us to use Ecclesiastical punishment? Do you consent?' The holy Council said, 'We all consent.' The Bishop Paschasinus said, 'Again I ask, what is the pleasure of your blessedness?' Maximus, Bishop of the great city of Antioch, said, 'We are conformable to whatever seems good to your Holiness.' Thus the initiative, and form, as it was called, was to be given by the Apostolic See. And so the Legates, after recounting the crimes of Dioscorus, thus pronounced: 'Wherefore, holy Leo, by us and this present Council, together with the most blessed Apostle Peter, who is the rock and ground of the Church, and the foundation of the right faith, hath declared him cut off from all sacerdotal power.' Anatolius, Bishop of Constantinople, said, 'As our most blessed Archbishop and Father Leo, so Anatolius.' The rest to the same effect: 'I agree; I am of the same mind; I agree to the condemnation made by the Council; I declare, I decree the same:' and the subscription, 'I, Paschasinus, declare and subscribe;' 'I, Anatolius, declare and subscribe;' and so the rest.

"Thus from Peter the head and source of Unity the sentence began, and then became of full force by common agreement of the Bishops, just as that first Council of the Apostles is always represented.

"By this is understood the letter of the Emperor Valentinian to the Emperor Theodosius: 'We ought to defend with all devotion, and preserve in our times uninjured, the dignity of the veneration due to the blessed Apostle Peter: so that the most blessed Bishop of the Roman city may have power to judge concerning the faith and Bishops.' Not, however, alone, but with the condition added by the Emperor, 'That the aforesaid Bishop,' at least, in those causes which touch the faith and the universal state of the Church, 'may give sentence after assembling the Priests from the whole world.' That is, by a common decree, as both Leo himself had demanded, and as we have seen done in the Council itself.

"With the same view, the Empress Pulcheria writes to Leo concerning assembling the Bishops, 'who,' she says, 'when the Council is made, shall decree, at your instance, concerning the Catholic confession, and concerning Bishops.'

"The Emperors Valentinian and Marcian write the same to Leo: that, 'by the Council to be held,' every thing should be done at his instance: first laying this down, that he 'possessed the first rank in the Episcopate, as to faith.'

"Hence it is very plainly evident, that, in the usual order, both the Pope should have the initiative, and the Bishops sitting with him should be judges; and that the force of an irreversible decree lies in agreement: the very thing to which the Empress Pulcheria bears witness, in her letter to Strategus the Consular, who was ordered to protect the Council from all violence: 'that the holy Council, holding its sittings with all discipline, what has been revealed by the Lord Christ should be confirmed in common by all, without any disturbance, and with agreement.'

"Meanwhile, it is evident that proceedings are at the instance of the Pontiff, yet so that the force of the decree lies, not in the sole authority of the Pontiff, which no one then imagined, but in the consent itself and approval of the Council: and that the Fathers and the Council decree together, judge together, and the sentence of the Council is the sentence of the Pope; which, when the consent of the Churches is added, is then held to be irreversible and final, which is all I demand.

"Another important point treated in the Council of Chalcedon, that is, the establishing of the faith, and the approval of Leo's letter, is as follows. Already almost the whole West, and most of the Easterns, with Anatolius himself, Bishop of Constantinople, had gone so far as to confirm by subscription that letter, before the Council took place; and in the Council itself the Fathers had often cried out, 'We believe, as Leo: Peter hath spoken by Leo: we have all subscribed the letter: what has been set forth is sufficient for the faith: no other exposition may be made.' Things went so far, that they would hardly permit a definition to be made by the Council. But neither subscriptions privately made before the Council, nor these vehement cries of the Fathers in the Council, were thought sufficient to tranquillize minds in so unsettled a state of the Church, for fear that a matter so important might seem determined rather by outcries than by fair and legitimate discussion. And the Clergy of Constantinople exclaimed, 'It is a few who cry out, not the whole Council which speaks.' So it was determined that the letter of Leo should be lawfully examined by the Council, and a definition of faith be written by the Synod itself. So the acts

of foregoing Councils being previously read, the magistrates proposed concerning Leo's letter, 'As the Gospels lie before you, let every one of the most reverend Bishops declare whether the exposition of the 318 Fathers, and, after that, of the 150 Fathers, agrees with the letter of holy Leo.'

"Since the question as to examining the letter of Leo was put in this form, it will be worth while to weigh the sentences, and, as they are called, the votes of the Fathers, in order to understand from the beginning why they approved of the letter; why they afterwards defended it with so much zeal; why, finally, it was ratified after so exact an examination of the Council. Anatolius first gives his sentence. 'The letter of the most holy Leo agrees with the Creed of the 318 and the 150 Fathers; as also with what was done at Ephesus under Cœlestine and Cyril; therefore I agree and willingly subscribe to it.' These are the words of one plainly deliberating, not blindly subscribing out of mere obedience. The rest say to the same effect: 'It agrees, and I subscribe.' Many plainly and expressly, 'It agrees, and I therefore subscribe.' Some add, 'It agrees, and I subscribe, as it is correct.' Others, 'I am sure that it agrees.' Others, 'As it is concordant, and has the same aim, we embrace it, and subscribe.' Others, 'This is the faith we have long held: this we hold: in this we were baptized: in this we baptize.' Others, and a great part, 'As I see, as I feel, as I have proved, as I find that it agrees, I subscribe.' Others, 'As I am persuaded, instructed, informed, that all agrees, I subscribe.' Many set forth their difficulties, mostly arising from a foreign language; others from the subject matter, saying, that they had heard the letter, 'and in very many points were assured it was right: some few words stood in their way, which seemed to point at a certain division in the person of Christ.' They add, that they had been informed by Paschasinus and the Legates 'that there is no division, but one Christ; therefore,' they say, 'we agree and subscribe.' Others, after mentioning what Paschasinus and Lucentius had said, thus conclude: 'By this we have been satisfied, and, considering that it agrees in all things with the holy Fathers, we agree and subscribe.' Where the Illyrian Bishops, and others who before that examination had expressed their acclamations to the letter, again cry out, 'We all say the same thing, and agree with this.' So that, indeed, it is evident that, in the Council itself, and before it, their agreement is based on this, that, after weighing the matter, they considered, they judged, they were

persuaded, that all agreed with the Fathers, and perceived that the common faith of all and each had been set forth by Leo.

"This was done at Chalcedon; but likewise before that Council our Gallic Bishops, at a synod held in Gaul, wrote thus to Leo himself, concerning receiving his letter: 'Many in that letter of Leo to Flavian with joy and exultation have recognised what their faith was assured of, and are with reason delighted that, by tradition from their fathers, they have always held just what your Apostleship has set forth. Some rendered more careful, congratulate themselves every way on being instructed by receiving the admonition of your blessedness, and rejoice that an occasion is given them, in which they may speak out freely and confidently, and each one assert what he believes, supported by the authority of the Apostolic See.'

"The Italian (Bishops) agree, at the instance of Eusebius, Bishop of Milan, 'for it was evident that that (letter of Leo to Flavian) had the full and vigorous simplicity of the faith; was illuminated likewise by statements from the Prophets, by authorities from the Gospels, and by testimonies of Apostolic teaching, and in every point agreed with what the holy Ambrose, moved by the Holy Spirit, put in his books concerning the mystery of the Lord's incarnation. And inasmuch as all the statements agree with the faith of our ancestors delivered down to us from antiquity, all determined that whoever hold impious opinions concerning the mystery of the Lord's incarnation, are to be visited with fitting condemnation, as they themselves agree, according to the sentence of your authority.'

"See here an authoritative sentence in the Roman Pontiff; and also the agreement of the Bishops to the instance of the Roman Pontiff, and that granted after inquiry into the truth. On these terms they gave their approval, and their subscription, and decreed that a letter, agreeing with the apprehensions of their common faith, and found and judged to be such by them, was of universal authority by the union of their sentences with the Apostolic See. Which wonderfully accords with what we have just read in the sentences of the Fathers of Chalcedon.

"This is that examination of Leo's letter, synodically made at Chalcedon, and placed among the acts; of which examination Leo himself thus writes to Theodoret: 'What God had before set forth by our ministry, He hath

confirmed by the irreversible assent of the whole brotherhood, to show that what was first put forth in form by the First See of all, and then received by the judgment of the whole Christian world, really proceeded from Himself (that in this too the members might agree with the Head.)^[90]

"He proceeds: 'For in order that the consent of other sees to that which the Lord appointed to preside over all the rest should not appear flattery, or any other adverse suspicion creep in, persons were found who doubted concerning our judgment.... The truth, likewise, itself is both more clearly conspicuous, and more strongly maintained, when after-examination confirms what previous faith had taught.' Here he speaks distinctly of examination, and that most free. 'In fine, the merit of the priestly office shines forth very brightly, when the authority of the highest is preserved, without the liberty of the lower seeming to be at all infringed. And the end of the examination profits to the greater glory of God, when it has confidence enough to exert itself so far as to prevail over the opposite opinion. So that what is in itself proved to be heterodox may not seem overcome, merely because it is passed over in silence,' Lastly, 'the letter of the Apostolic See, confirmed by the assent of the whole holy Council'^[91] is proposed as a most certain and perfect rule of faith, not again to be reconsidered. Here is what Leo considered to be irrevocable, or rather not to be mended, which no one can be blamed for holding together with the world and the Fathers of Chalcedon: the form is set forth by the Apostolic See; yet it is to be examined, and that freely, and every Bishop, the highest and the lowest, to pronounce judgment in a body concerning decreeing it.

"They conceived no other way of removing all doubt; for after the conclusion of the synod, the emperor thus proclaims: 'Let then all profane contention cease, for he is indeed impious and sacrilegious, who, after the sentence of so many priests, leaves any thing for his own opinion to consider.' He then prohibits all discussion concerning religion; for, says he, 'he does an injury to the judgment of the most religious Council, who endeavours to open afresh, and publicly discuss what has been once judged, and rightly ordered.'

"Here in the condemnation of Eutyches is the order of Ecclesiastical judgments in questions of faith. He is judged by his proper Bishop Flavian: the cause is reheard, reconsidered by the Pope St. Leo;" (let it be

remembered that Eutyches likewise appealed to Alexandria, Jerusalem, and Thessalonica;) "it is decided by a declaration of the Apostolic See: after that declaration follows the examination, inquiry, judgment of the Fathers or Bishops, in a General Council: after the declaration has been approved by the judgment of the Fathers no place is any longer left for doubt or discussion.

"To the same effect Leo: 'For no longer is any refuge or excuse allowable to any, on plea of ignorance, or difficulty of understanding, inasmuch as for this very purpose the Council of about six hundred of our brethren and fellow-Bishops met together hath permitted no skill in reasoning, no flow of eloquence, to breathe against the faith built on a divine foundation. Since, through the endeavours of our brethren and representatives, by the help of God's grace, (their devotion in every procedure being most entire,) it hath been fully and evidently made manifest, not only to the priests of Christ, but to princes also, and Christian powers, and to all ranks of the clergy and people, that this is the truly Apostolic and Catholic faith, flowing from the fountain of Divine goodness, which we preach, and now with the agreement of the whole world defend pure and clean from all pollution of error.'^[92]

"Thus at length supreme and infallible force is given to an Apostolic decree, after that it is strengthened by universal inquiry, examination, discussion, and thereupon consent and testimony."

^[93]"We add a third point, important to our cause, respecting the restitution of Theodoret to his see. After, then, by order of the Bishops, he had openly anathematized Nestorius, 'the most illustrious magistrates said, all doubt respecting Theodoret is now removed; for he hath both anathematized Nestorius before you, and has been received by Leo, most holy Archbishop of old Rome, and has willingly accepted the definition of faith set forth by your piety, and moreover hath subscribed the epistle of the aforesaid most holy Archbishop Leo. It is fitting, therefore, that sentence be pronounced by your most acceptable holiness, that he may recover his Church, as the most holy Archbishop Leo has judged.' All the most reverend Bishops cried out, 'Theodoret is worthy of his See. Leo hath judged after God.' So then the judgment put forth by Leo concerning his restoration to his See would have profited Theodoret nothing, unless, after the matter had been brought before the Council, he had both approved his faith to the Council, and the

judgment of Leo been confirmed by the same Council. This was done in the presence of the Legates of the Apostolic See, who afterwards pronounced that sentence on confirming Leo's judgment, which the whole Synod approved."

Let any one of candour consider these Acts of the Council of Chalcedon, and then say, which of these two views agrees with them, viz. that St. Leo was first Bishop of the Church, looked up to with great reverence as the special successor of St. Peter, and representative of the whole West; or that he was beside this the only Vicar of Christ, the source and origin of the Episcopate, from whom his brethren received their jurisdiction, which is the Papal idea of the middle ages. For on the truth of this latter view depends the charge, that the Church of England is in schism.

What follows may perhaps assist our solution of the question. At this very Council of 630 Bishops, the largest ever held in ancient times, and where the credit of the Roman Pontiff was so great, a very celebrated Canon was enacted concerning the rank of the Bishop of Constantinople. The Pope's legates attempted, by absenting themselves, to prevent its being enacted, but that only led to its being confirmed the next day, in spite of their opposition. The circumstances were as follows, and they seem to deserve our most stedfast consideration, from their bearing upon the great subject we are considering, the Papal Supremacy.

"On the same day, being the last of October, the fifteenth session was held, at which neither the magistrates nor legates were present: for after the formula of faith had been agreed to, and the private business brought before the Council had been despatched, the Clergy of Constantinople asked the legates to join them in discussing an affair concerning their Church. This they refused, saying, that they had received no instructions about it. They made the same proposal to the magistrates, and these referred the matter to the Council. When the magistrates and legates therefore had retired, the rest of the Council made a Canon respecting the prerogatives of the Church of Constantinople."^[94] To make the scope of this clear we must observe, that the See of Constantinople had been now for at least seventy years the chief See of the East: at the second Ecumenical Council, held in 381, at Constantinople, it is declared in the third canon, that "the Bishop of Constantinople shall have the primacy of honour after the Bishop of Rome,

because that Constantinople is New Rome." It seems that in the interval that Bishop had not only taken precedence of Alexandria and Antioch, and reduced under him the Exarchs of Pontus, Thrace, and Asia, but that his authority was very great throughout all the East. Theodoret says,^[95] that St. Chrysostom governed twenty-eight provinces. Accordingly, in its famous 28th Canon, the Council of Chalcedon only confirmed an authority to the Bishop of Constantinople which he had long enjoyed and often exceeded. It ran thus: "We, following in all things the decisions of the holy Fathers, and acknowledging the Canon of the 150 most religious Bishops which has just been read, do also determine and decree the same things respecting the privileges of the most holy city of Constantinople, New Rome. For the Fathers properly gave the primacy to the throne of the elder Rome, because that was the imperial city. And the 150 most religious Bishops, being moved with the same intention, gave equal privileges to the most holy throne of New Rome, judging with reason, that the city which was honoured with the sovereignty and senate, and which enjoyed equal privileges with the elder royal Rome, should also be magnified like her in Ecclesiastical matters, being the second after her. And (we also decree) that the Metropolitans only of the Pontic, and Asian, and Thracian Dioceses, and, moreover, the Bishops of the aforesaid Dioceses who are amongst the Barbarians, shall be ordained by the above-mentioned most holy throne of the most holy Church of Constantinople; each Metropolitan of the aforesaid Dioceses ordaining the Bishops of the Province, as has been declared by the divine Canons; but the Metropolitans themselves of the said Dioceses shall, as has been said, be ordained by the Bishop of Constantinople, the proper elections being made according to custom, and reported to him."

"The Legates,^[96] being informed of what had passed, demanded that the Council should assemble again, and the magistrates be present. On the morrow, therefore, being Thursday, the 1st November, the twelfth sitting^[97] was held. The magistrates were there with the Legates, and the Bishops of Illyria, and all the rest. After they had taken their seats, Paschasinus spoke, having asked permission of the magistrates, and said, that he was astonished that so many things had been done the day before in their absence, which were contrary to the Canons and the peace of the Church, for which the Emperor was labouring with so much application and zeal. He demanded the reading of what had passed the day before. And Aetius, (Archdeacon of

Constantinople,) having said that it was the Legates themselves who had refused to be present at the deliberation, presented the Canon which had been drawn up with the signatures of the Bishops. After the signatures had been read, Lucentius said the Bishops had been surprised, and compelled to sign. This is what St. Leo repeated often in the letter which he wrote concerning this twenty-eighth Canon, accusing Anatolius of having extorted the signatures of the Bishops, or of having surprised them by his artifices. Nevertheless, upon the reproach of Lucentius, all the Bishops cried out that no one had been forced. They protested again afterwards, both all in common, and the principal by themselves, that they had signed it of their full consent. Anatolius also maintains to St. Leo, that the Bishops took this resolution of their own accord.

"The Legates continued to oppose the Canon, and showed that they had an express order of the Pope to do so. They alleged that the Canon was contrary to the Council of Nicea, of which they read the sixth Canon, with the celebrated heading—"The Roman Church has always had the primacy," which is also found added in the ancient Roman code. The same Canon was afterwards read as it is in the original Greek, and the Canon of the second Ecumenical Council, to which the Legates answered nothing.

"The magistrates having next begged the Bishops who had not signed the day before, to give their opinion, Eusebius, of Ancyra, represented with much gentleness and modesty, that it was better for the Church that ordinations should be made upon the spot by the Council of the province. Thalassius then spoke a single word, but I know not his meaning."

Thereupon "the magistrates^[98] said,—'It appears, from the depositions, first of all, that the primacy and precedency of honour (τὰ πρωτεῖα, καὶ τὴν ἐξάριετον τιμὴν) should be preserved according to the Canons for the Archbishop of Old Rome, but that the Archbishop of Constantinople ought to enjoy the same privileges, (τῶν αὐτῶν πρεσβείων τῆς τιμῆς,) and that he has a right to ordain the Metropolitans of the Dioceses of Asia, Pontus, and Thrace, in the manner following. In each metropolis, the clergy, the proprietors of lands, and the gentry, with all the Bishops of the province, or the greater part of them, shall issue a decree for the election of one whom they shall deem worthy of being made a Bishop of the metropolis. They shall all make a report of it to the Archbishop of Constantinople, and it shall

be at his option either to enjoin the Bishop elect to come thither for ordination, or to allow him to be ordained in the province. As to the Bishops of particular cities, they shall be ordained by all, or the greater part, of the comprovincial Bishops, under the authority of the Metropolitan, according to the Canons, the Archbishop of Constantinople taking no part in such ordination. These are our views, let the Council state theirs.' The Bishops shouted, 'This is a just proposal: we all say the same: we all assent to it, we pray you dismiss us:' with other similar acclamations. Lucentius, the Legate, said,—'The Apostolic See ought not to be degraded in our presence; we, therefore, desire that yesterday's proceedings, which violate the Canons, may be rescinded; otherwise let our opposition be inserted in the Acts, that we may know what we are to report to the Pope, and that he may declare his opinion of this contempt of his See, and subversion of the Canons.' The magistrates said,—'The whole Council approves of what we said.' Such was the last Session of the Council of Chalcedon."

The remarks of Tillemont on this Canon are significant, and worth transcribing.^[99] "It seems," he says, "to recognise no particular authority in the Church of Rome, save what the Fathers had granted it, as the seat of the empire. And it attributes in plain words as much to Constantinople as to Rome, with the exception of the first place. *Nevertheless I do not observe that the Popes took up a thing so injurious to their dignity, and of so dangerous a consequence to the whole Church.* For what Lupus quotes of St. Leo's 78th (104th) letter, refers rather to Alexandria and to Antioch, than to Rome. St. Leo is contented to destroy the foundation on which they built the elevation of Constantinople, maintaining that a thing so entirely ecclesiastical as the Episcopate ought not to be regulated by the temporal dignity of cities, which, nevertheless, has been almost always followed in the establishment of the metropolis, according to the Council of Nicea.

"St. Leo also complains that the Council of Chalcedon broke the decrees of the Council of Nicea, the practice of antiquity, and the rights of Metropolitans. Certainly it was an odious innovation to see a Bishop made the chief, not of one department, but of three; for which no example could be found save in the authority which the Popes took over Illyricum, where, however, they did not claim the power to ordain any Bishop."

Now I suppose any Roman Catholic would observe that this Canon is entirely opposed to the present Papal theory: he would say that St. Leo and the West for that very reason refused to receive it. The opposition, beyond all question, is such, that it is quite impossible to reconcile them. Let any one, then, read through the 104th letter of St. Leo to the Emperor Mauricius, the 105th to the Empress Pulcheria, and the 106th to Anatolius himself, and he will see that St. Leo bases his opposition to it throughout on its being a violation of the Nicene Canons: there is not a word in all the three letters about any violation of the rights of St. Peter. May we not quote, alas! St. Leo's words, in these letters, to St. Leo's successor. "He^[100] loses his own, who lusts after what is not his due.... For the privileges of the Churches, instituted by the Canons of the holy Fathers, and fixed by the decrees of the venerable Nicene Synod, cannot be plucked up by any wickedness, or changed by any innovation. In the faithful execution of which work, by the help of Christ, I am bound to show persevering service; since the dispensation has been entrusted to me, and it tends to my guilt, if the rules of the Fathers' sanctions, which were made in the Nicene Council for the government of the whole Church, by the teaching of God's Spirit, be violated, which God forbid, by my connivance; and if the desire of one brother be of more weight with me than the common good of the whole house of the Lord." This to the Emperor. To the Empress, thus:—"Since no one is allowed to attempt^[101] anything against the statutes of the Fathers' Canons, which many years ago were based on spiritual decrees in the city of Nicea; so that if any one desires to decree anything against them, he will rather lessen himself than injure them. *And if these are kept uninjured, as it behoves, by all Pontiffs, there will be tranquil peace and firm concord through all the Churches. There will be no dissensions concerning the degree of honours; no contests about ordinations; no doubts about privileges; no conflicts about the usurpation of another's right; but under the equal law of charity, both men's minds and duties will be kept in the due order;* and he will be truly great, who shall be alien from all ambition, according to the Lord's words, 'Whosoever will be great among you, let him be your minister, &c.'" But to Anatolius, thus:—"Those^[102] holy and venerable Fathers, who in the Nicene city established laws of ecclesiastical Canons, *which are to last to the end of the world*, when the sacrilegious Arius with his impiety was condemned, live both with us and in the whole

world by their constitutions; and if anything anywhere is presumed upon contrary to what they appointed, it is without delay annulled, &c."

But *what* the violation was he likewise states: it is not any wrong done to his own see personally. He says to the Empress: "But^[103] what doth the prelate of the Church of Constantinople desire more than he hath obtained? Or what will satisfy him, if the magnificence and glory of so great a city satisfy him not? It is too proud and immoderate to go beyond one's own limits, and, trampling on antiquity, to wish to seize on another's right. And, in order to increase the dignity of one, to impugn the primacy of so many Metropolitans; and to carry a new war of disturbance into quiet provinces, settled long ago by the moderation of the holy Nicene Council," &c.

To Anatolius himself he says: "I grieve—that you attempt to infringe the most sacred constitutions of the Nicene Canons; as if this were a favourable opportunity presented to you, when the See of Alexandria may lose the privilege of the second rank, and the Church of Antioch its possession of the third dignity; so that when these places have been brought under your jurisdiction, all Metropolitan Bishops may be deprived of their proper honour."^[104] "I oppose you, that with wiser purpose you may refrain from throwing into confusion the whole Church. Let not the rights of provincial Primacies be torn away, nor Metropolitan Bishops be deprived of their privileges in force from old time. Let no part of that dignity perish to the See of Alexandria, which it was thought worthy to obtain through the holy Evangelist Mark, the disciple of blessed Peter; nor, though Dioscorus falls through the obstinacy of his own impiety, let the splendour of so great a Church be obscured by another's disgrace. Let also the Church of Antioch, in which first, at the preaching of the blessed Apostle Peter, the name of Christian arose, remain in the order of its hereditary degree, and being placed in the third rank never sink below itself."

So then it was not St. Peter's Primacy, nor his own proper authority in the Church, which St. Leo conceived to be attacked by this Canon; but he refused to be a party to "treading under foot the constitution of the Fathers"—to disturbing "the state of the universal Church, protected of old by a most wholesome and upright administration."^[105] So the Emperor Marcian, Anatolius, Julian of Cos, beseech Leo to grant this, without so much as imagining that they are injuring *his* rank by asking it. I see not how

it is possible to avoid the conclusion, that the power of the First See, even as its most zealous occupant viewed it, was quite different from that power which was set up in the middle ages. This is only one of a vast number of proofs which distinguish the Primacy from the present Supremacy. And it is the more valuable, because St. Leo certainly carries his notion of his own rights as universal Primate further than any Father of his time. I shall have occasion to make a like remark presently in the matter of St. Gregory's protest.

But, indeed, such a Canon as this being passed in the most numerous Ecumenical Synod, in spite of the opposition of the Pope's Legates, speaks for itself. I am well aware that St. Leo refused to receive it, that, "by the authority of the blessed Peter, he annulled it by a general declaration, as contrary to the holy Canons of Nicea."^[106] Accordingly it was not received in the West; but it nevertheless always prevailed in the East, and the Popes ultimately conceded the point it enacted. And^[107] from the hour it was enacted to this, it has remained the law of the Eastern Church; and the Patriarchal power, which in the Western Church has developed into the Papal, has remained attached to the throne of Constantinople in the other great division of Christ's kingdom.

The ninth Canon of Chalcedon also says:—"If a Clergyman has any matter against his own Bishop or another, let him plead his cause before the Council of the province. But if either a Bishop or Clergyman have a controversy against the Metropolitan of the same province, let him have recourse either to the Exarch of the Diocese, or to the throne of the imperial city of Constantinople, and plead his cause before it." I remark this, because it is a far greater power of hearing appeals granted to the Bishop of Constantinople, than was granted to the Bishop of Rome a hundred years before at the Council of Sardica.

Now, let us be fair and even-handed. If the great influence and authority exercised at the Council of Chalcedon by St. Leo is to be acknowledged as witnessing the Roman Primacy, let us also grant, that unless the Acts and the Canons of the first four Ecumenical Councils are to be swept away as waste paper before the omnipotence of Papal prerogative, then the ancient decrees of Nicea, Constantinople, Ephesus, and Chalcedon, offer an insurmountable barrier to the present claims of Rome. But concerning the

Canons of Nicea, St. Leo, at least, says:—"I hold all ecclesiastical rules to be dissolved, if any part of that sacrosanct constitution of the Fathers be violated."^[108] St. Gregory repeats:—"I receive the four Councils of the holy universal Church as the four books of the Holy Gospel."^[109] Mr. Newman says, "that the definition passed at Chalcedon is the Apostolic Truth once delivered to the Saints, is most firmly to be received from faith in that overruling Providence, which is by special promise extended over the Acts of the Church."^[110] Does it not equally follow that the Church government recognised as immemorial, and enforced at Nicea, Constantinople, Ephesus, and Chalcedon, *and the doctrine which is involved therein*, are likewise to be maintained, and that none who appeal to them with truth, as practised by themselves, whatever else they may fall into, can be guilty of schism?

The hundred and thirty years between the death of St. Leo and the accession of St. Gregory, were years of trouble, confusion, and disaster: "the stars fell from heaven, and the powers of the heavens were shaken." The Western empire was overthrown; barbarians and heretics obtained the mastery in Italy, and generally in the West; there was but one fixed and central authority to which the eyes of churchmen could turn with hope and confidence in the whole West, that of the Roman Pontiff.

I select the following points as bearing on our subject:—

In the year 536 we have one of those rare instances in which the Primacy of Rome is seen acting on the Eastern Church, but in perfect accordance with the Canons and the Patriarchal system. The Pope Agapetus had been compelled by Theodatus, king of the Goths, to proceed to Constantinople, in order that he might, if possible, prevail upon Justinian not to attempt the recovery of Italy. Not having wherewith to pay the expenses of his journey, he had been compelled to borrow money on the sacred vessels of St. Peter's Church. On arriving at Constantinople he refused to see the new Patriarch Anthimus, or to receive him to his communion, both because he was suspected of heresy, and had been translated from the See of Trebisonde. Anthimus refused to appear in the Council that the Pope held at Constantinople to judge him; so he was deposed, and returned his pallium to the Emperor. Mennas was elected in his stead by the Emperor, with the approbation of all the Clergy and the people, and the Pope consecrated him in the church of St. Mary. "Pope Agapetus wrote a synodal letter to Peter,

Patriarch of Jerusalem, to acquaint him with what he had done in this Council. 'When we arrived,' said he, 'at the court of the Emperor, we found the See of Constantinople usurped, contrary to the Canons, by Anthimus Bishop of Trebisonde. He even refused to quit the error of Eutyches. Therefore, after having waited for his repentance, we declare him unworthy of the name of Catholic and Bishop, until he fully receive the doctrine of the Fathers. You ought likewise to reject the rest whom the Holy See has condemned. We are astonished that you approved this injury done to the See of Constantinople, instead of informing us of it; and we have repaired it by the ordination of Mennas, who is the first of the Eastern Church ordained by the hands of our See.'"^[111] I find this Pope presently called by the Easterns, 'Father of fathers,' 'Archbishop of ancient Rome,' 'Ecumenical Patriarch.' This latter title is also given to Mennas. I shall have more to say about it hereafter; but it is remarkable that it was first given, so far as we have any record, to Dioscorus,^[112] by a Bishop in some complaint made to him at the Latrocinium of Ephesus; but Justinian gives to the Patriarch of Constantinople the title, "to the most holy and blessed Archbishop of this royal city, and Ecumenical Patriarch."^[113]

The Pope shortly after dies at Constantinople, and a Council is held, at which the Patriarch Mennas presides, the Bishops who had accompanied the defunct Pope taking rank after him. He writes to the Patriarch Peter of Jerusalem, and informs him of the acts of this Council. Peter assembles his Council at Jerusalem: the procedure which took place at Constantinople was there found canonical, and the deposition of Anthimus was confirmed. Here the same facts which prove the Pope's Primacy refute his Supremacy: and this is not an isolated incident, but one link in a vast and uninterrupted chain of evidence.

I find in the laws of the Emperor Justinian just at the same time, looking at them merely as facts, a full confirmation and recognition of the Episcopal and Patriarchal constitution of the Church. In 538, the Emperor, in an edict, addressing the Patriarch Mennas, says, "Wherefore we exhort you to assemble all the Bishops who are in this imperial city ... and oblige them all to anathematize by writing the impious Origen ... that your Blessedness send copies of what you do on this subject to all the other Bishops, and to all the superiors of monasteries.... We have written as much to Pope Vigilius

and the other Patriarchs".... "The Patriarch Mennas, and the Bishops who were at Constantinople, subscribed to this: it was then sent to Pope Vigilius, to Zoilus, Patriarch of Alexandria, to Ephrem of Antioch, and to Peter of Jerusalem, who all subscribed to it".... "There are three great laws of the year 511, of which the first regulates ordinations:" those of the Bishops were still in the hands of the several clergy, laity, and Metropolitans.... "The second law of the 18th March enacts, that the four General Councils shall have the force of law, that the Pope of Rome is the first of all the Bishops, and after him the Bishop of Constantinople."—"Bishops cannot be called to appear against their will before secular judges for any cause whatsoever. If Bishops of the same province have a difference together, they shall be judged by the Metropolitan, accompanied by the other Bishops of the province, *and may appeal to the Patriarch, but not beyond*. Likewise if an individual, clerk or lay, has a matter against his Bishop. The Metropolitan can only be tried before the Patriarch."—"Simony is forbidden ... still it is allowed to give for consecrations, according to ancient customs, in the following proportion. The Pope and the four Patriarchs of Constantinople, Alexandria, Antioch and Jerusalem, may give to the Bishops and the Clergy according to custom, provided that it exceed not twenty pounds of gold. The Metropolitans and the other Bishops may give a hundred gold solidi for their enthronement," &c.^[114]

So, again: "Therefore let the most holy Patriarchs of each Diocese propose these things to the most holy Churches under them, and make known to the Metropolitans, most beloved of God, what we have ratified. Let these again set it forth in the most holy Metropolitan Church, and notify it to the Bishops under them. But let each of these propose it in his own Church, that no one in our commonwealth be ignorant of it."^[115]

"We charge the most blessed Archbishops and Patriarchs, that is, of elder Rome, and Constantinople, and Alexandria, and Theopolis and Jerusalem."^[116]

But Pope Pelagius I. himself says: "As often as any doubt ariseth to any concerning an Universal Council, in order to receive account of what they do not understand—let them recur to the Apostolical Sees.—Whosoever then is divided from the Apostolical Sees, there is no doubt that he is in schism."^[117]

St. Augustin had said long before, "What hath the See of the Roman Church done to thee, in which Peter sat, in which Anastasius sitteth now: or of the Church of Jerusalem, in which James sat, and where now John sitteth: with which we are joined in Catholic unity, and from which ye in impious fury have separated."^[118]

We now come to the dark and sad history of Pope Vigilius. And here I am glad that another can speak for me. Bossuet says: "The acts of the Second Council of Constantinople, the fifth general, under Pope Vigilius and the Emperor Justinian, will prove that the decrees of the third and fourth Councils were understood in the same sense by the fifth as we have understood them. And this Council received the account of them near at hand, and transmitted it to us."^[119]

"The three chapters were the point in question; that is, respecting Theodore of Mopsuestia, Theodoret's writings against Cyril, and the letter of Ibas of Edessa to Maris the Persian. The question was whether that letter had been approved in the Council of Chalcedon. So much was admitted that it had been read there, and that Ibas, after anathematizing Nestorius, had been received by the Council. Some contended that his person only was spared; others that his letter also was approved. Thus inquiry was made at the fifth Council how writings on the faith were wont to be approved in former Councils. The acts of the third and fourth Council, those which we have mentioned above respecting the letter of St. Cyril and of St. Leo, were set forth. Then the holy Council declared—'It is plain, from what has been recited, in what manner the holy Councils are wont to approve what is brought before them. For, great as was the dignity of those holy men who wrote the letters recited, yet they did not approve their letters simply or without inquiry, nor without taking cognisance that they were in all things agreeable to the exposition and doctrine of the holy Fathers, with which they were compared.' But the acts proved that this course was not pursued in the case of the letter of Ibas; they inferred, therefore, most justly, that that letter had not been approved. So, then, it is certain, from the third and fourth Councils, the fifth so declaring and understanding it, that letters approved by the Apostolic See, such as was that of Cyril, or even proceeding from it, as that of Leo, were received by the holy Councils not simply, nor without inquiry."

Pope Vigilius afterwards, when consenting to this Council, "acknowledges that the letter of St. Leo was not approved at the Council of Chalcedon until it had been examined and found conformable to the faith of the three preceding Councils; and this avowal is the more important in the mouth of a Pope."^[120]

"Again, in the same fifth Council the acts against the letter of Nestorius are read, in which the Fathers of Ephesus plainly pronounce, 'that the letter of Nestorius is in no respect agreeable to the faith which was set forth at Nicea.' So this letter also was rejected, not simply, but, as was equitable, after examination; and Ibas condemned, who stated that Nestorius had been rejected by the Council of Ephesus without examination and inquiry.

"The holy Fathers proceed to do what the Bishops at Chalcedon would have done, had they undertaken the examination of Ibas' letter. They compare the letters with the acts of Ephesus and Chalcedon. The holy Council declared —'The comparison made proves, beyond a doubt, that the letter which Ibas is said to have written is, in all respects, opposed to the definition of the right faith, which the Council of Chalcedon set forth. All the Bishops cried out, 'We all say this; the letter is heretical.' Thus, therefore, is it proved by the fifth Council that our holy Fathers in Ecumenical Councils pronounce the letters read, whether of Catholics or heretics, or even of Roman Pontiffs, to be orthodox or heretical, according to the same procedure, after legitimate cognisance, the truth being inquired into, and then cleared up; and upon these premises judgment given.

"What! you will say, with no distinction, and with minds equally inclined to both parties? Indeed we have said, and shall often repeat, that there was a presumption in favour of the decrees of orthodox Pontiffs; but in Ecumenical Councils, where judgment is to be passed in matter of faith, that they were bound no longer to act upon presumption, but on the truth clearly and thoroughly ascertained.

"Such were the acts of the fifth Council. This it learnt from the third and fourth Councils, and approved; and in this argument we have brought at once in favour of our opinion the decrees of the Ecumenical Councils of Ephesus, Chalcedon, and the second Constantinopolitan."^[121]

The point here taken up by Bossuet, and proved upon indisputable authority, is of the greatest importance, viz. that the decree of a Roman Pontiff, *de fide*, and he, perhaps, the greatest of the whole number, was judged by a General Council, and only admitted when it was found conformable to antiquity. It settles, in fact, the whole question, that the Bishop of Rome is indeed possessed of the First See, and Primate of all Christendom; but that he is not the sole depository of Christ's power in the Church, which is, in truth, the Papal idea, laid down by St. Gregory the Seventh, and acted upon since. The difference between these two ideas is the difference between the Church of the Fathers and the present Latin Communion in the matter of Church government, in which they are wide as the poles asunder.

The history of Pope Vigilius further confirms the truth of what we have said. Bossuet proceeds: "In the same fifth Council the following acts support our cause.

"The Emperor Justinian desired that the question concerning the above-mentioned three Chapters should be considered in the Church. He therefore sent for Pope Vigilius to Constantinople. There he not long after assembled a Council. The Orientals thought it of great moment that these Chapters should be condemned, against the Nestorians, who were raising their heads to defend them; Vigilius, with the Occidentals, feared lest thus occasion should be taken to destroy the authority of the Council of Chalcedon; because it was admitted that Theodoret and Ibas had been received in that Council, whilst Theodore, though named, was let go without any mark of censure. Though then both parties easily agreed as to the substance of the faith, yet the question had entirely respect to the faith, it being feared by the one party lest the Nestorian, by the other lest the Eutychean, enemies of the Council of Chalcedon should prevail.

"From this struggle many accusations have been brought against Vigilius, which have nothing to do with us. I am persuaded that everything was done by Vigilius with the best intent, the Westerns not enduring the condemnation of the Chapters, and things tending to a schism." The facts here alluded to, but for obvious reasons avoided by Bossuet, are as follows, very briefly. Vigilius on the 11th of April, 548, issues his 'Judicatum' against the three Chapters, saving the authority of the Council of Chalcedon.

Thereupon the Bishops of Africa, Illyria, and Dalmatia, with two of his own confidential Deacons, withdraw from his communion. In the year 551, the Bishops of Africa, assembled in Council, excommunicate him, for having condemned the three Chapters. At length the Pope publicly withdraws his 'Judicatum.' While the Council is sitting at Constantinople he publishes his 'Constitutum,' in which he condemns certain propositions of Theodore, but spares his person; the same respecting Theodoret; but with respect to Ibas, he declares his letter was pronounced orthodox by the Council of Chalcedon. Bossuet goes on: "however this may be, so much is clear that Vigilius, though invited, declined being present at the Council; that nevertheless the Council was held without him; that he published a 'Constitutum' in which he disapproved of what Theodore, Theodoret, and Ibas were said to have written against the faith; but decreed that their name should be spared, because they were considered to have been received by the fourth Council, or to have died in the communion of the Church, and to be reserved to the judgment of God. Concerning the letter of Ibas, he published the following, that, understood in the best and most pious sense, it was blameless; and concerning the three Chapters generally, he ordered that after his present declaration Ecclesiastics should move no further question.

"Such was the decree of Vigilius, issued upon the authority with which he was invested. And the Council, after his constitution, both raised a question about the three Chapters, and decided that question was properly raised concerning the dead, and that the letter of Ibas was manifestly heretical and Nestorian, and contrary in all things to the faith of Chalcedon, and that they were altogether accursed, who defended the impious Theodore of Mopsuestia, or the writings of Theodoret against Cyril, or the impious letter of Ibas defending the tenets of Nestorius; and who did not anathematize it, but said it was correct.

"In these latter words they seemed not even to spare Vigilius, although they did not mention his name. And it is certain their decree was confirmed by Pelagius the Second, Gregory the Great, and other Roman Pontiffs.... These things prove, that in a matter of the utmost importance, disturbing the whole Church, and seeming to belong to the faith, the decrees of sacred Councils prevailed over the decrees of Pontiffs, and that the letter of Ibas, though

defended by a judgment of the Roman Pontiff, could nevertheless be proscribed as heretical."

Compare with this history the following remark of De Maistre, "that Bishops separated from the Pope, and in contradiction with him, are superior to him, is a proposition to which one does all the honour possible in calling it only extravagance."^[122]

After all this Fleury says: "At last the Pope Vigilius resigned himself to the advice of the Council, and six months afterwards wrote a letter to the Patriarch Eutychius, wherein he confesses that he has been wanting in charity in dividing from his brethren. He adds, that one ought not to be ashamed to retract, when one recognises the truth, and brings forward the example of St. Augustin. He says, that, after having better examined the matter of the three chapters, he finds them worthy of condemnation. 'We recognise for our brethren and colleagues all those who have condemned them, and annul by this writing all that has been done by us or by others for the defence of the three chapters.'"^[123]

Nor can I think it a point of little moment that Bishops of Rome were at different times deposed or excommunicated by other Bishops. As in the second century the Eastern Bishops disregard St. Victor's excommunication respecting Easter; and in the third St. Firmilian in Asia, and St. Cyprian in Africa, disregard St. Stephen's excommunication in the matter of rebaptizing heretics; so when the Bishops of the Patriarchate of Antioch found that Pope Julius had received to communion St. Athanasius, and others whom they had deposed, they proceeded to depose him, with Hosius and the rest.^[124] This was in the fourth century. In the fifth, Dioscorus, at the Latrocinium of Ephesus, attempts to excommunicate St. Leo. In the sixth, as we have just seen, the Bishops of Africa, Illyria, and Dalmatia, all of the West, separate Pope Vigilius from their communion, and the former afterwards solemnly excommunicate him. It matters not that in all these cases the Bishops were wrong; I quote these acts merely to prove that they esteemed the Bishop of Rome the first of all Bishops indeed, yet subject to the Canons like themselves, and only of equal rank. For on the present Papal theory, such an act, as we have seen le Père Lacordaire affirm, would be merely suicidal,—pure insanity. It is in utter contradiction to the notion of an ecclesiastical monarchy.

In like manner we find portions of the Church, as that of Constantinople, again and again out of communion with the Roman Pontiff, but they do not therefore cease to be parts of the true Church. So Gieseler states that in consequence of jealousies about the condemning the three Chapters the Archbishops of Aquileia, with their Bishops, were out of communion with Rome from A.D. 568 to 698.^[125] A reconciliation takes place, and communion is renewed. Facts of the same nature, and applying closely to our own position, are mentioned by Bossuet,^[126] viz. that the Spanish Bishops, not having been present at, nor invited to, the sixth General Council, did not receive it as Ecumenical, though invited to do so by the Pope of the day, until they had themselves examined its acts, and found them accordant with previous Councils. And as to the second Nicene, or seventh General Council, the Gallic Bishops, with Charlemagne at their head, long refused to receive it, though supported by the Pope, because neither they nor other Occidentals were present at it. "Nor were they in the mean time held as heretical or schismatical, though they differed on a point of the greatest moment, that is, the interpretation of the precepts of the first table, because they seemed to inquire into the matter with a good intention, not with obstinate party spirit."^[127] Yet Pope Adrian had himself written against them.

Now all these various facts, from the first Nicene Council, converge towards one view, for which, I think, there is as full evidence as for most facts of history,—that the Pope, to the time of St. Gregory the Great, and indeed long afterwards, was but the first of the Patriarchs, who, in their own Patriarchates, enjoyed a co-ordinate and equal authority with his in the West. I suppose De Maistre acknowledges as much in his own way, when he says, "The Pope is invested with five very distinct characters; for he is Bishop of Rome, Metropolitan of the Suburbican Churches, Primate of Italy, Patriarch of the West, and, lastly, Sovereign Pontiff. The Pope has never exercised over the other Patriarchates any powers save those resulting from this last; so that except in some affair of high importance, some striking abuse, or some appeal in the greater causes, the Sovereign Pontiffs mixed little in the ecclesiastical administration of the Eastern Churches. And this was a great misfortune, not only for them, but for the states where they were established. It may be said that the Greek Church, from its origin, carried in its bosom a germ of division, which only completely developed

itself at the end of twelve centuries, but which always existed under forms less striking, less decisive, and so endurable."^[128] The confession of one who travesties antiquity so outrageously as De Maistre is curious at least:— and now let us proceed to the testimony of St. Gregory.

And, assuredly, if there was any Pontiff who, like St. Leo, held the most strong and deeply-rooted convictions as to the prerogatives of the Roman see, it was St. Gregory. His voluminous correspondence with Bishops, and the most notable persons throughout the world, represents him to us as guarding and superintending the affairs of the whole Church from the watch-tower of St. Peter, the loftiest of all. Let one assertion of his prove this. Writing to Natalis, Bishop of Salona in Dalmatia, he says, "After the letters of my predecessor and my own, in the matter of Honoratus the Archdeacon, were sent to your Holiness, in despite of the sentence of us both, the above-mentioned Honoratus was deprived of his rank. *Had either of the four Patriarchs done this, so great an act of contumacy could not have been passed over without the most grievous scandal.* However, as your brotherhood has since returned to your duty, I take notice neither of the injury done to me, nor of that to my predecessor."^[129] The following words in another letter will elucidate his meaning here. "As to what he says, that he (a Bishop) is subject to the Apostolical See, *I know not what Bishop is not subject to it, if any fault be found in Bishops. But when no fault requires it, all are equal according to the estimation of humility.*"^[130] And again, writing to his own Defensor in Sicily, a part of the Church most under his own control, "I am informed that if any one has a cause against any clerks, you throw a slight upon their Bishops, and cause them to appear in your own court. If this be so, we expressly order you to presume to do so no more, because beyond doubt it is very unseemly. For if his own jurisdiction is not preserved to each Bishop, what else results but that the order of the Church is thrown into confusion by us, who ought to guard it."^[131] Gieseler says: "They (the Roman Bishops) maintained, that not only the right of the highest ecclesiastical tribunal in the West belonged to them, but the supervision of orthodoxy, and maintenance of the Church's laws, in the whole Church; and they based these claims, still, it is true, at times, upon imperial edicts, and decrees of Councils, but most commonly upon the privileges granted to Peter by the Lord."^[132] And I suppose if the Primacy of Christendom has any real meaning, it must mean this, that in case of

necessity, such as infraction of the Canons, an appeal may be made to it. So undoubtedly St. Gregory understood his own rights. What his ordinary jurisdiction was, Fleury thus tells us:—"The Popes ordained clergy only for the Roman (local) Church, but they gave Bishops to the greater part of the Churches of Italy."^[133] "St. Gregory entered into this detail only for the Churches which specially depended on the Holy See, and for that reason were named suburbican; that is, those of the southern part of Italy, where he was sole Archbishop, those of Sicily, and the other islands, though they had Metropolitans. But it will not be found that he exercised the same immediate power in the provinces depending on Milan and Aquileia, nor in Spain and the Gauls. It is true that in the Gauls he had his vicar, who was the Bishop of Arles, as was likewise the Bishop of Thessalonica for Western Illyricum. The Pope further took care of the Churches of Africa, that Councils should be held there, and the Canons maintained; but we do not find that he exercised particular jurisdiction over any that belonged to the Eastern empire, that is to say, upon the four patriarchates of Alexandria, Antioch, Jerusalem, and Constantinople. He was in communion and interchange of letters with all these Patriarchs, without entering into the particular management of the Churches depending on them, except it were in some extraordinary case. The multitude of St. Gregory's letters gives us opportunity to remark all these distinctions, in order not to extend indifferently rights which he only exercised over certain Churches."^[134]

Now in St. Gregory's time a discussion arose, which served to draw forth statements on his part most remarkably bearing on the present claims of the See of Rome. In the year 589 Gregory, Patriarch of Antioch, accused of a grievous crime, appealed to the Emperor and his Council. He accordingly went to Constantinople, and was tried. All the Patriarchs of the East in person, or by their deputies, attended this trial, the Senate likewise, and many Metropolitans; and the cause having been examined in several sittings, Gregory was absolved, and the accuser flogged through the city and banished. At this Council John the Faster, Patriarch of Constantinople, took the title of Universal Bishop. Immediately the Roman Pontiff Pelagius heard of it, he sent letters by which, of St. Peter's authority, he annulled the acts of this Council, save as to the absolution of Gregory, and ordered his deacon, the Nuncio, not to attend the mass with John. But he left the contest about the name Ecumenical, or Universal, Bishop or Patriarch, to his

successor Gregory. We have many letters of Gregory on the subject, of which I will give extracts. The Pope foresaw the great danger there was that the Patriarch of Constantinople would reduce completely under him the other three Eastern Patriarchs, and perhaps attempt to gain the Primacy of the whole Church; for this, among other reasons, neither St. Leo, nor any of his successors, had ever allowed in the West the 28th Canon of Chalcedon, giving him the next place to Rome. And now this title of Ecumenical, combined with the fact that the Bishop of that See was, from his position, the intermediary between all the Bishops of the East and the imperial power, seemed to point directly to such a consummation. He was the natural president of a Council continually sitting at Constantinople, which might be said to lead and give the initiative to the whole East. Accordingly St. Gregory appears in this matter the great defender of the Patriarchal equilibrium. "Gregory to Eulogius, Bishop of Alexandria, and Anastasius, Bishop of Antioch."^[135]... "As your venerable Holiness is aware, this name Universal was offered by the holy Synod of Chalcedon to the Pontiff of the Apostolic See, a post which by God's providence I fill. But no one of my predecessors ever consented to use so profane a term, because plainly, if a single *Patriarch is called Universal, the name of Patriarch is taken from the rest*. But far, far be this from the mind of a Christian, that any one should wish to claim to himself that by which the honour of his brethren may seem to be in any degree diminished. Since, therefore, we are unwilling to receive this honour when offered to us, consider how shameful it is that any one has wished violently to usurp it to himself. Wherefore let your Holiness in your letters *never call any one Universal, lest in offering undue honour to another you should deprive yourself of that which is your due....* Let us, therefore, render thanks to Him, who, dissolving enmities, hath caused in His flesh, that in the whole world there should be one flock and one fold under Himself the one Shepherd.... For because he is near of whom it is written, 'He is king over all the children of pride,' what I cannot utter without great grief, our brother and fellow-Bishop John, despising the Apostolic precepts, the rules of the Fathers, endeavours by this appellation to go before him in pride.... So that he endeavours to claim the whole to himself, and aims by the pride of this pompous language *to subjugate to himself all the members of Christ, which are joined together to the one sole head, that is, Christ....* By the favour of the Lord we must strive with all our strength, and take care lest by one poisonous sentence the living members

of Christ's body be destroyed. For if this is allowed to be said freely, *the honour of all the Patriarchs is denied*. And when, perchance, he who is termed Universal perishes in error, presently no Bishop is found to have remained in the state of truth. Wherefore it is your duty firmly, and without prejudice, to preserve the Churches as you received them, and let this attempt of diabolic usurpation find nothing of its own in you. Stand firm, stand fearless; *presume not ever either to give or receive letters with this false title of Universal*. Keep from the pollution of this pride all the Bishops subject to your care, that the whole Church may recognise you for Patriarchs, not only by good works, but by your genuine authority. But if perchance adversity follow, persisting with one mind, we are bound to show, even by dying, that we love not any special gain of our own to the general loss." So, likewise to the Bishops of Illyricum he says—"Because as the end of this world is approaching, the enemy of the human race hath appeared in anticipation, to have for his precursors through this name of pride, those very priests who ought by a good and humble life to resist him; I therefore exhort and advise that no one of you ever give countenance to this name, ever agree to it, ever write it, ever receive a writing wherein it is contained, or add his subscription; but, as it behoves ministers of Almighty God, keep himself clean from such-like poisonous infection, and give no place within him to the crafty liar-in-wait; *since this is done to the injury and disruption of the whole Church, and, as we have said, in contempt of all of you. For if, as he thinks, one is universal, it remains that you are not Bishops.*"^[136] To Sabinianus, then his Deacon, afterwards his successor—"For to consent to this nefarious name, is nothing else but to lose our faith."^[137] "Gregory to the Emperor Mauricius"^[138]... "Concerning which matter, my Lord's affection has enjoined me in his commands, saying that scandal ought not to grow between us, for the term of a frivolous name. But I beg your Imperial Piety to consider, that some frivolities are very harmless, some highly injurious. When Antichrist at his coming calls himself God, will it not be very frivolous, but yet cause great destruction? If we look at the amount of what is said, it is but two syllables, (*Deum*,) if at the weight of iniquity, it is universal destruction. *But I confidently affirm that whoever calls himself, or desires to be called, Universal Priest, in his pride goes before Antichrist*; because through pride he prefers himself to the rest. And he is led into error by no dissimilar pride, because like that perverse one, he wishes to appear God over all men; so, *whoever he is who*

desires to be called sole Priest, he lifts up himself above all other Priests. But since the Truth says, 'every one who exalteth himself shall be abased,' I know that the more any pride inflates itself, the sooner it bursts."

"Gregory to the Emperor Mauritius."^[139] ... "But since it is not my cause, but God's, and since not I only, but the whole Church, is thrown into confusion, since sacred laws, since venerable synods, since the very commands even of our Lord Jesus Christ are disturbed by the invention of this haughty and pompous language, let the most pious Emperor lance the wound, &c.... *For to all who know the Gospel, it is manifest that the charge of the whole Church was entrusted by the voice of the Lord to the holy Apostle Peter, chief of all the Apostles.* For to him is said, Peter, lovest thou me? Feed my sheep. To him is said, Behold, Satan hath desired to sift you, &c. To him is said, Thou art Peter, &c. *Lo he hath received the keys of the kingdom of heaven, the power of binding and loosing is given to him, the care of the whole Church is committed to him, and the Primacy, and yet he is not called Universal Apostle.* And that holy man, my fellow-priest, John, endeavours to be called Universal Bishop.... Do I, in this matter, most pious Lord, defend my own cause? is it a private injury that I pursue? the cause of Almighty God, the cause of the universal Church. Who is he, who, in violation of the statutes of the Gospel, in violation of the decrees of Canons, presumes to usurp a new name to himself? *Would that he who desires to be called universal may exist himself without diminution to others!*... If, then, any one claims to himself that name in that Church, as in the judgment of all good men he has done, the whole Church (which God forbid!) falls from its place, when he who is called Universal falls. But far from Christian hearts be that blasphemous name, in which the honour of all Priests is taken away, while it is madly arrogated by one to himself! Certainly, to do honour to the blessed Peter, chief of the Apostles, this was offered to the Roman Pontiff by the venerable Synod of Chalcedon. But no one of them ever consented to use this singular appellation, that all Priests might not be deprived of their due honour by something peculiar being given to one. How is it, then, that we seek not the glory of this name, though offered us, yet another presumes to claim it, though not offered?"

John had been succeeded by Cyriacus at Constantinople: and he writes further,^[140] "Gregory to Anastasius, Bishop of Antioch.... I thought it not worth while on account of a profane appellation to delay receiving the

synodical letter of our Brother and Fellow-Priest Cyriacus, that I might not disturb the unity of the holy Church: nevertheless, I have made a point of admonishing him respecting that same superstitious and haughty appellation, saying that he could not have peace with me unless he corrected the pride of the aforesaid expression, *which the first Apostate invented*. But you should not call this cause of no importance; because, if we bear this patiently, we corrupt the faith of the whole Church. For you know how many, not only heretics, but even heresiarchs, have come forth from the Church of Constantinople. And, not to speak of the injury done to your honour, if one Bishop be called Universal, the whole Church tumbles to pieces, if that one, being universal, falls.^[141] But far be such folly, far be such trifling, from my ears. But I trust in the Almighty Lord, that what He hath promised, He will quickly perform: every one that exalteth himself shall be abased." In another most interesting letter he communicates to the Bishop of Alexandria, that "while the nation of the English, placed in a corner of the world, was remaining up to this time in unbelief, worshipping stocks and stones, by the help of your prayers I determined that I ought to send over to it a monk of my monastery, by the blessing of God, to preach there. After permission from me, he has been made a Bishop by the Bishops of Germany, and, assisted by their kindness, reached the aforesaid nation at the end of the world; and even at this present moment I have received accounts of his safety and labours; for either he, or those who have gone over with him, are distinguished among that nation by so great miracles, that they seem to imitate the powers of Apostles by the signs which they show forth. On this last feast of the Lord's Nativity more than ten thousand English are reported to have been baptized by this our brother and fellow-bishop, which I mention that you may know what you are doing among the people of Alexandria by your voice, and in the ends of the world by your prayers."^[142]—"Your Blessedness has also taken pains to tell me that you no longer write to certain persons those proud names, which have sprung from the root of vanity, and you address me, saying, *as you commanded*, which word *command* I beg you to remove from my ears, because I know who I am, and who you are. For in rank you are my Brother, in character my Father. I did not, therefore, command, but took pains to point out what I thought advantageous. I do not, however, find that your Blessedness was willing altogether to observe the very thing I pressed upon you. For I said that you should not write any such thing *either to me or to any one else*, and

lo! in the heading of your letter, directed to me, the very person who forbad it, you set that haughty appellation, *calling me Universal Pope*. Which I beg your Holiness, who are most agreeable to me, to do no more, because *whatever is given to another more than reason requires is so much taken away from yourself*. It is not in appellations, but in character, that I wish to advance. Nor do I consider that an honour by which I acknowledge that my brethren lose their own. For my honour is the honour of the Universal Church. My honour is the unimpaired vigour of my brethren. Then am I truly honoured, when the true honour is not denied to each one in his degree. *For if your Holiness calls me Universal Pope, you deny that you are yourself what you admit me to be, Universal*. But this God forbid. Away with words which inflate vanity, and wound charity. Indeed, in the holy Synod of Chalcedon, and by the Fathers subsequently, your Holiness knows this was offered to my predecessors. Yet none of them chose ever to use this term; that, while in this world they entertained affection for the honour of all Priests, in the hands of Almighty God they might guard their own."

As to what Gregory says about the Council of Chalcedon offering this title, Thomassin says,^[143] "It authorized at least by its silence the title of Ecumenical (Patriarch), which was given to Pope Leo in several requests there read." It appears these requests really were the complaints of two Alexandrian Deacons against Dioscorus.^[144] How very different it was to pass over without reprobating a title bestowed in documents which came before it, from itself conferring that title, is plain at once. In just the same way it had been given at the Latrocinium to Dioscorus. However, the title Ecumenical has been constantly since, and is now, borne by the Patriarch of Constantinople; no doubt a very innocent meaning may be given to it. The remarkable thing is, that Gregory has pointed out in such precise unmistakeable language a certain power and claim, which he inferred, rightly or wrongly, would be set up on this title Ecumenical, and which he pronounces to be a corruption of the whole constitution of the Church.

Perhaps, however, the most remarkable passage remains yet to be quoted. It is in a letter to the Patriarch John himself. "Consider, I pray you, that by this rash presumption the peace of the whole Church is disturbed, and the grace, poured out upon all in common, contradicted. And in this, indeed, you yourself will be able to increase just so much as you purpose in your own mind; and become so much the greater, as you restrain yourself from

usurping a proud and foolish name. And you profit in the degree that you do not study to arrogate to yourself by derogating from your brethren. Therefore, most dear brother, with all your heart love humility, by which the harmony of all the brethren and the unity of the holy universal Church, may be preserved. Surely the Apostle Paul, hearing some say, I am of Paul, I of Apollos, I of Cephas, exclaimed, in exceeding horror at this rending of the Lord's Body, by which His members attached themselves, as it were, to other heads, saying, Was Paul crucified for you? or were ye baptized in the name of Paul? If he then rejected the members of the Lord's Body being subjected to certain heads, as it were, besides Christ, and that even to Apostles themselves, as leaders of parts, what will you say to Christ, *who is, as you know, the Head of the Universal Church, in the examination of the last judgement,—you, who endeavour to subject to yourself under the name of Universal, all His members?* Who, I say, in this perverse name, is set forth for imitation but he, who despised the legions of angels joined as companions to himself, and endeavoured to rise to a height unapproached by all, that he might seem to be subject to none, and be alone superior to all. Who also said, 'I will ascend into heaven: I will exalt my throne above the stars of God: I will sit also upon the mount of the congregation, on the sides of the North. I will ascend above the height of the clouds: I will be like the Most High.'

"For what are all your brethren, the Bishops of the Universal Church, but the stars of heaven? Whose life and language together shine amid the sins and errors of men, as among the shades of night. And while you seek to set yourself over these by a proud term, and to tread under foot their name, in comparison with your own, what else do you say, but 'I will ascend into the heaven. I will exalt my throne above the stars of God.' Are not all the Bishops clouds, who rain down the words of their preaching, and shine with the light of good works? And while your brotherhood despises them, and endeavours to put them under you, what else do you say but this, which is said by the old enemy: 'I will ascend above the heights of the clouds?' And when I see all these things with sorrow, and fear the secret judgments of God, my tears increase, my heart contains not my groans, that that most holy man, the Lord John, of such abstinence and humility, seduced the persuasion of those about him, hath proceeded to such pride, that in longing after a perverse name, he endeavours to be like him, who, desiring in his

pride to be as God, lost even the grace of that likeness to God which had been given him; and so forfeited true blessedness, because he sought false glory. *Surely Peter, the first of the Apostles, a member of the holy universal Church, Paul, Andrew, John, what else are they but the heads of particular communities? and yet all are members under one head.* And to comprehend all in one brief expression, the saints before the law, the saints under the law, the saints under grace, all these making up the body of the Lord, are disposed among members of the Church, and no one ever wished to be called Universal. Let, then, your Holiness acknowledge how great is your pride, who seek to be called by that name, by which no one has presumed to be called who was really holy."^[145]

Now had these passages occurred in the writings of some ancient saint, who was generally opposed to the authority of the Roman See, had they belonged to a Patriarch of Antioch, or Constantinople, jealous of his own rights, they would surely have had their weight, as testimonies to a fact, not mere opinions of the speaker. They would have borne witness to no such thing as they reprobate having, till then, been allowed or thought of. Or, had they been isolated statements, not borne out by contemporaneous or antecedent documents, but standing alone, uncontradicted indeed, but unsupported, they would still have told. How, then, are we to express their weight, or the full assurance of faith which they give us, as being the deliberate, oft-repeated, official statements of a Pope, than whom there never was one more vigorous in defending or in exercising the rights of his See? As being supported and borne out, and in every possible way corroborated by the facts of history, the decrees of Councils, the innumerable testimonies of all parts of the world, the everyday life of the living, breathing Church for six hundred years? In an early work, Mr. Newman had said, "What there is not the shadow of a reason for saying that the Fathers held, what has not the faintest pretensions of being a Catholic Truth, is this, that St. Peter, and his successors, were and are universal Bishops; that they have the whole of Christendom for their own diocese, in a way in which other Apostles and Bishops had and have not."

In his last work he has retracted, saying, "Most true, if, in order that a doctrine be considered Catholic, it must be formally stated by the Fathers generally from the very first: but, on the same understanding, the doctrine

also of the Apostolic succession in the Episcopal order has not the faintest pretensions of being a Catholic truth."^[146]

Now these words of Mr. Newman seem to imply that the expressions of Fathers, or the decrees of Councils, look towards this presumed Catholic truth, tend to it, and finally admit it, as a truth which they had been all along implicitly holding, or unconsciously living upon, and at last recognised and expressed. On the contrary, to my apprehension, they hold another view about the See of Rome, and express it again and again. It is not a point on which there is variation or inconsistency among them. I have as clear a conviction as one can well have that St. Augustine did *not* hold the Papal theory. I think the words that I have quoted from him prove this. Moreover, the Fathers generally express a view about other Bishops which is utterly incompatible with this theory as now received, which by no process of development can be made to agree with it. And I confess that I am unable to understand the meaning of words, if this so-called "Catholic truth" of the Pope being the universal Bishop, is not distinctly considered in these passages of St. Gregory, formally repudiated for himself as well as for others, and the very notion declared to be, in any case whatsoever, *that of the Pope being specially named*, blasphemous and antichristian. Could heretics say any thing of the kind against the doctrine of the Apostolical succession, out of the first six centuries, they would have an advantage against the Church, which, thank God, they are far from possessing.

And it is of no small importance that we have here speaking a Pope, one to whom twelve centuries have given the name of Great, one who, with St. Leo, stands forth out of the ancient line of St. Peter's heirs as an especially legislative mind. Every Catholic is bound to take his words without suspicion. Now St. Gregory asserts, as we have seen, the right of his See to call *any* Bishop to account, even the four Patriarchs, in case of a violation of the Canons; declaring at the same time that, when the Canons are kept, the meanest Bishop is his equal in the estimation of humility. Even while arguing against this title he says, "To all who know the Gospel is manifest that the charge of the whole Church was entrusted by the voice of the Lord to the holy Apostle Peter,"—"and yet he is not called Universal Apostle;" but this title, he asserts, and the theory implied in it, is devilish, an imitation of Satan, an anticipation of Antichrist. What else can we conclude but that which so many other documents prove, that this Primacy over the whole

Church, the ancient and undoubted privilege of the Bishop of Rome, was something quite different from what he is here reprobating? For St. Gregory, least of all men, was so blind as to use arguments which might be retorted with full force against himself. And yet, any one reading these words of his, and not knowing whence they came, would suppose they were written by a professed opponent of the present Papal claims. For in these letters St. Gregory acknowledges all the Patriarchs as co-ordinate with himself, acknowledges our Lord to be sole Head of the Church, declares the title of Universal Bishop blasphemous and Antichristian, expressly on the ground that it is a wrong done to the Universal Church, to every Bishop and Priest: "If one is universal, it remains that you are not Bishops;" declares, moreover, that St. Peter himself is only a member of the Universal Church, as St. Paul, St. John, St. Andrew, were other members, the heads of different communities. This may be said to be the precise logical contradictory of De Maistre's assertion, that "the Pope" is "the Church," in which he assuredly only expresses the Papal idea. Rarely, indeed, is it that any controversy, appealing to ancient times, can have a testimony on all its details so distinct, and specific, and authoritative as this: and yet it may be said no more than to crown the testimony of the six centuries going before it. That during this period the Bishop of Rome was recognised to be first Bishop of the whole Church, of very great influence, successor of St. Peter, and standing in the same relation to his brethren the Bishops that St. Peter stood in to his brother Apostles; this, on the whole, I believe to be the testimony of the first six centuries, such as a person, not wilfully blind, and who was not content to take the witness of a Father when it suited his purpose and pass it by when it did not, would draw from ecclesiastical documents. I have set it forth to the best of my ability, as well where it seemed to tell against the present position of the Church of England, as in those many points in which it supports her.

What then is our defence on her part against the charge of schism? It is simply this. That no one can now be in the communion of Rome without admitting this very thing which Pope Gregory declares to be blasphemous and anti-Christian, and derogatory to the honour of every Priest. This is the very head and front of our offending, that we refuse to allow that the Pope is Universal Bishop. If the charge were that we refuse to stand in the same relation to the Pope that St. Augustin of Canterbury stood in to this very St.

Gregory, that we refuse to regard and honour the successor of St. Gregory with the same honour with which our Archbishops, as soon as they were seated in the government of their Church, and were no longer merely Missionaries but Primates, regarded the occupant of St. Peter's See, I think both the separation three hundred years ago, and the present continuance of it on our part, would, so far as this question of schism is concerned, be utterly indefensible. But this is *not* the point. It may indeed be, and frequently is, so stated by unfair opponents. The real point is, that, during the nine hundred years which elapsed between 596 and 1534 the power of the Pope, and his relation to the Bishops in his communion, had essentially altered: had been, in fact, placed upon another basis. That from being first Bishop of the Church, and Patriarch, originally of the ten provinces under the Præfectus Prætorii of Italy, then of France, Spain, Africa, and the West generally, he had claimed to be the source and channel of grace to all Bishops, the fountain-head of jurisdiction to the whole world, East as well as West; in fact, the 'Solus Sacerdos,' the 'Universus Episcopus,' contemplated by St. Gregory. There is a worldwide difference between the ancient signature of the Popes, 'Episcopus Catholicæ Ecclesiæ Urbis Romæ,' and that of Pope Pius at the Council of Trent, 'Ego Pius Catholicæ Ecclesiæ Episcopus.' It has been no longer left in the choice of any to accept his *Primacy*, without accepting his *Monarchy*, which those who profess to follow antiquity must believe that the Bishops of Nicea, Constantinople, Ephesus, and Chalcedon, Augustin and Chrysostom, the West and the East, would have rejected with the horror shown by St. Gregory at the first dawning of such an idea. And, whereas Holy Scripture and antiquity present us with one accordant view of the Universal Church governed by St. Peter and the Apostolic College, and, during the first six centuries at least, as the Bishop of Rome is seen to exercise the Primacy of St. Peter, so his brother-Bishops stand to him as the College of Apostles stood to St. Peter: instead of this, which is the Church's divine hierarchy, instituted by Christ Himself, the actual Roman Church is governed by one Bishop who has an apostolical independent power, whilst all the rest, who should be his brethren, are merely his delegates, receiving from his hand the investiture of such privileges as they still retain. If St. Gregory did not mean this by the terms 'Solus Sacerdos,' 'Universus Episcopus,' what did he mean? That the Pope should be the only Priest who offered sacrifice, or the only Bishop who ordained, confirmed, &c. is physically impossible. Nor did the title of the

Bishops of Constantinople tend to this: but to claim to themselves jurisdiction over the co-ordinate Patriarchs of the East, as the Popes have since done over the Bishops of the whole world. We have no need to consider what is the amount of this difficulty to Roman Catholics themselves: the same Providence which has placed them under that obedience, has placed us outside of it. Our cause, indeed, cannot be different now from what it was at the commencement of the separation. If inherently indefensible then, it is so now. But if then 'severe but just,' the lapse of three centuries in our separate state may materially affect our relative duties. I affirm my conviction, that it is better to endure almost any degree of usurpation, provided only it be not anti-Christian, than to make a schism: for the state of schism is a frustration of the purposes of the Lord's Incarnation; and through this, not only the English, and the Eastern Church, but the Roman also, lies fettered and powerless before the might of the world, and bleeding internally at every pore. How shall a divided Church meet and overcome the philosophical unbelief of these last times? or, the one condition to which victory is attached being broken, crush the deadliest attack of the old enemy? But the schism is made; let those answer for it before Christ's tribunal who made it. Now that it is made, I see not how a system, which is not a true development of the ancient Patriarchal constitution, but its antagonist, according to St. Gregory's words, can be forced upon us, on pain of our salvation, who have the original succession of the ancient Bishops of this realm, if any such there be, and the old Patriarchal constitution, '*sua tantum si bona norint.*' I ground our present position simply on the appeal to tradition and the first six centuries.

Not that there is any abrupt break in the testimony of history there; but it is necessary to put a limit somewhere. Otherwise the seventh century supplies us with the remarkable fact of Pope Honorius condemned, by the sixth Ecumenical Council in 681, as having connived at and favoured the Monothelite heresy, condemned more than forty years after his death; a fact which utterly destroys the new dogma of the infallibility of the one Roman Pontiff by himself; and which Bellarmine and Baronius can only meet by attempting to prove that the acts of the sixth Council have been falsified, though they had been received for genuine by the seventh and eighth Councils, and for nine hundred years; and the letter of St. Leo, immediately after that Council, falsified also, in which he condemns the Monothelites,

and amongst them Honorius, "who did not adorn this Apostolical See with the doctrine handed down from the Apostles, but endeavoured to subvert the undefiled faith by a profane tradition." The condemnation of the Council runs as follows:—"Having examined the letters of Sergius of Constantinople to Cyrus, and the answer of Honorius to Sergius, and having found them to be repugnant to the doctrine of the Apostles, and to the opinion of all the Fathers, in execrating their impious dogmas, we judge that their very names ought to be banished from the Holy Church of God; we declare them to be smitten with anathema; and, together with them, we judge that Honorius, formerly Pope of ancient Rome, be anathematized, since we find, in his letter to Sergius, that he follows in all respects his error, and authorizes his impious doctrine."^[147]

It appears, likewise, that as the letter of St. Cyril was read and approved in the third Council, and that of Pope St. Leo in the fourth, so that of Pope St. Agathon was read and approved in the sixth, and that of Pope Adrian the First in the seventh, A.D. 787. But here it may be well to give Bossuet's summary. "This tradition" (*i.e.* that the supreme authority in the Church resides in the consent of the Bishops) "we have seen to come down from the Apostles, and descend to the first eight General Councils; which eight General Councils are the foundation of the whole Christian doctrine and discipline, of which the Church venerates the first four, in St. Gregory's words, no less than the four Gospels. Nor is less reverence due to the rest, as, guided by the same Spirit, they have a like authority. Which eight Councils, with a great and unanimous consent, have placed the final power of giving decisions in nothing else but in the consent of the Fathers. Of which the six last have legitimately examined the sentence of the Roman Pontiff even given upon Faith, and that with the approval of the Apostolic See, the question being put in this form, as we read in the Acts—'Are these decrees right, or not?'

"But we have seen that the judgment of a General Council never was so reconsidered, but that all immediately yielded obedience to it. Nor was a new inquiry ever granted to anyone after that examination, but punishment threatened. Thus acted Constantine; thus Marcian; thus Cœlestine; thus Leo; thus all the rest, as we have seen in the Acts. The Christian world hath acknowledged this to be certain and indubitable.

"To this we may add the testimony of the admirable Pope St. Gelasius: 'A good and truly Christian Council once held, neither can nor ought to be unsettled by the repetition of a new Council.' And again: 'There is no cause why a good Council should be reconsidered by another Council, lest the mere reconsideration should detract from the strength of its decrees.' Thus what has received the final and certain judgment of the Church, is not to be reconsidered; for that judgment of the Holy Spirit is reversed, whenever it is reconsidered by a fresh judgment. But the judgment put forth by a Roman Pontiff is such, that it has been reconsidered. It is not therefore that ultimate and final judgment of the Church.

"Nor is that sentence of Gregory the Great less clear, comparing the four General Councils to the four Gospels, with the reason given; 'Because being decreed by universal consent, whoever presumes either to loose what they bind, or bind what they loose, destroys not them but himself.'

"So then our question is terminated by the tradition of the ancient Councils and Fathers. All should consent to the power of the Roman Pontiff, as explained according to the decree of the Council of Florence, after the practice of General Councils. The vast difference between the judgment of a Council and of a Pontiff is evident, since after that of the Council no question remains, but only the obedience of the mind brought into captivity; but that of the Pontiff is upon examination approved, room being given to object,—which was to be proved."^[148]

Here the real question at issue is, whether the Bishop of Rome be First Bishop, or Monarch, of the Church. Now, I have endeavoured to delineate, from the Fathers and from Councils, what the true Primacy of the Roman See is. What is now required from us to admit as terms of communion is—"That the ordinary jurisdiction of Bishops descends immediately from the Pope;" "the government of the Church is monarchical, therefore all authority resides in one, and from him is derived unto the rest;" "there is a great difference between the succession to Peter and that to the rest of the Apostles; for the Roman Pontiff properly succeeds Peter not as Apostle, but as ordinary Pastor of the whole Church; and therefore the Roman Pontiff has jurisdiction from Him from whom Peter had it: but Bishops do not properly succeed the Apostles, as the Apostles were not ordinary, but extraordinary, and, as it were, delegated Pastors, to whom there is no

succession. Bishops, however, are said to succeed the Apostles, not properly in that manner in which one Bishop succeeds another, and one king another, but in another way, which is two-fold. First, in respect of the holy Order of the Episcopate; secondly, from a certain resemblance and proportion: that is, as when Christ lived on earth, the twelve Apostles were the first under Christ, then the seventy-two Disciples: so now the Bishops are first under the Roman Pontiff, after them Priests, then Deacons, &c. But it is proved that Bishops succeed to the Apostles so, and not otherwise; for they have no part of the true Apostolic authority. Apostles could preach in the whole world, and found Churches ... this cannot Bishops." ... "Bishops succeed to the Apostles in the same manner as Priests to the seventy-two Disciples."

[149] Again: "But, if the Supreme Pontiff be compared with the rest of the Bishops, he is deservedly said to possess the plenitude of power, because the rest have fixed regions over which they preside, and also a fixed power; but he is set over the whole Christian world, and possesses, in its completeness and plenitude, that power which Christ left on earth for the good of the Church." [150] He proceeds to prove this by those passages of Scripture:—"Thou art Peter," &c.; 'Feed my sheep,' &c.; which we have seen St. Augustin explaining as said to St. Peter in the person of the Church, while he expressly denies that they are said to him merely as an individual. "These keys not one man but the unity of the Church received:" "he was not the only one among the Disciples who was thought worthy to feed the Lord's sheep," &c. What Bellarmine here says, is, assuredly, both the true Roman view, and moreover *absolutely necessary to justify that Church in the attitude she assumes and the measures she authorizes towards other parts of the Church. And if it be the ancient Catholic doctrine, it does justify her.* That it is *not* the ancient doctrine, I think I have already shown; but let us hear what Bossuet says of it. "One objection of theirs remains to be explained, that Bishops borrow their power and jurisdiction from the Roman Pontiff, and therefore, although united with him in an Ecumenical Council, can do nothing against the root and source of their own authority, but are only present as his Counsellors; and that the force of the decree, as well in matters of faith as in other matters, lies in the power of the Roman Pontiff. Which fiction falls of itself to the ground, even from this, that it was unheard of in the early ages, and began to be introduced into theology in the thirteenth century; that is, after men preferred generally to act upon

philosophical reasonings, and those very bad, before consulting the Fathers.
[151]

"But to this innovation is opposed, first, what is related in the Acts of the Apostles respecting that Council of Apostles, which the letter of St. Coëlestine to the Council of Ephesus, and the proceedings of the fifth Ecumenical Council, proved to be as it were repeated and represented in all other Councils. But if any one says that, in this Council, the Apostles were not set by Christ to be true judges, but to be the counsellors of Peter, he is too ridiculous.^[152]

"Secondly, is opposed that fact which we have proved, that the decrees and judgments of Roman Pontiffs *de fide* were suspended by the convocation of an Ecumenical Council, were reconsidered by its authority, and were only approved and confirmed after examination made and judgment given. Which things undoubtedly prove that they sat there not as counsellors of the Pope, but as judges of Papal decrees.

"And they must indeed be legitimately called together, that they may not meet tumultuously; but, when once called together, they judge by the authority of the Holy Spirit, not of the Pope: they pronounce anathemas, not by authority of the Pope, but of Christ; and we have seen this so often pressed upon us by the Acts, that we are weary of repeating it.

"Add to this that expression of the first Council of Arles to St. Sylvester: 'Had you judged together with us, our assembly had exulted with greater joy:' and in the very heading of the Council to the same Sylvester: 'What we have decreed with common consent, we signify to your charity.' Relying then on this authority of their Priesthood, they judge concerning most important matters; that is, the observation of the Lord's passover, that it may be kept on one day all over the world: concerning the non-iteration of Baptism, and the discipline of the Churches. Instances of this kind occur everywhere. But it is a known fact, that even by particular Councils, where the Pope presided, his decrees, even when present, were examined and confirmed by consent; the Fathers equally with him judged, decreed, defined, and we have seen this a thousand times written on the Acts.

"But in a matter so clear, they have only one thing to object drawn out of antiquity, the saying of St. Innocent, 'that Peter is the author of the

Episcopal name and honour.'^[153] And again,^[154] 'whence the Episcopate itself and all the authority of that name sprung.' And of St. Leo,^[155] 'If he willed that anything should be enjoyed by the other heads (that is, the Apostles) in common with him (Peter), he never gave save through Peter whatever he denied not to the rest.' And elsewhere also, 'that Christ granted to the rest of the Apostles the ministry of preaching on this condition, that he poured into them, as into the whole body, his gifts from Peter, as from the head.'^[156] Whence also came that expression of Optatus of Milevi: 'For the good of unity, the blessed Peter was thought worthy to be preferred to all the Apostles, and alone received the keys of the kingdom of heaven to be imparted to the rest,'^[157]—and that of Gregory of Nyssa, 'Through Peter He gave to the Bishops the keys of heavenly honours.'^[158] And that of St. Cæsarius of Arles to Pope Symmachus: 'As from the person of the blessed Apostle Peter the Episcopate takes its beginning, so is it necessary that by suitable rules of discipline your Holiness should plainly show to every Church what they ought to observe.'^[159]

"If they push these and such like expressions to the utmost, they will come to assert that the Apostles were appointed by Peter, not by Christ, or by Christ through Peter, but not by Him immediately and in person: as if any other but Christ called the Apostles, sent them, and endued them with heavenly power by the infusion of His Spirit; and Peter and not Christ said: 'Go ye, teach, preach, baptize, receive, and, as My Father sent me, even so send I you.'

"I am aware that John of Turrecremata, and a few others, thinking that the words now quoted of St. Leo and others cannot be defended by them sufficiently, unless the Apostles also received their jurisdiction from St. Peter, have been hurried away even into this folly, against the most manifest truth of the Gospel. Which fiction Bellarmine himself has confuted.

"But this being the greatest absurdity, it will appear that what follows is the teaching of the Fathers quoted.

"First; the episcopal authority and jurisdiction is contained in the keys, and in the power of binding and loosing, which is clear of itself.

"Secondly; it is evident from the Gospel History that Peter was the first in whom that power was shown forth and appointed. For, although Christ said to all the Apostles, 'Receive the Holy Ghost,' (John xx. 22,) and 'whatsoever ye bind,' &c., 'whatsoever ye loose,' &c. (Matt, xviii. 18); yet, what He said to Peter had gone before, 'I will give to thee the keys,' &c. (Matt. xvi. 19).

"Thirdly; both these two, that is, both what was said to Peter and what was said to the Apostles, proceed equally from Christ: for He who said to Peter, 'I will give to thee,' and 'Whatsoever thou shalt bind,' said also to the Apostles, 'Receive ye,' and 'Whatsoever ye shall bind.'

"Fourthly; that is therefore true which Optatus says of Peter: 'For the good of unity, he alone received the keys of the kingdom of heaven, to be imparted to the rest.' For, in truth, these which were given to Peter in the 16th Matt. were to be imparted afterwards to the Apostles, Matt. 18th, and John 20th, but to be imparted not by Peter, but by Christ, as is clear.

"Fifthly; that also is true which Cæsarius says, 'The Episcopate takes its beginning from Peter:' he being the first in whom, through the ministry of binding and loosing, the Episcopal power was shown forth, begun, entrusted.'

"Sixthly; hence, also, is true what Innocent says,—'that the Episcopate, and all the authority of that name, sprung from Peter,' because he, first of all, was appointed or set forth as Bishop.

"Seventhly; for this cause, Peter is called by the same Innocent the author of the Episcopate; not that he instituted it,—not that the Apostles received the power of binding and loosing from him,—for the Scriptures everywhere exclaim against this; but that from him was made the beginning of establishing that power among men, and of appointing or marking out the Episcopate.

"Eighthly; to make this clearer, and that it may be easily perceived what means that expression, 'through Peter,' which we read in Leo, we must review the tradition of the ancient Church, drawn from the Scriptures themselves.

"It is plain, then, that when the Lord asked the Apostles, 'Whom say men that I, the Son of Man, am?' Peter, the chief of all, answered in the person of

all, 'Thou art the Christ:' and afterwards Christ said to Peter, thus representing them, 'I will give to thee,'—'Whatsoever thou shalt bind:' by which it appears that in these words, not Peter only, but in Peter, their chief, and answering for all, all the Apostles and their successors were endued with the Episcopal power and jurisdiction.

"All which Augustin includes when he writes, 'All being asked, Peter alone answered, Thou art Christ, and to him is said, I will give to thee, &c., as if he alone received the power of binding and loosing, the case really being, that he said that singly for all, and received this together with all, as representing unity.'^[160] Than which nothing can be clearer."

He then quotes passages from St. Cyprian and St. Augustin, which I have already brought; adding, "In Peter, therefore, singly, Cyprian acknowledges that all Bishops were instituted, and not without reason; the Episcopate, as he everywhere attests, being one in the whole world, was instituted in one. And this was done to establish 'the origin of unity beginning from one,' as he says.

"But most of all does Augustin set forth and inculcate the common tradition. For, not content with having said that once in the place above mentioned, he is very full in setting forth this view of that doctrine. Hence he says, 'In Peter was the sacrament of the Church;'" and other passages I have already quoted. "Whence, everywhere in his books against the Donatists, he says, 'The keys are given to Unity.'

"The sum, then, is this. The Apostles and Pastors of Churches being both one and many,—one, in ecclesiastical communion, as they feed one flock; many, being distributed through the whole world, and having allotted to them each their own part of the one flock; therefore, power was given to them by a two-fold ratification of Christ: first, that they may be one, in Peter their chief, bearing the figure and the person of unity, to which has reference that saying in the singular number, 'I will give to thee,' and 'Whatsoever thou shalt bind,' &c.: secondly, that they may be many, to which that has reference in the plural number, 'Receive ye,' and 'Whatsoever ye shall bind:' but both, personally and immediately from Christ; since He who said, 'I will give to thee,' as to one, also said, 'Receive ye,' as to many: nevertheless, that saying came first, in which power is given to all, in that

they are one: because Christ willed that unity, most of all, should be recommended in His Church.

"By this all is made clear; not only Bishops, but also Apostles, have received the keys and the power from Christ, in Peter, and, in their manner, through Peter, who, in the name of all, received that for all, as bearing the figure and the person of all."

He then shows that this tradition had gone down even to his own times: "This holy and apostolic doctrine of the Episcopal jurisdiction and power proceeding immediately from, and instituted by, Christ, the Gallic Church hath most zealously retained." "Therefore,^[161] that very late invention, that Bishops receive their jurisdiction from the Pope, and are, as it were, vicars of him, ought to be banished from Christian schools, as unheard of for twelve centuries."

It is precisely "this very late invention" which is urged against the Church of England. Unless this be true, her position in itself, supposing her to be clear of heresy, with which, at present, I have nothing to do, is impregnable.

Such is the most Catholic interpretation by which Bossuet sets in harmony with the teaching of all antiquity a few expressions, which are all that I have been able to find that are even capable of being forced into accordance with the present Papal system, and which, as soon as they are so forced, contradict the whole history of Councils, and the whole life of the most illustrious Fathers.

Now there is no doubt that Bellarmine's doctrine is the true logical development of the Papal Theory; it alone has consistency and completeness; it alone is the adequate expression of that prodigious power which was allowed to enthrone itself in the Church during the middle ages; it would fain account for it and justify it. Grant but its postulate, that the Pope is the sole vicar of Christ, and all which it requires must follow. On the other hand, that school which ranks Bossuet at its head, and which sought to limit, in some degree, by the Canons the power of the Roman Pontiff, and maintained that Bishops were, *jure divino*, successors of the Apostles, in a real, not in a fictitious sense, however well-founded in what it maintained on the one side, was certainly inconsistent. It gave either too much or too little to the Roman See;—too much, if its own declarations

about the succession of Bishops and the authority of General Councils be true, and founded in antiquity, as we believe; too little, if the Pope be indeed the only Vicar of Christ on earth, and the supreme Ruler of His Church; for then these maxims put their partisans very nearly into the position of rebels, and, in truth, brought the Gallican Church to the brink of a schism, in 1682. However this may be, that school is extinct; the ultramontane theory alone has now life and vigour in the Roman Church. It seems to absorb into itself all earnest and self-denying minds, while the other is left to that treacherous conservatism which would use the Church of Christ as a system of police, for the security of worldly interests. What the ultramontane theory is, we see from Bellarmine. It proclaims that the government of the Church is a monarchy, concentrating in one person all the powers bestowed by Christ upon the Apostles. In this the student of history is bound to declare that it stands in point-blank contradiction to the decrees of General Councils, to the sentiments of the Fathers, and the whole practice of the Church for the first six hundred years; for much longer indeed than this, but this is enough. Well may Bossuet ask, "if the infallible authority of the Roman Pontiff is of force by itself before the consent of the Church,—to what purpose was it that Bishops should be summoned from the farthest regions of the earth, at the cost of such fatigues and expense, and Churches be deprived of their Pastors, if the whole power resided in the Roman Pontiff? If what he believed or taught was immediately the supreme and irrevocable law, why did he not himself pronounce sentence? Or if he pronounced it, why are Bishops called together and wearied out, to do again what is already done, and to pass a judgment on the supreme judgment of the Church? Would not this be fruitless? But all Christians have imbibed with their faith the conviction, that, in important dissensions, the whole Church ought to be convoked and heard. All therefore understand that the certain, deliberate, and complete declaration of the truth is seated not in the Pope alone, but in the Church spread everywhere."^[162] "This too is certain, that when General Councils have been holden, the sentence of the Roman Pontiff has generally preceded them; for undoubtedly Celestine, Leo, Agatho, Gregory the Second, Adrian the First, had pronounced sentence, when the third, fourth, sixth, seventh Councils were held. What was desired therefore was, not a Council for the Pontiff about to give judgment, but, after he had given judgment, the force of a certain and insuperable authority."

In fact, on this theory, as we have seen above, St. Cyprian, St. Firmilian, St. Hilary of Arles, the African Bishops in 426, the Fathers of Chalcedon in 451, in passing their famous 28th Canon, the Fathers of Ephesus in 431, in passing their 8th, the Fathers of Constantinople in 381, in passing their 2d and 3d Canons, and in the synodal letter addressed to the Pope and the Western Bishops, the Fathers of Nicea, in passing their 6th, nay, all ancient Councils whatever, in all their form and mode of proceeding, were the most audacious of rebels. But what are we to say about the language of St. Gregory? Did he then betray those rights of St. Peter, which he held dearer than his life? When he wrote to Eulogius of Alexandria, "If your Holiness calls me Universal Pope, you deny that you are yourself what you admit me to be—universal. But this God forbid:" are we to receive Thomassin's explanation, that he meant, as Patriarch, he was not universal, but, as Pope, he was, all the time? or when he says to the same, "in rank you are my brother, in character my father," was Eulogius at the same time, as Bellarmine will have it, merely his deputy? "In the beginning, Peter set up the Patriarch of Alexandria, and of Antioch, who, receiving authority from the Pontiff (of Rome), presided over almost all Asia and Africa, and could create Archbishops, who could afterwards create Bishops."^[163] And this, it appears, is the key which is to be applied to the whole history of the early Church. Those Bishops, Metropolitans, Exarchs, and Patriarchs, throughout the East, who had such a conviction of the Apostolic authority residing in themselves as governors of the Church, who showed it in every Council in which they sat, who expressed it so freely in their writings and letters: St. Augustin, again, in the West, himself a host, who speaks of a cause decided by the Roman Pontiff being reheard, of "the wholesome authority of General Councils," who assents to St. Cyprian's proposition, that "every Bishop can no more be judged by another, than he himself can judge another," with the single limitation, "certainly, I imagine, in those questions which have not yet been thoroughly and completely settled;" who, in a question of disputed succession, which more than any other required such a tribunal as the Papal, had it existed, appeals not to the authority of the Roman See, but to the testimony of the whole Church spread everywhere, not mentioning that See pre-eminently; or when he does mention "the See of Peter, in which Anastasius now sits," mentioning likewise "the See of James, in which John now sits:"—all these were nothing more, at the same time, than the Pope's delegates, and received through him their jurisdiction.

Can a claim be true which is driven to shifts such as this for its maintenance? Or can the truth of Christianity and the unity of the Church rest upon a falsehood? Is infidelity itself in such "a hopeful position,"^[164] as regards Christianity, that it is really come to this, that we must either receive a plain and manifest usurpation, or be cast out of the house and kingdom of God? That we must reject the witness and history of the first six hundred years of the Church's life on the one hand, or be plunged into the abyss of infidelity on the other? If it be true that the Pope is Monarch of the Church, which is the present Papal theory, the Church of England is in schism. If it be not true, she is at least clear of that fatal mark. All that is required for her position is the maintenance of that Nicene Constitution which we have heard St. Leo solemnly declare was to last to the end of the world, viz. that every province of the Church be governed by its own Bishops under its own Metropolitan. And who then but will desire that the successor of St. Peter should hold St. Peter's place? Will the Patriarch of Constantinople, or the Archbishop of Moscow, or the Primate of Canterbury, so much as think of assuming it? Be this our answer when we are accused of not really holding that article of the Creed "one Catholic and Apostolic Church." Let the Bishop of Rome require of us that honour and power which he possessed at the Synod of Chalcedon, *that, and not a totally different one under the same name*, and we shall be in schism when we do not yield it. At present we have no farther separated from him than to fall back on the constitution of the Church of the Martyrs and the Fathers.

But, it may be said, is the Catholic Church unanimous on the one hand, and the Anglican communion, restricted to one small province, left alone in her protest on the other? Did not she, whom they would call "the already decrepit rebel of three hundred years," submit from 596 to 1534 to that very authority which she now denies? It would be quite beyond my present limits to trace, as I had first purposed, the Roman Bishop's power from that point at which it stood when St. Gregory sent our Apostle Augustin into England, to that point which it had reached in the thirteenth century, and which it strove to maintain in the sixteenth. I can only now very briefly point out a few of the steps in that most wonderful rise. The two centuries, then, which succeeded St. Gregory, were even more favourable to this growth than those which went before. While the confusion and violence of secular governments by the breaking in and settlement of the various

northern tribes were greater than ever,—while the ecclesiastical constitution was all that yet held together the scattered portions of the shattered Western empire—the single Apostolical See of the West, whose Bishop was in constant correspondence with the spiritual rulers of these various countries, whose voice was ever and anon heard striving to win and soften into mercy and justice those temporal rulers, would be, as it were, "a light shining in a dark place." The Bishops, everywhere miserably afflicted by their own sovereigns, found a stay and support in one beyond the reach of the feudal lord's violence. The benefit they thus derived from the Roman Patriarch was so great, that they would be disposed to overlook the gradual change which was ensuing in the relation between themselves and him, the deference which was deepening into subjection. Or, if here and there, what Leo would have called "a presumptuous spirit," such as Hincmar of Rheims, or our own Grossetête, in after times, set himself against the stream, it would all be in vain. However good his cause might be, if he did not yield, he would be beaten down like St. Hilary of Arles. Moreover, as the great heresy of Mahomet invaded and hemmed in three of the Patriarchal Sees of the East, their counterpoise to the originally great influence of the Roman See was removed. Political separation from the East, and the difficulty of communication, would of themselves greatly tend to this result. To this must be added the great increase of power which the house of Charlemagne, for their own political purposes, bestowed on the Roman See; it was worth while building up a popedom for an imperial crown. De Maistre says, "The Popes reign since the ninth century at least."^[165] But it is a somewhat naïve confession, "The French had the singular honour, one of which they have not been at all sufficiently proud, of having set up, humanly, the Catholic Church in the world, by raising its august head to the rank indispensably due to his divine functions; and without which he would only have been a Patriarch of Constantinople, miserable puppet of Christian sultans, and Musulman autocrats." Just, too, when it was most difficult to detect imposture, and to refer to the acts of ancient Councils, that singular counterfeit of the false decretals made its appearance, which so wonderfully helped the Roman Patriarchs in consolidating the manifold structure of their authority. This, indeed, assailed the Bishops of the West by their most reverential feelings, and added to the force of a great present authority, almost always beneficially exercised, the weight of what seemed an Apostolical tradition. Besides these causes, the Popes found in the several

monastic orders throughout Europe the most unceasing and energetic pioneers of their power. From the very first there appears to have existed a desire to exchange the present superintendence of the local Bishop for the distant authority of the Pope. The great orders, indeed, were themselves so many suspensions of the Episcopal system. With reason do the statues of their founders adorn the nave of St. Peter's, not only as witnesses of the Church's exuberant life, but as those whose hands, more than any others, have helped to rear that colossal central power, of which that fane is the visible symbol. Thus the Papal structure was so gradually built upon the Patriarchal, that no one age could accurately mark where the one ended and the other began, but all may see the finished work. It requires no microscopic eye to distinguish the authority of St. Leo or St. Gregory from that of St. Innocent the Third. The poet spake of a phantom what is true of a great reality:—

"Mobilitate viget, viresque acquirit eundo,
Ingrediturque solo, et caput inter nubila condit."

That power, for which the heroic and saintly Hildebrand died in exile,^[166] if exile there could be to him who received the heathen for his inheritance, and the utmost parts of the earth for his possession; for which our own St. Anselm, forced against his will to the Primacy, stood unquailing in the path of the Red King, most furious, if not the worst, of that savage race, whose demon wrath seemed to justify the fable of their origin; for which St. Bernard, the last of the Fathers in age, but equal to the first in glory, wrote and laboured, and wore himself out with vigils, and wrought miracles; for which our own St. Thomas shed that noble blood, which sanctifies yet our primatial Church, an earnest of restoration and freedom to come; that power, for which St. Francis, the spouse of holy poverty, so long neglected since her First Husband ascended up on high, and St. Dominic—

l' amoroso drudo
Della fede Cristiana, il santo atleta,
Benigno a' suoi, ed a' nemici crudo;^[167]

and one greater yet, the warrior saint, Ignatius, raised their myriads of every age and of both sexes, armed in that triple mail of poverty, chastity, and obedience, "of whom the world was not worthy;"—that power, to which have borne witness so many saintly Bishops, poor in the midst of poverty, and humble in the exercise of more than royal power,—so many scholars, marvellously learned,—so many, prodigal of labour and blood, who are now counted among the noble army of martyrs,—so many holy women, who have hidden themselves under the robe of the first of all saints, and followed the Virgin of virgins in their degree;—that power is, indeed, the most wondrous creation which history can record, and one to which I am not ashamed to confess that I should bow with unmingled reverence, had not truth a yet stronger claim upon me, and did not the voice of the early Church, its Fathers, Councils, and Martyrs, sound distinctly in my ears another language. Still, human and divine, ambition and Providence, are so mingled there, that I would not utter a word more than truth requires. I should even be compelled to give up the strongest individual conviction, acknowledging the weakness and liability to err of any private judgment; acknowledging, moreover, that a single province of the Church, if opposed to all the rest, is certain to be in error, were it not that, besides the voice of antiquity, we have witnesses the most legitimate, the most time-honoured, the most unswerving in their testimony,—witnesses who take away from our opponents their proudest claim,—nay, a claim which, if real, would be irresistible,—that of being, by themselves, the Catholic Church.

Let it never, then, be forgotten, that any argument which would prove the Church of England to be in schism would condemn likewise the Eastern and Russian Church. It is not the Catholic Church against a revolted province, as our adversaries would have us believe; it is the one Patriarch of the West, with his Bishops, against the four Patriarchs of the East, with theirs, and that great and, as yet, unbroken phalanx of the North, which Constantinople won to the faith of old, and which now promises to beat back the tide of heresy and infidelity from the beleaguered Sees of the East. On this point of schism, at least, they bear witness with us. The causes,

adverted to above, which were so influential in exalting the great fabric of Roman power in the West, did not act upon the East,—nay, acted in the inverse direction. The See of Constantinople still remains where the Council of Chalcedon placed it, where the Emperor Justinian recognised it to be, the second See of the world: and it has ever since refused to admit that Rome was *first* in any sense in which itself was not *second*. This may serve to set in a clear light the vast difference between the legitimate power of the First See, and the claim to give jurisdiction to all Bishops. The systems, of which these are expressions, are in truth antagonistic. Constantinople maintains still that constitution of the whole Church which St. Gregory accused its Bishops of undermining. The evil which he foresaw has come from his own successors: "the cause of Almighty God, the cause of the Universal Church," the privileges and rights of Bishops and Priests, as against one "Universal Pope," are borne witness to now, as they have ever been, by the immutable East. Here, at least, are no sympathies with the heresiarchs of the sixteenth century: the Synod of Bethlehem has anathematised Luther and Calvin as decidedly as the Council of Trent. Here was no Henry the Eighth fixing his supremacy on a reluctant Church by the axe, the gibbet, the stake, and laws of premunire and forfeiture: no State using that Church as a cat's-paw for three hundred years, and ready now to offer it up a holocaust to the demon of liberalism. Here is the ancient Patriarchal system, the thrones of Constantinople, Alexandria, Antioch, and Jerusalem, subsisting still. Here is the same body of doctrine, the same seven sacraments, the same Real Presence, the same mighty sacramental and sacerdotal system, which Latitudinarian and Evangelical, statesman and heretic, dread while they hate, as being indeed the visible presence of Christ in a fallen world,—the residence of a spiritual power which controls and torments the worldling, while it disproves and falsifies the heretic. Here is all that the Roman Catholic claims as tokens of the truth for himself: but there is one thing more, the same protest that we make against the monarchical, as distinct from the patriarchal, power, the same appeal back to early Councils, and the unambiguous voice of those who cannot be silenced or corrupted, the Fathers of the Church. In the Fathers of the undivided Church, the East and the North and the West, so long severed, meet: we are not alone, who have with us, on the very point which divides us from our Mother Church, the still unbroken line of successors from St. Athanasius and St. Chrysostom. There is no break in the descent or in the

doctrine of the Eastern Churches. There is the same dogmatic, the same hierarchical fabric, subsisting now as when St. Gregory addressed Anastasius of Antioch, and Eulogius of Alexandria. It may suit the purposes of unfair Roman controversialists to brand them as schismatics, and overcome, by calling them a name, their own most formidable opponents: but history cannot be so overcome. They have *never* admitted the Papal sway, any more than the Fathers who passed the 28th Canon of Chalcedon: they have, indeed, admitted the Roman *Primacy*, as those same Fathers admitted it; for the very system, for which they are witnesses, is not complete without the Bishop of Rome stands at the head of it: the *due* honour of Rome is involved in the due honour of Constantinople; and, we may add, the due honour of Canterbury: the same temper, the same persons, who reject the one, hate the other. What we say they never have admitted is, that which has really worked the disunion of the Universal Church, as St. Gregory foretold it would, the doctrine which is the centre of the present Papal system, which alone makes all its parts cohere, and justifies all its acts, and triumphs over all appeal to argument, and all testimonies of antiquity, viz., that, "the Pope is set over the whole Christian world, and possesses in its completeness and plenitude that power which Christ left on earth for the good of the Church."^[168] They have never for a moment admitted that the Bishops of the Universal Church were the Pope's delegates, and received their jurisdiction from him. We fight, it must be admitted, at some disadvantage with our opponents. The long subjection which our Church yielded to Rome, the manifold obligations under which we lie to her, the complete unsettling of the ecclesiastical and doctrinal system in the sixteenth century, the horrible vices of those who effected the change, the connection with those whose doctrine has now worked itself out into Socinianism, infidelity, and anarchy, the inability we have ever since been under of shaking ourselves completely clear of them, the thoroughly unsatisfactory position of the state towards us, as a Church, at present,—all these things are against us,—all these things tell on the mind which really lives and dwells on antiquity, and looks to the pure Apostolic Church. Still, though they weaken, they do not overcome our cause. But from all these objections the witness of the Eastern Churches is free. They were never subject to Rome, but to their own Patriarchs; they derived not their Christianity from her: the Priesthood, and the pure unbloody sacrifice, and the power to bind and to loose, remain undisputed among them: the Eastern

mind cannot conceive a Church without them. They have received no reformation from those whose lives were a scandal to all Christian men: they are not mixed up with the Lutheran or Calvinistic heresy: nor has Erastianism eaten out their life. Yet, if we are schismatics, so are they, and on the same ground. Moreover the Roman Church has again and again treated with them as parts of the true Church. It is only in comparatively modern times, that as the hope of re-union became fainter, the line of denying their being members of the One Body has been taken up. I have seen even so late as the time of Clement the Eighth a letter of that Pope to the Czar, in which he treats him as already belonging to the Church. Moreover the Eastern Church has put forth the best and most convincing sign of Catholicity, *life*: to her, *since her separation from Rome*, and to this particular attention must be claimed, is due the most remarkable conversion of a great nation to the Faith which has taken place in the last eight hundred years—Russia with her Bishops, her clergy, her monasteries, her convents, her Christian people, her ancient discipline, her completely organised Church system, her whole country won from Paganism by the preaching of Monks and Missionary Bishops, is a witness to the Greek Church (which who shall gainsay?) that she is a true member of the One Body. The Patriarch of Constantinople exercised that charge which the Council of Chalcedon gave him, and ordained Bishops among the barbarians, and the Spirit of God blessed their labours, and the whole North became his spiritual offspring. Rome cannot show, since she has been divided from the East, a conversion on so large a scale, so complete, so permanent. And on that great mass she has hitherto made no impression. It is a complete refutation of her claim to be *by herself* Catholic, that there exists out of her communion a Body of Apostolic descent and government, with the same doctrinal system as her own, with the ascetic principle as strongly developed, with the same claim to miracles,—with all, in fact, which characterises a Church; a Body, moreover, so large, that, supposing the non-existence of the Roman Communion, the promises of God in Scripture to His Church might be supposed to be fulfilled in that Body.^[169] And this Body, like ourselves, denies that particular Roman claim, for which Rome would have us and them to be schismatic. And it has denied it not merely for three hundred years, but from the time that it has been advanced. Truly all that was deficient on our side seems made up by the Greek Church. And this living and continuous witness of a thousand years is to be added to that

most decisive and unambiguous voice of the whole undivided ancient Church.

I have, throughout these remarks, considered the Church of Christ to be what, at the Councils of Nicea, Ephesus, and Chalcedon, she so manifestly appeared, one organic whole; a Body, with One Head, and many members; as St. Gregory says, Peter, and Paul, and Andrew, and John; a kingdom with One Sovereign, and rulers, an Apostolic College appointed by that Head, with a direct commission from Himself. I believe that no other idea about the Church prevailed up to St. Gregory's time. It follows that all so-called national churches, unless they be subordinate to the law of this kingdom, are so many infringements of the great primary law of unity, in that they set up a member instead of the Body. St. Paul, in the 12th chapter of the 1st Epistle to the Corinthians, has clearly set forth such, and no less, to be the unity of Christ's Body. Certainly it is a difficulty, that we must admit this essential law to be at present broken. But I do not think it fair to argue against a provisional and temporary state, such as that of the Church of England is confessed to be—which, too, has been forced upon her—as if it were a normal state, one that we have chosen, a theory of unity that we put forth over against the ancient theory, or the present Roman one. Nay, thousands and ten thousands feel, the whole rising mind of the Church feels, that we are torn "from Faith's ancient home," that we groan within ourselves, waiting until God in his good time restore a visible unity to His Church, till the East and the West and the South be one again in the mind of Christ. Who but must view it as a token of that future blessing, that public prayers have been offered up in France and Italy for such a consummation? Let us begin to pray for each other, and we must end by being one. Let *us*, too, pray that the clouds of error and prejudice, the intense blind jealousy on one side, the cruel and disingenuous temper on the other, may be subdued by the Spirit of God, who in some great and blessed Pentecost shall draw long alienated hearts together, and mould them into a union closer than has ever been, against an attack the last and most terrible of the foretold enemy, the tokens of whose coming are at hand.

But the Roman Catholic, who seems to escape this difficulty, and points to his communion as one organic whole, falls into another. Grant that it is one, but it is at the expense of ceasing to be Catholic: it has lost all the East and the North, and part of the West. Thus, in this choice between difficulties, it

seems the least to suppose that the unity of Christendom may be for a time suspended, during which the several parts of Christ's Body retain communion with the one Head, and thence derive life, though active communion with each other is suspended. A less difficulty, I say, than to cut off, not merely our own Church, but the seventy millions of the Eastern Church, having a complete inward identity with the Roman, from the covenant of salvation, merely because that intercommunion is prevented by a claim to spiritual monarchy, which was unknown in the best ages of the Church, and has been resisted ever since it was set up. If this view be true, we should expect that the several parts, though living, would yet be languishing, and far from that healthy vigour which they ought to possess; that the Great Head would give manifold warnings of the injury done to His Body. Now, it is very remarkable that the circumstances, no less of the Latin than of the Eastern and the Anglican Church, exactly agree to this expectation. I need not speak on this point of the second and third; but I cannot help thinking that they who have suffered themselves to be driven by fearful scandals out of our bosom, who have brooded over acknowledged but unrelieved wants, till the duty of patient long-suffering has been forgotten, close their eyes to the state of France, Spain, and Italy, under what they have now learnt to call *by itself* the "Catholic" Church. Yet are there tokens abroad which men of less spiritual discernment might lay to heart. Does the "obscene rout" of Ronge and Czerski, bursting forth from the bosom of the Roman Church, awake no misgiving? Fearful, when viewed by Scripture and antiquity, as the state of England is, (an argument which is now being used against our communion with such effect on tender and loving minds,) he must be bold who would venture to say that the relation of the French Church to the French nation in the last century, or its relation even now, greatly as the present French Church is to be admired and sympathised with, does not offer as much ground for fearful apprehension, as much reason to dread, lest the terms on which victory is promised to the Church over the world have been essentially broken. I fear there is no doubt that two-thirds of the French capital are not *Christian*, in any sense of the word; and probably the proportion is as great in the larger towns. How did this state of things arise? How has nearly the whole intellect of that country become infidel? From the French Revolution, it will be answered. But how could that great Satanical outburst have ever taken place, had the Church of Christ, free from corruption, as those who have

left us believe, and throned in the possession of sixteen hundred years, with its numberless religious houses, its unmarried clergy, and great episcopate, been discharging its functions, I do not say aright, but with any moderate efficiency? Surely the acts of the States General were as bad as those of Henry the Eighth; yet its members were Catholics, in full communion with the Roman See. Surely the ecclesiastical legislation of Napoleon was as uncatholic as that of a House of Commons; yet it was sanctioned by Concordat with the Pope. But if manifold corruptions did not unchurch the Gallican communion in the last century,—if the mass of a great nation, which the Church once completely possessed, but has now surrendered to active unbelief, does not invalidate her claim to be a pure communion at present, why are such things alleged as so fatal a mark against us? God forbid that one should mention such things without the deepest sorrow; but when our troubles, and difficulties, and relations with the state, and the alienated hearts of our people, and the absence of external discipline and inward guidance, and the misery of our divisions, are alleged to prove that we are out of the pale of the Church, these things ought to be weighed on the other side. There ought not to be different measures on different sides of the Channel. I forbear to speak of the state of Spain, Portugal, and much of Italy; but I imagine that the worst deeds of the Reformation were at least paralleled by what the Church has had to endure there from the hands of her own children. I believe that our own most sad corruptions have, too, their counterpart among Churches in communion with the Apostolic See.

But to conclude. As our defence against the charge of Schism rests upon the witness of the ancient Church, thus fully corroborated by the Eastern Communion, so our whole safety lies in maintaining the clear indubitable doctrine of that Church. I have avoided the whole question of *doctrine* in these remarks, both as leading me into a wider field than that which I am obliged to traverse so cursorily at present, and as distinct from the question of Schism, though very closely connected with it. No one can deny that it is not sufficient for our safety to repel one single charge: but this charge was the most pressing, the most specious, and one which requires to be disposed of before the mind can with equanimity enter upon any other. My conclusion is, that upon the strictest Church principles,—in other words, upon those principles which all Christendom, in its undivided state, recognised for six hundred years, which may be seen in the Canons and

Decrees of Ecumenical Councils, our present position is tenable at least till the convocation of a really Ecumenical Council. The Church of England has never rejected the communion of the Western, and still less that of the Eastern Church: neither has the Eastern Church pronounced against her. She has only exercised the right of being governed by her own Bishops and Metropolitans. There is, indeed, much peril of her being forced from this, her true position,—a peril lately pointed out by the author of "The real Danger of the Church of England." I need say little where he has said so much, in language so well-timed, so moderate, and from a position which cannot be misrepresented. I will only add, that I cannot conceive any course which would so thoroughly quench the awakened hopes of the Church's most faithful children, as that her rulers, which I am loth even to imagine, at a crisis like the present, should seek support, not in the rock of the ancient Church, in which Andrewes, Laud, and Ken, took refuge of old,—not in the unbroken tradition of the East and West, by which, if at all, the Church of Christ must be restored,—not in that great system which first subdued and then impregnated with fresh life the old Roman Empire, delaying a fall which nothing could avert, and which lastly built up out of these misshapen ruins all the Christian polities of Europe,—not in that time-honoured and universal fabric of doctrine to which our own Prayer-book bears witness, but in the wild, inconsistent, treacherous sympathies of a Protestantism, which the history of three hundred years in many various countries has proved to be dead to the heart's core. Farewell, indeed, to any true defence of the Church of England, any hope of her being built up once more to an Apostolical beauty and glory, of recovering her lost discipline and intercommunion with Christendom, if she is by any act of her rulers, or any decree of her own, to be mixed up with the followers of Luther, Calvin, or Zuingli: with those who have neither love, nor unity, nor dogmatic truth, nor sacraments, nor a visible Church among themselves: who, never consistent but in the depth of error, and the secret instinct of heresy, deny regeneration in Baptism, and the gift of the Holy Spirit in Confirmation and Orders, and the power of the keys in absolution, and the Lord's Body in the Eucharist. That is the way of death: who is so mad as to enter on it? When Protestantism lies throughout Europe and America a great disjointed mass, in all the putridity of dissolution,

"Monstrum horrendum, informe, ingens, *cui lumen
ademptum*,"

judicially blinded, so that it cannot perceive Christ dwelling in his Church, while she grows to the measure of the stature of the perfect man, and making her members and ministers His organs—who would think of joining to it a living Church? Have we gone through so much experience in vain? Have we seen it develop into Socinianism at Geneva, and utter unbelief in Germany, and a host of sects in England and America, whose name is Legion, and who seem to be agreed in nothing else but in the denial of sacramental grace, and visible unity; and all this at the last hour, in the very turning point of our destiny, to seek alliance with those who have no other point of union but common resistance to the tabernacle of God among men? A persuasion that nothing short of the very existence of the Church of England is at stake, that one step into the wrong will fix her character and her prospects for ever, compels one to say that certain acts and tendencies of late have struck dismay into those who desire above all things to love and respect their spiritual mother. If the Jerusalem Bishopric, promoted, (at the instance of a foreign minister, not in communion with our Church,^[170] and who has recorded in the strongest terms his objection to *her* apostolical episcopacy,) by two Bishops on their private responsibility, without any authority from the Church of which they are indeed most honoured, but only individual rulers, be the commencement of a course of amalgamation with the Lutheran or Calvinistic heresy, who that values the authority of the ancient undivided Church, will not feel his allegiance to our own branch fearfully shaken? The time for silence is past. There is such a thing as "propter vitam vivendi perdere causas." It must be said publicly that such a course will lead infallibly to a schism, which will bury the Church of England in its ruins. If she is to become a mere lurking-place for omnigenous latitudinarianism; if first principles of the faith, such as baptismal regeneration, and priestly absolution, may be indifferently held or denied within her pale,—though, if not God's very truths, they are most fearful blasphemies,—the sooner she is swept away the better. There is no mean between her being "a wall daubed with untempered mortar," or the city of the living God. I speak as one who has every thing commonly valuable to man depending on this decision; moreover, as a Priest in that communion, whose constitution, violently suspended by an enemy for one

hundred and thirty years, yet requires that every one of her acts, which bind her as a whole, should be assented to by her Priesthood in representation, as well as by her Episcopacy. If the grace of the sacraments may be publicly denied by ministers of the Church, nay, by a Bishop *ex cathedrâ*, with impunity, in direct violation of the most solemn forms to which they have sworn obedience, while the assertion of Christ's Real Presence in the Eucharist draws down censure on the most devoted head, the communion which endures such iniquity requires the constant uninterrupted intercession of her worthier children, that she be not finally forsaken of God, and perish at the first attack of antichrist.

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NOTES

- [1] Bellarmin. de Rom. Pont. Lib. iv. 25; iv. 24; i. 9.
- [2] De Maistre, du Pape. Liv. i. ch. i.
- [3] S. Cyprian de Unit. Ecc. 12.
- [4] "Development," &c. p. 22.
- [5] Thomassin, Part i. lib. i. ch. 4. De l'ancienne discipline de l'Eglise.
- [6] St. Cypr. de Unit. 4. Oxford Tr.
- [7] Quoted by Thomassin, *ut sup.*
- [8] Ibid.
- [9] S. Aug. Tom. v. 706, B.
- [10] S. Chrys. Tom. ii. 594, B.
- [11] St. Jerome, tom. ii. 279, Vallarsi.
- [12] Development, p. 279.
- [13] The words in italics are left out by Mr. N.
- [14] Thomassin, Part i. liv. i. ch. iii.
- [15] Of a passage in this letter, De Maistre says (Du Pape, liv. i. ch. 6): "Resuming the order of the most marked testimonies which present themselves to me on the general question, I find, first, St. Cyprian declare, in the middle of the third century, that heresies and schisms only existed in the Church because all eyes were not turned towards the Priest of God, towards the Pontiff who judges in the Church *in the place of Jesus Christ.*" A pretty strong testimony, indeed, and one which would go far to convince me of the fact. Pity it is, that when one refers to the original, one finds that St. Cyprian is actually speaking of himself, and of the consequences of any

where setting up in a see a schismatical Bishop against the true one. After this, who will trust De Maistre's facts without testing them? The truth is, he had taken the quotation at second hand, and never looked to see to whom it was applied. It suited the Pope so admirably that it must have been meant for him. But I recommend no one to change their faith upon the authority of quotations which they do not test.

[16] Epist. 67. De Marciano Arelatensi.

[17] S. Cyp. Ep. 29.

[18] Ep. 73.

[19] Ep. 74.

[20] De Unit. Ecc. Oxf. Tr.

[21] Op. St. Cypr. p. 329. ed. Baluz.

[22] Tom. ix. p. 110.

[23] S. Cyp. Ep. 75.

[24] Liv. VII. sec. 32.

[25] Tom. ix. 97. G.

[26] Tom. ii. 96. F.

[27] Tom. ii. 299. C.

[28] Fleury, liv. vii. 23.

[29] Ep. 68. S. Cypriani.

[30] Liv. i. ch. 2, sect. 5.

[31] Liv. i. ch. 3, sect. 8.

[32] Fleury, Liv. xii. xxix. Conc. Sard. Can. 3, 4, 7.

[33] Thomassin, Part I. liv. i. ch. 40. sect. 2.

[34] Idem, ut supra.

- [35] St. Aug. Tom. V. 1097. B.
- [36] Tom. IV. 1215. E.
- [37] Tom. V. 240. F.
- [38] Tom. V. 1194. E.
- [39] Tom. V. 1195. E.
- [40] Tom. III. Part ii. 800. G.
- [41] He allows that Peter *may* be called the rock. Tom. i. 32, E.
- [42] Fleury 23, 30. Oxf. Tr.
- [43] St. Aug. Tom. II. 618. B.
- [44] St. Aug. Tom. ii. 635. F.
- [45] Tom. ii. 639. B.
- [46] Quoted by Fleury, 23, 32. Oxford Tr.
- [47] Fleury, Liv. 24, 35. Oxf. Tr. See the original: Codex Eccl. Afric. 138.
- [48] Chillingworth, quoted by Mr. Newman, "Developement," p. 4.
- [49] Tom. ix. 372. F.
- [50] Tom. ix. 340. A.
- [51] Tom. v. 1199. D. 1202. F.
- [52] Def. Cleri. Gall. Pars ii. lib. xii. ch. 5.
- [53] Def. Cleri. Gall. Pars ii. lib. xii. ch. 7.
- [54] Ibid. lib. xiii. ch. 19.
- [55] St. Chrys. Tom. ix. 757. A.
- [56] Lacordaire, Sur le Saint Siège.
- [57] St. Aug. Tom. x. 412. B. quoted in Fleury, Oxf. Tr. 3. 93.

- [58] Def. Clerc. Gall. Pars ii. lib. xii. c. 10.
- [59] Fleury, 25-47. Oxf. Trans.
- [60] Ut sup. ch. 14.
- [61] Du Pape, Liv. i. ch. 2.
- [62] Id. Liv. i. ch. 4.
- [63] Hammond's Translation.
- [64] Tillemont, tom. xv. p. 72.
- [65] Tillemont, tom. xv. p. 81.
- [66] Tillemont, tom. xv. p. 83.
- [67] Tillemont, tom. xv. p. 89.
- [68] St. Leo. Ep. 40.
- [69] St. Leo. Ep. 10. Edit. Ball.
- [70] Ib. Ep. 65.
- [71] Ep. 10.
- [72] St. Leo. Ep. 14, cap. i. xi.
- [73] S. Leon. Ep 6, cap. 2.
- [74] St. Jerome, Ep. 146. Vallarsi.
- [75] Theodoret, Ep. in Epist. S. Leonis, 52.
- [76] Mansi, 6, 817, quoted by Gieseler, tom. i. part ii. p. 192.
- [77] Isidorus, Hisp. Etymol. 7, 12, quoted by Gieseler, ut sup. p. 406.
- [78] Gieseler, tom. i. part ii. pp. 191, 192.
- [79] Gieseler, tom. i. part ii. p. 205.
- [80] Theodoret. Hist. Eccl. lib. v. ch. 9.

[81] Observe this Council so called by the Greeks before it was received by the West.

[82] It must be remembered that Diocese, in the language of this time, means the several provinces comprehended in a Patriarchate. It was the civil term.

[83] S. Bas. M. Ep. 239.

[84] Gieseler, tom. i. part ii. p. 202.

[85] Sozomen, Hist. iii. ch. 8.

[86] Ibid. Hist. iii. ch. 10.

[87] Socrates, Hist. ii. ch. 17.

[88] Bossuet, Sermon sur l'Unité de l'Eglise.

[89] Bossuet, Def. Cleri Gall. Pars ii. lib. xii. ch. 15, 16, 17.

[90] S. Leon. Ep. 120.

[91] Ib. c. 4.

[92] S. Leon. Ep. 102.

[93] Ch. 18, *ibid.*

[94] Fleury, Liv. xxviii. 29. Oxf. Tr.

[95] Theod. lib. v. ch. 28, quoted by Tillemont.

[96] Tillemont, tom. xv. p. 711.

[97] The sittings are variously counted.

[98] Fleury, liv. xxviii. xxx. Oxf. Tr.

[99] Tillemont, tom. xv. p. 707.

[100] S. Leon. Ep. 104, cap. 3.

[101] S. Leon. Ep. 105.

- [102] Ep. 106, cap. 4.
- [103] Ep. 105, cap. 2.
- [104] Ep. 106, cap. 2-5.
- [105] Ep. 107.
- [106] Ep. 105, cap. 3.
- [107] Tillemont, tom. xv. p. 731.
- [108] S. Leon. Ep. 107.
- [109] S. Greg. Ep. lib. iii. 10.
- [110] On Development, p. 307.
- [111] Fleury, liv. xxxii. 54.
- [112] Gieseler, vol. i. part. ii. p. 192.
- [113] Nov. i. 1-7, quoted by Gieseler.
- [114] Fleury, liv. xxxiii. 4, 5, 6.
- [115] Nov. vi. Epilogus.
- [116] Nov. cxxiii. c. 3.
- [117] Ad Valerianum, Mansi, ix. 732.
- [118] Contra litt. Petiliani, ii. 51, all quoted by Gieseler.
- [119] Bossuet, Def. Cleri Gall. pars ii. lib. xii. cap. 19.
- [120] Fleury, liv. xxxiii. 52.
- [121] Bossuet, *ut sup.*
- [122] Du Pape, liv. i. ch. 3.
- [123] Fleury, Liv. xxxiii. 52.
- [124] Sozomen, lib. iii. ch. 11.

[125] Tom. i. part ii. 410.

[126] Def. Cleri Gall. pars ii. lib. xii. cap. 29.

[127] Id. cap. 31.

[128] Du Pape, liv. iii. ch. 7.

[129] S. Greg. Ep. lib. ii. 52.

[130] Lib. ix. 59, Gieseler.

[131] Lib. xi. 37, Gieseler.

[132] Gieseler, tom. i. part ii. 401.

[133] Liv. xxxiv. 60.

[134] Liv. xxxv. 19.

[135] Ep. S. Greg. lib. v. 43.

[136] Lib. ix. 68.

[137] Lib. v. 19.

[138] Lib. vii. 33.

[139] Lib. v. Ep. 20.

[140] Lib. vii. 27.

[141] I cannot but consider St. Gregory's words to contain one of the most remarkable prophecies to be found in history; for this assuming the title and exercising the power of universal Pope has actually led not only to the concentration of all executive power in the Roman See, but to the conviction, among its warmest partisans, that the whole existence of the Church depends on the single See of Rome. Take the following from De Maistre: "Christianity rests entirely upon the Sovereign Pontiff."—"Without the Sovereign Pontiff the whole edifice of Christianity is undermined, and only waits, for a complete falling in, the development of certain circumstances which shall be put in their full light."—"What remains incontestable is, that if the Bishops, assembled without the Pope, may call

themselves the Church, and claim any other power but that of certifying the person of the Pope in those infinitely rare moments when it might be doubtful, unity exists no longer, and the visible Church disappears."—"The Sovereign Pontiff is the necessary, only, and exclusive foundation of Christianity. To him belong the promises, with him disappears unity, that is, the Church."—"The supremacy of the Pope being the capital dogma without which Christianity cannot subsist, all the Churches, which reject this dogma, the importance of which they conceal from themselves, are agreed even without knowing it: all the rest is but accessory, and thence comes their affinity, of which they know not the cause."—Du Pape, Discours Préliminaire; Liv. i. ch. 13; Liv. iv. ch. 5. Could we have any stronger witness to the antagonism between the Papal and Patriarchal or Episcopal System? Or can any words be spoken more opposed in tone than these to the writings of Fathers and decrees of ancient Councils? Or are they who say such things wise defenders of the Church or promoters of unity?

[142] Lib. viii. 30.

[143] Part i. liv. i. ch. 11.

[144] Mansi, vi. 1006. 1012, quoted by Gieseler.

[145] Lib. v. 18.

[146] Proph. Office, p. 221. Development, p. 10.

[147] Sect. 13. March 28, 681, translated in Landon's Councils.

[148] Bossuet, Def. Cler. Gall. pars ii. lib. xii. cap. 34.

[149] Bellarmin de Pont. Rom. lib. iv. cap. 24, 25.

[150] Bellarmin de Pont. Rom. lib. i. cap. 9.

[151] Def. Cleri. Gall. pars ii. lib. xiii. cap. 11.

[152] Bossuet is very moderate. St. Chrysostom says, (on Acts, Hom. 33,) "James was Bishop in Jerusalem, and so speaks last;" and presently, "There was no pride in the Church, but much good order. And see, after Peter, Paul speaketh, and no one rebukes him: James waits and starts not out of his

place, for *he was entrusted with the government.*" What would St. Chrysostom say to Bellarmine's doctrine?

[153] Ep. S. Innoc.; in Op. S. Aug. tom. ii. 618; see above, p. 59.

[154] Ibid, quoted above, p. 60.

[155] St. Leo. Serm. in Anniver. Assumpt. quoted above.

[156] Ep. 10.

[157] Optat. l. ix. contra Parmen.

[158] Greg. Nyss. T. 2. 746.

[159] Cæsar. Arel. Epist. ad Symm.

[160] Quoted above, p. 58.

[161] Cap. xiv. lib. xiii. pars 2.

[162] Bossuet, Def. &c. Pars ii. lib. xiii. cap. 20.

[163] De Rom. Pont. lib. iv. cap. 26.

[164] Developement, p. 28.

[165] Du Pape, liv. ii. ch. 6; and Discourse Préliminaire.

[166] See the account of his death in Bowden's Life.

[167] Dante, Paradiso, xii. 55.

[168] Bellarmine, quoted above.

[169] I owe this observation to a friend who has had great opportunities of judging about the state of the Russian Church.

[170] "Introduction to Die Zukunft Kirche. The work advocates the introduction of Episcopacy into the German Church, but not the Apostolical Episcopacy of the English Church, which M. Bunsen condemns in terms as strong as any which have been used by any opponent of the Bishopric. 'If ever and at any time the Episcopate, in the sense of Anglicanism, should be

raised into a distinctive mark of Churchdom among us, not constitutionally and nationally (?) it would, in my opinion, be striking the death-blow to the innermost germ of life in the Church.' He will exert every energy, and shed the last drop of his blood in order to preserve the Church of the German nation against such an Episcopacy,"—*English Churchman*, April 30, 1846. There are solemn words, which have found an echo in many hearts, "May that measure utterly fail, and come to nought, and be as though it had never been!"

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